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JAMB Government: The Complete Course

Concepts, worked examples and exercises for the UTME

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Chapter 1: Basic Concepts of Government

Every society that has ever existed has had to answer a small set of stubborn questions. Who is entitled to make the rules by which people live? How are those rules to be enforced, and against whom? What happens to a person who refuses to obey? How are scarce resources, such as land, oil revenue, jobs and school places, to be shared among people whose interests differ? The study of Government is the study of the answers that human communities have given to these questions, and of the institutions, ideas and struggles that have grown up around them. A candidate who understands the vocabulary of the subject will find that the rest of the syllabus, from the structure of the Nigerian constitution to the work of the United Nations, becomes far easier to follow.

This opening chapter therefore deals with the foundations. It explains what is meant by government, politics and political science; it distinguishes society, nation and state; it examines power, authority, legitimacy, influence and sovereignty, which are the working tools of political analysis; it introduces democracy as a concept; and it surveys the major political ideologies, from feudalism and capitalism to socialism, communism, fascism and totalitarianism. Many UTME questions in this area are simple definitions, but the better questions test whether a candidate can tell closely related ideas apart, for example authority from power, or a nation from a state. Those distinctions receive special attention here.

1.1 Government, politics and political science

The word **government** has two related meanings. In its first and broader sense, government is the process of governing, that is, the exercise of authority over the affairs of a community. In its second and narrower sense, government is the body of people and the set of institutions through which that authority is exercised. When a newspaper reports that "the government has increased the minimum wage", it uses the word in this second sense. When a student of political science writes that "government is necessary for order", the word is being used in the first. The two senses should not be confused with the **state**, which is the permanent political community, whereas a government is the temporary holder of power within it. Governments come and go with elections, coups and revolutions; the state, with its people and territory, continues.

Government performs functions that no private individual or voluntary association can perform on its own account. It makes laws that bind everyone within its territory; it enforces those laws through the police, the army and other agencies; it interprets the laws and settles disputes through the courts; it defends the territory against external attack; it collects taxes and spends public money; it provides services such as roads, schools, hospitals and electricity; and it represents the community in its dealings with other states. These tasks are commonly grouped under three heads: **rule-making** (legislative), **rule-application** (executive) and **rule-adjudication** (judicial). Chapter 4 examines these three branches in detail.

Politics is a wider and looser idea. It is the activity by which groups with different interests compete or cooperate in order to influence who holds power and how that power is used. Politics goes on wherever there are decisions to be made about shared resources: in a national assembly, in a village council, in a students' union, even inside a family compound when elders disagree about how to use inherited land. The classic short definition describes politics as the struggle over who gets what, when and how. Government is therefore the formal machinery, while politics is the contest, bargaining and persuasion that surround and direct it.

Political science is the systematic study of government and politics. It examines the origin and nature of the state, the working of institutions, the behaviour of voters and leaders, the making of public policy and the relations between states. Government as a school subject, which is the subject of this book, draws on political science but also includes history, in the form of Nigerian colonial administration and constitutional development, and public administration, in the form of the civil service and public corporations.

> **Key point.** Government is the machinery of authority; politics is the competition for, and use of, that authority; the state is the permanent community within which both occur. In an examination, the word "government" may refer either to the activity of governing or to the institutions that govern, so read the context before choosing an answer.

1.2 Society, community, nation and state

A **society** is a group of people who live together in an organised way, share certain customs and institutions, and depend upon one another for the satisfaction of their needs. A society may be small, such as a riverine fishing settlement in the Niger Delta, or very large, such as the whole population of Nigeria. A society does not necessarily have its own government, and it need not occupy a defined territory with fixed boundaries. A **community** is usually a smaller and more intimate grouping whose members are bound by sentiment, locality or common interest: the people of one town, a church congregation, an association of traders in a market.

A **nation** is a body of people who believe that they belong together because they share a common history, language, culture, religion or set of experiences, and who commonly aspire to govern themselves. A nation is above all a matter of sentiment and self-awareness; its members feel a bond with one another that they do not feel with outsiders. The Yoruba, the Igbo, the Hausa, the Ijaw and the Efik are often described as nations or ethnic nations in this cultural sense, although none of them has an independent state of its own. The Kurds of the Middle East are another well-known example of a nation without a state of its own.

A **state** is a legal and political entity with four elements: a settled population, a defined territory, an effective government and sovereignty. Chapter 2 treats these elements in full. For the moment it is sufficient to see that a state is a matter of law and organisation rather than of

sentiment. A **nation-state** is the special case in which the boundaries of a state coincide closely with those of a single nation, so that nearly all the citizens of the state share one national identity. Japan, Iceland and Somalia are often cited as close examples. Nigeria, by contrast, is a *multi-national state*, because it contains more than two hundred and fifty ethnic groups within boundaries drawn by colonial administrators, and the task of building a single Nigerian national identity out of these groups, often called nation-building, remains a central political theme.

Concept	Basis	Essential mark	Example
Society	Organised living together	Shared institutions and mutual dependence	A farming society in Benue
Nation	Sentiment and shared identity	Sense of belonging and common destiny	The Yoruba people
State	Law and organisation	Population, territory, government, sovereignty	The Federal Republic of Nigeria
Government	Institutions of authority	Power to make, apply and interpret laws	The administration in office

One practical consequence of these distinctions is that a nation can exist without a state, and a state can exist without being a single nation. When a nation demands a state of its own, the demand is called *self-determination*. The principle was widely invoked during the decolonisation of Africa and Asia after 1945, and it still lies behind

separatist movements in various parts of the world. Governments, however, usually resist such demands because they threaten the territorial integrity of the existing state.

1.3 Power, authority, legitimacy and influence

Power

Power is the ability to make another person or group do something, or refrain from doing something, whether they wish to or not. Power may rest on physical force, on wealth, on knowledge, on control of information, or on the capacity to reward and to punish. A gunman who robs a traveller on the highway has power over his victim, but he plainly has no right to it. A police officer who arrests a suspect also exercises power, yet in this second case the power is backed by law and the community accepts that the officer is entitled to use it. The difference between the two lies in the idea of authority.

Authority

Authority is power that is accepted as rightful. It is the recognised right to command and to be obeyed. When a head teacher tells pupils to go to their classrooms, they obey not because she can physically force them but because they accept that her office entitles her to give such instructions. The German sociologist Max Weber identified three pure types of authority, and the classification is a favourite of examiners.

- **Traditional authority** rests on custom and long-established practice. People obey because things have always been done in that way and because the ruler inherits a position hallowed by tradition. The authority of an emir, an oba, an obi or an ohi is of this kind. A king is obeyed because he occupies a throne that his ancestors occupied before him.
- **Charismatic authority** rests on the extraordinary personal qualities of a leader, such as heroism, eloquence, vision or a reputation for special gifts. Followers obey because they are devoted to the person. Historical examples include Nnamdi Azikiwe in his early nationalist years, Kwame Nkrumah, Nelson Mandela and Mahatma Gandhi. A weakness of charismatic authority is that it tends to fade, or to be disputed, when the leader dies.
- **Legal-rational authority** rests on laws and rules that define offices and the powers attached to them. People obey the holder of an office because the law gives that office the right to command, and not because of the person who happens to hold it. The authority of the President of Nigeria, a Governor, a judge or a civil servant is of this kind. When a president leaves office, his authority passes entirely to his successor.

Legitimacy

Legitimacy is the quality of being accepted by the governed as rightful and deserving of obedience. A government is legitimate when most citizens believe that it came to power in a proper way and that it exercises power in an acceptable way. Legitimacy may derive from fair

elections, from constitutional procedures, from tradition, from the performance of the government in delivering services, or from the leader's personal appeal. Legitimacy should be distinguished from **legality**. Legality means conformity to the written law; legitimacy means popular acceptance. A military regime that seizes power may later decree itself legal, but the majority of citizens may still regard it as illegitimate. Conversely, a government may be lawfully elected yet lose legitimacy if it rigs elections or governs with cruelty and corruption.

Governments that lack legitimacy must rely more heavily on coercion, and are therefore more likely to be unstable. This is one reason why coups d'état in Africa were often followed by promises to hand power back to civilians, and why even military rulers sought the approval of the people through national debates and transition programmes.

Influence

Influence is the ability to affect the decisions or actions of others without using force or the formal right to command. It works through persuasion, example, advice, reputation or the offer of benefits. A respected elder, a newspaper columnist, a religious leader or a large donor may influence the policy of a government without holding any official power. Pressure groups and lobbyists work chiefly through influence.

Key point. Power is the ability to compel; authority is the right to command; legitimacy is the acceptance of that right by the governed; influence is the ability to persuade without compelling. A ruler who has power without authority is a tyrant; a ruler who has authority without power is a figurehead.

1.4 Sovereignty

Sovereignty is the supreme and final power of a state to make and enforce laws within its territory, and to conduct its affairs without being subject to the commands of any outside authority. The word comes from the Latin *superanus*, meaning "supreme". The French thinker Jean Bodin gave the concept its modern form in the sixteenth century, and later writers such as Thomas Hobbes and John Austin elaborated it. The idea has two faces. **Internal sovereignty** means that within its territory the state's authority is supreme over all individuals and groups; no citizen, party, region or religious body may lawfully defy it. **External sovereignty** means that the state is independent of other states and equal to them in international law, free to make its own foreign policy and to enter or refuse treaties.

Writers also distinguish several kinds of sovereignty.

- **Legal sovereignty** is the supreme law-making power recognised by the constitution. In the United Kingdom it rests in the Queen or King in Parliament, which is why the doctrine is called parliamentary

sovereignty. In Nigeria the constitution itself is declared supreme by section 1 of the 1999 Constitution, so legal sovereignty is lodged in the constitution rather than in the legislature alone.

- **Political sovereignty** is the real power behind the law, namely the electorate and the forces that influence them, such as the press, trade unions and parties, whose will in the end determines what the legal sovereign decides.
- **Popular sovereignty** is the doctrine that ultimate authority belongs to the people, who delegate it to rulers and may withdraw it. The opening words of the Nigerian constitution, "We the people of the Federal Republic of Nigeria", express this idea, and section 14 states that sovereignty belongs to the people from whom the government derives its powers and authority.
- **De jure sovereignty** is sovereignty recognised by law, while **de facto sovereignty** is sovereignty actually exercised. A government that has overthrown a predecessor by force is de facto sovereign until the law or the international community recognises it as de jure.

Sovereignty is not unlimited in practice. A state may voluntarily limit its own freedom of action by signing treaties, by joining organisations such as the United Nations or the Economic Community of West African States (ECOWAS), or by accepting the decisions of the International Court of Justice. Federal states also divide internal sovereignty between the central and regional governments. Moreover, a weak state may find

that its real independence is restricted by dependence on foreign aid, debt or military assistance. These practical limits show that sovereignty is a legal principle which may be more or less complete in actual fact.

1.5 The concept of democracy

Democracy comes from two Greek words, *demos* (the people) and *kratos* (rule), and means rule by the people. In ancient Athens, under reforms associated with Cleisthenes around 508 BC, citizens gathered personally in an assembly to debate and vote on public matters. That arrangement is called **direct democracy**. It survives today in a few Swiss cantons and in the use of referendums, but it is impractical for large modern states. Most democracies are therefore **representative** (or indirect) democracies, in which citizens elect representatives who make decisions on their behalf. Abraham Lincoln's phrase, spoken at Gettysburg in 1863, that democracy is government of the people, by the people and for the people, remains the most widely quoted summary.

A working democracy is generally recognised by a cluster of features: regular, free and fair elections; universal adult suffrage; competition between political parties; respect for fundamental human rights and freedom of expression; the rule of law and an independent judiciary; accountability of rulers to the ruled; and the protection of minorities against the majority. Majority rule is an important democratic principle, but democracy is not simply majority rule, for a majority that crushes the rights of minorities has abandoned the spirit of the system.

The advantages claimed for democracy are that it provides a peaceful means of changing governments, makes rulers answerable to citizens, protects liberties, encourages participation and tends to produce policies that reflect the needs of the majority. Its disadvantages are that decision-making can be slow, that voters may be misled by propaganda or swayed by money and ethnic loyalty, that the rule of numbers can overlook expertise, and that it is expensive to operate. Nigeria's own experience, with periods of civilian democracy interrupted by military rule between 1966 and 1979 and again between 1983 and 1999, shows that democracy needs a supportive political culture, strong institutions and economic security if it is to endure.

1.6 Political ideologies

An **ideology** is a more or less coherent set of ideas and beliefs about how society is organised and how it ought to be organised, which guides the political action of those who hold it. Ideologies tell their followers what is wrong with the world, what an ideal society looks like and by what means it may be reached. The syllabus requires knowledge of the main ones.

Feudalism

Feudalism was the system of land-based social and political organisation that prevailed in medieval Europe, roughly from the ninth to the fifteenth century, and in forms in other places such as Japan. The king granted large estates to powerful lords in return for military service

and loyalty; the lords in turn granted portions to lesser vassals; and at the bottom of the pyramid peasants, called serfs, worked the land and were bound to it, receiving protection in return for labour and a share of the produce. Land was the basis of wealth and power, and political authority was personal and local. Elements of a feudal relationship have been observed in some parts of pre-colonial northern Nigeria, where the emir granted land and titles to office-holders in return for loyalty and tribute, though scholars debate how closely it resembled the European model.

Capitalism

Capitalism is an economic and political system based on private ownership of the means of production, distribution and exchange, with production for profit in a free market. Its main features are private property, competition, the profit motive, freedom of enterprise and consumer choice, and a limited role for government, which is expected to protect property and contracts and to prevent fraud rather than to run the economy. The classic theory was set out by Adam Smith in *The Wealth of Nations* (1776), which argued that individuals pursuing their own gain are guided, as though by an "invisible hand", to serve the general good. Capitalism produces wealth, innovation and consumer choice, but it also produces inequality, cycles of boom and slump, exploitation of workers in its harsher forms and neglect of those who cannot compete. The United States, Japan and the countries of Western Europe are capitalist, although most of them now temper the market

with welfare provisions. Nigeria operates a mixed economy with a strong tilt towards private enterprise since the economic reforms and privatisation programme which began in earnest in the late 1980s.

Socialism

Socialism is the ideology that holds that the principal means of production should be owned or controlled by the community as a whole, through the state or through cooperatives, so that wealth is shared more equally and production serves need rather than profit. Socialists stress equality, cooperation, planning and the provision of basic services such as education, healthcare and housing by the state. Early socialist thinkers included Robert Owen, Saint-Simon and Charles Fourier. Modern socialism takes many forms. **Democratic socialism** seeks to reach its goals gradually, through the ballot box and reform, and accepts a mixed economy; it is the tradition of the British Labour Party and of Scandinavian social democracy. Revolutionary socialism seeks a rapid overthrow of capitalism. African leaders such as Julius Nyerere of Tanzania, who promoted *Ujamaa* (familyhood) village socialism, and Kwame Nkrumah of Ghana, adopted socialist ideas suited, as they saw it, to African conditions.

Communism

Communism is the revolutionary form of socialism associated with Karl Marx and Friedrich Engels, whose *Communist Manifesto* appeared in 1848. Marx taught that history is a story of class struggle, in which the owners of the means of production (the *bourgeoisie*) exploit the

workers (the *proletariat*). He predicted that the workers would overthrow capitalism by revolution, set up a transitional "dictatorship of the proletariat", and eventually establish a classless, stateless society in which all property would be held in common, summed up in the formula "from each according to his ability, to each according to his needs". Vladimir Lenin adapted Marxism in Russia, where the Bolshevik revolution of 1917 produced the Soviet Union, which lasted until 1991. China, Cuba, Vietnam and North Korea are or were ruled by communist parties. In practice, communist states have generally been one-party states with state ownership and central planning, and have been criticised for suppressing personal freedom and for economic inefficiency.

Fascism and Nazism

Fascism is an extreme nationalist and authoritarian ideology that arose in Italy after the First World War under Benito Mussolini, who took power in 1922. It glorifies the nation and the state above the individual, demands total obedience to a single leader, relies on a single party, suppresses opposition and the free press, and often promotes militarism and aggressive expansion. The word comes from the Italian *fascio*, a bundle of rods bound together, symbolising strength through unity. **Nazism**, the German variant under Adolf Hitler from 1933, added a doctrine of racial supremacy and led to the persecution of Jews and other groups and to the Second World War. Both regimes were destroyed in 1945.

Totalitarianism and authoritarianism

Totalitarianism is a system in which the state seeks to control every aspect of public and private life, including the economy, education, the media, religion and even private thought, through a single party, a dominant ideology, secret police and propaganda. Stalinist Russia, Nazi Germany and present-day North Korea are the standard examples. **Authoritarianism** is a milder concept: the ruler or ruling group controls political life and tolerates no real opposition, but does not necessarily seek to control every part of society. Many military regimes in Africa were authoritarian. The common thread is that power is concentrated and not answerable to the people through free elections.

Welfarism and the welfare state

A **welfare state** is one in which the government accepts responsibility for the basic welfare of citizens by providing or subsidising healthcare, education, unemployment benefits, pensions and housing, financed by taxation. The idea stands between pure capitalism and socialism. Section 16 and other provisions in Chapter II of the Nigerian constitution commit the state to policies of this kind, although they are not enforceable in court.

Ideology	Ownership of means of production	Role of the state	Chief thinkers or examples
Capitalism	Private	Limited; protects property and contracts	Adam Smith; United States
Socialism	Collective or state	Large; planning and welfare	Owen, Nyerere; Tanzania under *Ujamaa*
Communism	Common ownership, no classes	Dominant under one party, then supposed to wither	Marx, Engels, Lenin; USSR, China
Fascism	Private but under state direction	Total, led by one leader and one party	Mussolini; Italy 1922-1943
Feudalism	Land held by lords, worked by serfs	Local and personal	Medieval Europe

1.7 Worked examples

WORKED EXAMPLE 1.1

A man who was never elected and who commands a private gang forces the traders of a market to pay him weekly "protection fees". A police inspector, acting under the Police Act, arrests the man. Compare the position of the two men in terms of power and authority.

Solution: The gang leader has *power*, since the traders pay because they fear him, but he has no *authority*, because the traders do not accept his right to command and the law does not give it to him. His position rests on coercion alone. The police inspector also has power, because he can compel the man to go with him, but his power is backed by law, and the community accepts it as rightful. He therefore has *legal-rational authority*. The inspector's authority derives from his office and not from his personal qualities, and it would pass to another officer who took over his post.

WORKED EXAMPLE 1.2

The people of the Kingdom of Lesotho speak one language and share one culture; they also live inside a single independent country. Is Lesotho best described as a nation, a state, or a nation-state? What word would you use for the Igbo people of Nigeria?

Solution: Lesotho is independent, has a defined territory and a government, and nearly all its people share one identity, so it is a *nation-state*: the boundary of the state coincides with the boundary of the nation. The Igbo are a *nation* in the cultural sense (or an ethnic group) because they share language, history and a sense of belonging, but they have no state of their own; they are citizens of the multi-national state of Nigeria.

WORKED EXAMPLE 1.3

A civilian government wins an election that international observers declare free and fair. After two years it is accused of massive corruption, ignores court orders and uses security agencies to harass critics, and most citizens now say that it does not deserve to rule. Discuss the government's legality and legitimacy.

Solution: Legality is the conformity of a government's origin and acts to the law. The government came to power through a lawful election, so its original *legality* is secure, and it had full *legitimacy* at the time of its election. Legitimacy, however, depends on continuing popular acceptance. By ignoring court orders it is also breaching the law, so even its legality is now in question. By corruption and repression it has lost the confidence of the governed, so its *legitimacy* has declined sharply. The case shows that legitimacy can be lost even when the government remains legally in office.

WORKED EXAMPLE 1.4

Identify the type of authority in each case: (a) the Sultan of Sokoto is obeyed by many Muslims in northern Nigeria as spiritual leader; (b) the Comptroller-General of Customs gives instructions to officers; (c) thousands of followers obey a young preacher because of his remarkable speeches and miracles.

Solution: (a) The Sultan's position is inherited through a long-established dynasty and sanctified by custom, so the authority is *traditional*. (b) The Comptroller-General's right to command comes from the law that created his office, so it is *legal-rational*. (c) The preacher's hold on his followers comes from his personal gifts and not from tradition or law, so it is *charismatic*.

1.8 Practice

Exercise 1.1

1. Define government in the two senses in which the word is used, and say how a government differs from a state.
2. Which of the following is not an element of a state? (a) population (b) territory (c) a national anthem (d) sovereignty.
3. Power which is accepted as rightful by the governed is called (a) influence (b) coercion (c) authority (d) propaganda.
4. Distinguish between a nation and a state, giving one Nigerian and one non-Nigerian illustration.

5. Max Weber's three pure types of authority are traditional, charismatic and _____.
6. Explain the difference between legality and legitimacy with an example of a government that is legal but not legitimate.
7. A system in which the state owns or controls the main means of production in order to distribute wealth more equally is known as (a) capitalism (b) feudalism (c) socialism (d) fascism.
8. The doctrine that ultimate political authority rests with the people is known as (a) popular sovereignty (b) legal sovereignty (c) divine right (d) parliamentary supremacy.
9. Name the authors of the *Communist Manifesto* and state the year of its publication.
10. State four features of a working representative democracy.
11. Distinguish between totalitarianism and authoritarianism, and give one example of totalitarian rule.
12. Explain two ways in which the sovereignty of a modern state may be limited in practice.

Answers to Exercise 1.1

1. Government means (i) the process of governing and (ii) the institutions and persons who exercise authority; the state is the permanent political community, while a government is its temporary agent and can change.

2. (c): the four elements are population, territory, government and sovereignty; an anthem is a symbol and not an essential element.
3. (c) authority: rightful power is authority.
4. A nation is a people with shared identity and sentiment; a state is a legal-political entity with population, territory, government and sovereignty. The Yoruba are a nation; Nigeria is a state; Japan is a nation-state.
5. Legal-rational.
6. Legality is conformity to the law; legitimacy is popular acceptance. A government elected through a rigged poll but declared winner by the electoral body is legal on paper but lacks the people's acceptance.
7. (c) socialism, which involves collective ownership of the main means of production.
8. (a) popular sovereignty.
9. Karl Marx and Friedrich Engels; 1848.
10. Any four: free and fair periodic elections; universal adult suffrage; competing political parties; rule of law; independent judiciary; protection of human rights and minorities; accountability of rulers; freedom of the press.
11. Totalitarianism seeks control over every part of public and private life through a single party, ideology and propaganda (for example Nazi Germany); authoritarianism concentrates political power without necessarily controlling the whole of society.
12. Any two: treaty obligations or membership of bodies like the UN and ECOWAS; dependence on foreign aid or loans; decisions of the International Court of Justice; division of power in a federation.

Exercise 1.2

1. Distinguish between power and influence with an example of each in a Nigerian setting.
2. Who propounded the theory of capitalism in *The Wealth of Nations*? (a) Karl Marx (b) Adam Smith (c) Jean Bodin (d) John Locke.
3. A king obeyed because his ancestors were obeyed before him exercises which type of authority?
4. Why is Nigeria regarded as a multi-national state and not a nation-state?
5. Distinguish between internal and external sovereignty.
6. In which system do serfs work the land of a lord in return for protection?
7. Name two advantages and two disadvantages of democracy.
8. Explain the term "dictatorship of the proletariat".
9. Which of the following is the best example of charismatic authority? (a) a judge (b) a civil servant (c) a revered nationalist whose speeches inspire loyalty (d) a hereditary chief.
10. Why are governments that lack legitimacy usually unstable?

Answers to Exercise 1.2

1. Power is the ability to compel, as when the police arrest a suspect; influence is persuasion without compulsion, as when a respected elder advises a governor.
2. (b) Adam Smith.
3. Traditional authority.
4. It contains over 250 ethnic groups within colonially drawn borders, so its boundary does not coincide with a single nation.
5. Internal sovereignty is the supremacy of the state over all persons and groups within its territory; external sovereignty is independence from control by other states.
6. Feudalism.
7. Advantages: peaceful change of government; accountability of rulers. Disadvantages: slow decisions; voters can be misled; it is costly.
8. In Marxist theory, the transitional stage after the workers' revolution in which the proletariat holds power and suppresses the old ruling class before a classless society is reached.
9. (c).
10. They must depend on force rather than consent, which breeds resistance, coups and unrest.

Chapter summary

- Government means both the activity of governing and the institutions that govern; the state is the permanent community, the government its temporary agent. Politics is the struggle over how power and resources are used.
- A society is an organised group living together; a nation is a people with a shared sense of identity; a state is a legal entity with population, territory, government and sovereignty; a nation-state is one in which the state and the nation coincide.
- Power is the capacity to compel; authority is power accepted as rightful. Weber's three types are traditional, charismatic and legal-rational. Legitimacy is popular acceptance of a government's right to rule, and differs from legality.
- Sovereignty is supreme and final power. It has internal and external aspects and appears as legal, political, popular, de jure and de facto forms, and is limited in practice by treaties, membership of organisations and dependence.
- Democracy is rule by the people, exercised directly or through representatives, and is marked by free elections, rule of law, rights and accountability.
- Major ideologies include feudalism, capitalism, socialism, communism, fascism, totalitarianism and welfarism, each with a different view of property, the role of the state and the place of the individual.

Chapter 2: The State and the Constitution

Chapter 1 introduced the central vocabulary of political study: government, power, authority, sovereignty and democracy. We now turn to the institution that holds all of these together, the **state**, and to the document that organises its powers, the **constitution**. Almost every other topic in the Government syllabus, from the separation of powers to federalism and from elections to citizens' rights, rests on a clear understanding of what a state is and how a constitution limits those who govern it.

Examiners return to this area year after year. Candidates are asked to list the essential elements of a state, to distinguish a state from a nation or a government, to contrast written and unwritten constitutions, flexible and rigid ones, and to explain the meaning and importance of the rule of law, constitutionalism and the supremacy of the constitution. This chapter treats each of these with full explanation, worked examples and practice questions.

2.1 The state: meaning and essential elements

A **state** is a politically organised community occupying a defined territory, with a permanent population, an effective government, and sovereignty. The word is often used loosely in Nigeria, where we speak of Kano State or Rivers State; in political science, however, the state is

the sovereign entity that is recognised in international law, such as the Federal Republic of Nigeria, the Republic of Ghana or the Republic of South Africa. The units of a federation (Kano, Rivers and so on) are better called *component units* or *federating units*, because they do not possess sovereignty.

Four elements are traditionally regarded as essential, and an entity that lacks any one of them is not a full state.

- **Population.** There must be people. A barren island with no inhabitants cannot be a state. There is no fixed minimum size: China has more than a billion people while Nauru and Tuvalu have only a few thousand, yet both are states. The population must also be permanent; a group of travelling merchants or a wandering band does not make a state.
- **Defined territory.** The state exercises authority over a definite geographical area, including the land, the rivers and lakes within it, its territorial waters and the airspace above. Nigeria's boundaries, for example, are fixed by treaty and by the colonial agreements that preceded independence. A territory need not be large or perfectly settled in every border, but it must be reasonably identifiable.
- **Government.** There must be an organised machinery which makes laws, enforces them and settles disputes, and which speaks for the state both at home and abroad. A government may change from a civilian to a military regime or from one party to another without the state ceasing to exist. The government is therefore temporary, while the state is permanent.

- **Sovereignty.** The state must possess supreme legal authority within its territory, free of outside control, and must be independent externally. This is the element that separates a state from a colony, a protectorate or a province. Nigeria before 1 October 1960 had a population, a territory and a government, but the final authority belonged to Britain, and so Nigeria was not yet a sovereign state.

> **Key point.** The four elements of a state are population, territory, government and sovereignty. Many textbooks and the UTME also accept recognition by other states as a practical requirement for taking a place in the international community. Memorise the four elements first; mention recognition as an additional point.

State, nation, society and government compared

These four terms are frequently confused. The table summarises the differences.

Term	Basic meaning	Nature
State	A sovereign political community with territory, people and government	Legal and political; permanent
Nation	A group of people who share a sense of common identity, history, language, culture or destiny	Psychological and cultural; may cross state borders
Society	A group of people living together and bound by shared institutions and relationships	Social; broader than the state
Government	The people and institutions that exercise state power at a given time	Agency of the state; temporary and changeable

A nation can exist without a state: the Kurds are a people with a strong national consciousness, but they are spread across several states and have no state of their own. A state may contain many nations: Nigeria contains Hausa, Yoruba, Igbo, Ijaw, Kanuri, Tiv, Efik and hundreds of other ethnic nationalities, which is why we describe Nigeria as a *multi-national state*. A nation-state, in which the boundaries of the nation and the state broadly coincide, is exemplified by countries such as Japan or Somalia, though no state is perfectly homogeneous.

2.2 Origin of the state

Philosophers have long asked how the state came about. Several theories compete, and each captures part of the truth. The UTME syllabus expects you to know the main theories, their proponents and their weaknesses.

The divine right theory

This theory teaches that the state and its ruler are established by God. The king rules by divine appointment and is accountable to God alone, so disobedience to the monarch is a sin as well as a crime. It was popular in medieval Europe, in ancient Egypt where the pharaoh was a living god, and in the Japanese tradition of the divine emperor. In the Nigerian setting, a comparable idea is found in the sacred status of some traditional rulers, such as the Ooni of Ife and the Oba of Benin, whose offices are linked with ancestral and spiritual legitimacy. Its weakness is that it cannot be tested and has been used to defend tyranny.

The force theory

According to the force theory, the state emerged through conquest. A strong group subdued weaker groups and established a permanent system of rule over them. Evidence includes the empires of the past, such as the Oyo and Songhai empires and the Fulani jihad of 1804, which founded the Sokoto Caliphate by force of arms. Its weakness is that force alone cannot explain why states endure; rulers who rely only on coercion are soon overthrown unless they also secure consent and legitimacy.

The social contract theory

This theory holds that the state is the product of an agreement among free individuals who lived originally in a "state of nature", without government. The three major thinkers differ about what that state of nature was like.

- **Thomas Hobbes** (*Leviathan*, 1651) argued that life in the state of nature was "solitary, poor, nasty, brutish and short", a war of all against all. To escape, people surrendered all their rights to an absolute sovereign, who must keep the peace. Hobbes therefore supported strong, even absolute, government.
- **John Locke** (*Two Treatises of Government*, 1690) believed that the state of nature was relatively peaceful but insecure, since there was no impartial judge. People contracted to form a government to protect their natural rights to life, liberty and property. If the government violated these rights, the people could remove it. Locke is therefore the philosopher of limited government and of the right to resist.
- **Jean-Jacques Rousseau** (*The Social Contract*, 1762) held that people were originally free and good but were corrupted by private property and society. The contract creates a community governed by the *general will*, in which sovereignty rests with the people themselves. Rousseau inspired modern democratic and republican ideas.

The weakness of the social contract is that there is no historical record of any such agreement; the theory is best seen as a way of justifying why government deserves obedience.

The evolutionary (natural or historical) theory

This view, associated with Aristotle, who called man a "political animal", holds that the state grew gradually and naturally out of the family. Families grew into clans, clans into tribes, tribes into villages and city-states, and finally into larger states. Evolutionary explanations are the most widely accepted by scholars today because they match what we know of social history, including the growth of the Yoruba city-states from lineages and the Hausa city-states from settlements around markets and walled towns.

The Marxist theory

Karl Marx and Friedrich Engels argued that the state arose when society divided into economic classes after the introduction of private property. The state, they said, is an instrument by which the dominant class (the owners of the means of production) oppresses the working class. They predicted that the state would eventually "wither away" in a classless communist society. Critics point out that many states appear to serve general public purposes as well as class interests.

WORKED EXAMPLE 2.1

A passage reads: "People gave up their freedom to one powerful ruler because life without government was a constant war in which every person was an enemy of every other person." Name the thinker and the theory.

Solution: A "war of all against all" and the surrender of all rights to a powerful ruler are the central ideas of Thomas Hobbes, who set them out in *Leviathan*. The theory is the social contract theory, in its Hobbesian form, which supports absolute government. Locke would have rejected the absolute ruler, since for him the contract was limited and revocable.

2.3 Functions of the state

The modern state performs a wide range of functions, which can be grouped as follows.

- **Maintenance of law and order.** The state protects life and property through the police, the courts and the prisons, and enforces contracts.
- **Defence against external aggression.** It raises and maintains the armed forces, defends the borders and conducts diplomacy.
- **Provision of social services.** Education, hospitals, roads, water and electricity are provided or regulated by the state.

- **Economic regulation and development.** The state plans the economy, controls money and credit, collects taxes, protects consumers and promotes industry and agriculture.
- **Dispensing justice.** It settles disputes impartially through the judicial system and punishes offenders.
- **Protecting citizens' rights and welfare.** The state guarantees fundamental freedoms and provides for the vulnerable, such as the aged, the disabled and the unemployed.
- **Representing the country abroad.** It signs treaties, joins international organisations and negotiates trade.

Political ideologies disagree about how far the state should go. Liberal and capitalist thinkers prefer a small state confined to security and justice; socialists prefer a state that owns or directs major industries. Whatever the ideology, the core functions of order, defence and justice are universal.

2.4 The constitution: meaning and functions

A **constitution** is the body of fundamental rules, written or unwritten, which establishes the organs of government, defines their powers and the relations between them, and sets out the rights and duties of citizens. It is the supreme law of the land: any other law that conflicts with it is invalid to the extent of the conflict. Section 1(3) of the 1999 Constitution of the Federal Republic of Nigeria states exactly this,

declaring that if any other law is inconsistent with the Constitution, the Constitution prevails and the other law shall be void to the extent of the inconsistency.

The main functions of a constitution are:

- to create the institutions of government (the legislature, executive and judiciary) and to distribute powers among them;
- to limit government power and so prevent abuse and arbitrary rule;
- to guarantee the fundamental rights and freedoms of citizens;
- to lay down the procedure for choosing and removing office holders;
- to define citizenship and the relationship between the citizen and the state;
- to provide a framework for peaceful settlement of disputes and orderly change, including its own amendment;
- in federal states, to divide power between the central government and the component units;
- to state the aims and ideals of the society, as in Chapter II of the Nigerian Constitution, the Fundamental Objectives and Directive Principles of State Policy.

2.5 Sources of a constitution

The rules that make up a constitution are drawn from several sources. In Nigeria and elsewhere these include:

- **Customs and traditions.** Long-established practices that are accepted as binding, such as the British convention that the monarch gives assent to bills passed by parliament.
- **Statutes and decrees.** Acts of the legislature or decrees of a military government dealing with constitutional matters, such as the Independence Constitution given force by the Nigeria (Constitution) Order in Council 1960.
- **Judicial precedents.** Decisions of superior courts that interpret the constitution and become binding on lower courts.
- **Constitutional conferences and commissions.** The 1978 Constituent Assembly and the 1994-95 National Constitutional Conference produced draft provisions.
- **Written documents and treaties.** Charters, agreements and international treaties that the state adopts, for example the African Charter on Human and Peoples' Rights, which Nigeria has domesticated.
- **Experience of other countries.** The 1979 Constitution borrowed the presidential system from the United States, and the idea of a bill of rights from several earlier constitutions.
- **Religion and morality.** Religious law is a source of the Sharia penal codes adopted by some northern states, within the limits set by the Constitution.

2.6 Types and classification of constitutions

Written and unwritten constitutions

A **written constitution** is contained mainly in one formal document or a few closely related documents, drafted deliberately and adopted at a definite time. The United States Constitution of 1787 and the Nigerian Constitution of 1999 are examples. An **unwritten constitution** is not found in one document but is spread across statutes, conventions, judicial decisions and customs. The best-known example is the constitution of the United Kingdom. The word "unwritten" is slightly misleading, because much of the British constitution is in fact written in Acts of Parliament such as Magna Carta (1215) and the Bill of Rights (1689); it is simply not codified in a single text. For this reason, many authors prefer the terms *codified* and *uncodified*.

Written constitution	Unwritten constitution
Contained in a single document	Scattered across statutes, conventions and decisions
Rights are clearly stated and easy to enforce	Rights depend on the courts and conventions
Usually rigid	Usually flexible
Citizens can easily read it	Hard for ordinary people to know fully
Examples: Nigeria, USA, India, Ghana	Example: United Kingdom (also New Zealand, Israel)

Flexible and rigid constitutions

A **flexible constitution** can be amended by the ordinary legislative process, by the same procedure used to pass ordinary laws. The British Parliament can change any part of the constitution by a simple majority. A **rigid constitution** requires a special, more difficult procedure for amendment, such as a two-thirds majority and the approval of the component units. Under section 9 of the 1999 Constitution, an amendment requires a two-thirds majority in both the Senate and the House of Representatives, and approval by resolution of the Houses of Assembly of not less than two-thirds of the states (that is, at least 24 of the 36 states). Nigeria's constitution is therefore rigid.

Key point. Written and unwritten describe the *form* of a constitution. Flexible and rigid describe the *ease of amendment*. They are different classifications. A constitution can be written and flexible (for example, the old Constitution of Italy under the Statuto Albertino) or unwritten and flexible (the United Kingdom).

Flexible	Rigid
Easy to amend; adapts quickly to change	Difficult to amend; stable and protected from hasty changes
May be changed by a ruling party for selfish gain	Protects minorities and states from sudden changes
Little distinction between constitutional and ordinary law	Constitution is clearly superior to ordinary law
Example: United Kingdom	Example: Nigeria, United States

Other classifications

A constitution may also be described as **federal** or **unitary** according to the arrangement of power between levels of government, and as **presidential** or **parliamentary** according to the relationship between the executive and the legislature. These are treated in Chapter 3.

2.7 Features of a good constitution

A well-made constitution usually displays several qualities:

- **Clarity.** It should be written in clear language so that citizens and officials understand it.
- **Comprehensiveness.** It should cover the main areas of government, and also be able to deal with new conditions.
- **Appropriate flexibility.** It should be hard enough to amend to ensure stability but not so hard that it cannot grow.
- **Acceptability.** It should reflect the history, values and aspirations of the people, which is why legitimacy is greater when the people are

involved in making it.

- **Protection of rights.** It should guarantee fundamental rights and provide a means of enforcing them.
- **Separation of powers and checks.** It should disperse power so that no organ dominates others.
- **Independent judiciary.** There must be a body that can interpret and defend the constitution.
- **Supremacy.** It should be recognised as superior to all other laws.

2.8 Constitutionalism, the rule of law and supremacy of the constitution

Constitutionalism

Constitutionalism is the principle that government authority is derived from, and limited by, a body of fundamental law. It is the idea that those who govern must obey the same rules that they apply to others. A country can have a constitution without practising constitutionalism: military regimes which suspend the constitution, or civilian rulers who ignore court orders, may still possess a constitutional document. Constitutionalism, then, is the *practice* of limited government, and a constitution is the *text*.

The rule of law

The phrase was popularised by the British jurist A. V. Dicey in his *Introduction to the Study of the Law of the Constitution* (1885). He gave three meanings:

- **Supremacy of the law.** No person may be punished except for a breach of law established in the ordinary courts. There is no arbitrary power; the government itself acts according to law.
- **Equality before the law.** Every person, whatever his rank, is subject to the ordinary law and the ordinary courts. A governor, a minister, a policeman or a market woman answers to the same law.
- **The constitution as a result of ordinary law.** Rights of individuals arise from court decisions in particular cases, rather than being granted by a charter.

Conditions which support the rule of law include an independent judiciary, a free press, an educated population, respect for human rights, a free bar association and a government that is willing to obey court orders. Threats include military intervention, executive disobedience of court judgments, corruption among judges, delays in the courts (justice delayed is justice denied), and the use of state security agencies to intimidate opponents. Under the rule of law, an arrest must follow due process, an accused is presumed innocent until proved guilty, and there is a right to a fair hearing, which is guaranteed by section 36 of the Nigerian Constitution.

Supremacy of the constitution

Because the constitution is the highest law, every act of government is measured against it. Courts exercise the power of **judicial review**, by which they may declare laws and executive actions unconstitutional, null and void. The Nigerian courts have done this on numerous occasions, for example by striking down state laws which conflicted with federal powers. Section 1(2) also provides that the Federation shall not be governed, nor shall any person or group of persons take control of the government, except in accordance with the provisions of the Constitution.

2.9 Amendment and the Nigerian Constitution

The 1999 Constitution has 320 sections and seven Schedules, and begins with a statement that the Federal Republic of Nigeria is one indivisible and indissoluble sovereign state to be known by the name of the Federal Republic of Nigeria. Its early chapters cover, in turn: general provisions (Chapter I); the Fundamental Objectives and Directive Principles of State Policy (II); citizenship (III); fundamental rights (IV); the Legislature (V); the Executive (VI); and the Judicature (VII), with later provisions dealing with the Federal Capital Territory, the public service, the armed forces and other special bodies. Details of the legislative, executive and judicial organs are examined in Chapter 4 of this book.

Chapter II, the Fundamental Objectives and Directive Principles of State Policy, is worth special attention. It states ideals such as the promotion of national unity, social justice, free education at all levels, and the

harnessing of natural resources for the common good. However, under section 6(6)(c), these provisions are **non-justiciable**: the courts cannot compel the government to carry them out. This stands in contrast to the Chapter IV rights, which are enforceable in court.

WORKED EXAMPLE 2.2

The Senate of a federation has 109 members. A proposed amendment of the constitution is voted on in the Senate and 70 senators vote in favour, 39 against. Is the first condition for amendment satisfied if a two-thirds majority is required?

Solution: Two-thirds of 109 = 2/3 × 109 = 72.67. Since a whole number of senators must vote, at least 73 votes are needed. Since 70 < 73, the two-thirds requirement is not met and the bill fails at this stage. (Check: 70/109 = 64.2%, which is less than 66.7%.)

WORKED EXAMPLE 2.3

An amendment bill passes both houses of the National Assembly by the required majority. For it to take effect, how many of Nigeria's 36 state Houses of Assembly must approve it, and why does this requirement exist?

Solution: At least two-thirds of the states must approve. Two-thirds of 36 = 24. So 24 state Houses of Assembly must pass resolutions approving the amendment. The requirement exists because Nigeria is a federation: the states, as federating units, must have a voice in changing the basic law that defines their powers. It also makes the constitution rigid, protecting it from hasty change by the federal legislature alone.

WORKED EXAMPLE 2.4

A governor orders the arrest and detention of a journalist for a critical article, and refuses to produce him in court despite a court order. Which principles of constitutional government are violated?

Solution: (i) The *rule of law*, because the governor is acting arbitrarily and above the law; (ii) *constitutionalism*, since the governor is defying the limits set on his powers; (iii) the fundamental right to personal liberty and to freedom of expression under Chapter IV; (iv) the *independence and authority of the judiciary*, since a court order is disobeyed; and (v) the principle of *supremacy of the constitution*, since the actions go against its provisions.

WORKED EXAMPLE 2.5

Distinguish between a flexible and a rigid constitution and say into which category the British and Nigerian constitutions fall.

Solution: A flexible constitution can be changed by the ordinary law-making procedure, so no special majority or approval is required. A rigid constitution can be changed only by a special, stricter procedure. The British constitution is flexible because Parliament may amend any part by simple majority, while the Nigerian constitution is rigid, requiring a two-thirds majority in both chambers of the National Assembly and approval by at least 24 of the 36 states.

2.10 Practice

Exercise 2.1

1. Which of the following is NOT an essential element of a state? (A) Population (B) Sovereignty (C) Political party (D) Territory
2. The sovereign power of the state is exercised on its behalf by the (A) nation (B) government (C) society (D) community.
3. The thinker who described life in the state of nature as "solitary, poor, nasty, brutish and short" was (A) Locke (B) Rousseau (C) Hobbes (D) Marx.
4. According to John Locke, the main purpose of government is (A) to maintain an absolute ruler (B) to protect natural rights to life, liberty and property (C) to promote class struggle (D) to extend the territory.
5. A constitution that is contained in a single document is described as (A) unwritten (B) flexible (C) written (D) unitary.
6. The British constitution is best described as (A) written and rigid (B) unwritten and flexible (C) written and flexible (D) unwritten and rigid.
7. Name the theory which holds that the state arose out of conquest, and give one weakness of it.
8. List four functions of a constitution.
9. State Dicey's three meanings of the rule of law.

10. Explain why a nation is not the same thing as a state, giving a Nigerian illustration.
11. Under the 1999 Constitution, how many state Houses of Assembly must approve an amendment passed by the National Assembly?
12. Why are the provisions of Chapter II of the 1999 Constitution described as non-justiciable?

Answers to Exercise 2.1

1. (C). A political party is an institution within a state, not an essential element of it.
2. (B). Sovereignty belongs to the state but is exercised by the government.
3. (C). This is Hobbes' description in Leviathan.
4. (B). Locke argued that government exists to protect natural rights.
5. (C). A written constitution is in one formal document.
6. (B). It is uncodified and may be amended by ordinary Acts.
7. The force theory; weakness: coercion alone cannot explain why states last without consent and legitimacy.
8. Any four of: creating organs of government, limiting power, guaranteeing rights, defining citizenship, stating the procedure for choosing office holders, dividing power in a federation, providing for amendment.
9. Supremacy of the law (no arbitrary power), equality before the law, and the constitution as a product of ordinary law and court

decisions.

10. A nation is a group sharing a cultural identity while a state is a legal political entity; Nigeria is one state made up of many nations, for example Hausa, Yoruba and Igbo.
11. At least two-thirds of 36 = 24 Houses of Assembly.
12. Because section 6(6)(c) forbids courts from enforcing them; they are guidelines for government rather than legal rights.

Exercise 2.2

1. The 1999 Constitution has how many Schedules? (A) Five (B) Six (C) Seven (D) Eight
2. Which writer defended the divine right of kings? (A) Sir Robert Filmer (B) Karl Marx (C) Locke (D) Rousseau
3. Judicial review is the power of the courts to (A) make laws (B) declare laws and acts unconstitutional (C) elect the President (D) appoint ministers.
4. The general will is a central idea in the writings of (A) Hobbes (B) Aristotle (C) Rousseau (D) Dicey.
5. Constitutionalism means (A) having a written constitution (B) government limited by the constitution (C) military rule (D) one-party rule.
6. A Senate has 109 members and the constitution needs a two-thirds majority. What is the smallest number of votes that passes the amendment?

7. Explain the difference between constitutionalism and a constitution.
8. Give four conditions necessary for the rule of law to flourish.
9. State three sources of the Nigerian constitution.
10. Why is the government regarded as temporary and the state as permanent?

Answers to Exercise 2.2

1. (C). The 1999 Constitution has seven Schedules.
2. (A). Filmer wrote Patriarcha in defence of divine right monarchy.
3. (B). Judicial review lets courts invalidate unconstitutional laws.
4. (C). Rousseau's Social Contract rests on the general will.
5. (B). Authority is derived from and limited by fundamental law.
6. 2/3 × 109 = 72.67, so 73 votes.
7. A constitution is the document or body of rules; constitutionalism is the practice of respecting the limits it sets on those who govern.
8. Independent judiciary, free press, respect for human rights, educated and vigilant citizens, obedience of government to court orders.
9. Any three of: statutes and decrees, judicial precedents, conventions and customs, constituent assemblies and conferences, treaties, experience from other countries.

10. Governments change through elections, coups or resignation while the state, with its territory, people and sovereignty, continues to exist.

Chapter summary

- A state has four essential elements: population, defined territory, government and sovereignty; it is distinct from the nation, society and government.
- Main theories of the origin of the state are the divine right, force, social contract (Hobbes, Locke, Rousseau), evolutionary and Marxist theories.
- The functions of the state include order, defence, justice, social services, economic regulation and protection of rights.
- A constitution is the supreme law that creates and limits government, protects rights and defines citizenship; its sources include customs, statutes, judicial decisions, conferences and treaties.
- Constitutions are classified as written or unwritten, and flexible or rigid. Nigeria's is written and rigid; Britain's is unwritten and flexible.
- Constitutionalism, the rule of law (Dicey) and constitutional supremacy ensure that rulers are bound by the law.
- Amendment of the 1999 Constitution requires a two-thirds majority in both houses of the National Assembly and approval

by at least 24 of the 36 states.

- Chapter II principles are non-justiciable, while Chapter IV fundamental rights are enforceable in the courts.

Chapter 3: Systems and Forms of Government

Every state must decide how its power will be arranged, who will hold it and by what means. Different societies have answered these questions in different ways, and the many answers give us the classification of governments studied in this chapter. We examine governments according to the distribution of power between the centre and the regions (unitary, federal and confederal), the relationship between the executive and the legislature (presidential and parliamentary), the identity of the ruler (monarchy and republic), and the degree to which citizens take part (democracy, oligarchy, dictatorship and their relatives).

Questions in this area are among the most predictable in the UTME. Candidates are asked to identify features of the presidential and parliamentary systems, to state merits and demerits of unitary and federal governments, to distinguish absolute from constitutional monarchies, and to name countries that practise a particular system. The chapter provides all of these in a form that can be learned and applied.

3.1 Why governments differ

No system of government is perfect or suitable for every country. The choice of system depends on history, the size and diversity of the population, the level of education, the strength of institutions, and the aspirations of the people. A small, culturally uniform country may

govern itself well through a centralised unitary system, while a large, diverse country like Nigeria or India, where many ethnic groups must be accommodated, tends toward federalism. Therefore, when answering a question on merits and demerits, always state the reasoning and relate it to the circumstances of the country concerned.

3.2 Classification by distribution of power: unitary, federal and confederal systems

The unitary system

In a **unitary system**, all legal power is concentrated in the central government. Regional or local authorities may exist, but they derive their powers from the centre, which may enlarge, reduce or abolish them. There is a single legislature with supreme law-making power, a single constitution and usually a single judicial hierarchy. Examples include the United Kingdom, France, Ghana, Kenya, Japan and Nigeria under military rule and under the 1966 Unification Decree (Decree No. 34).

Merits:

- It is cheaper to run, because there is no duplication of legislatures, ministries and officials.
- Decisions are taken quickly, since power is not shared and policy is uniform across the country.

- It encourages national unity and a common national identity, because regional loyalties are reduced.
- It avoids conflicts between central and regional governments over jurisdiction.
- It is well suited to small and homogeneous countries and to times of emergency.

Demerits:

- It can produce an over-powerful centre and dictatorship.
- Remote regions may feel neglected and may not be adequately represented.
- It is unsuitable for large and diverse countries, because it may marginalise minority groups.
- Local initiative is discouraged, and the central government may be overloaded.
- Policies may be insensitive to local needs.

The federal system

In a **federal system**, power is constitutionally divided between a central (federal) government and component units (states, provinces or regions), each of which is supreme within its own sphere and neither of which can alter the arrangement unilaterally. The division is protected by a written, rigid constitution and enforced by a supreme or constitutional court. Federal states include Nigeria, the United States, Canada, India, Brazil,

Germany, Australia and Ethiopia. Federalism is examined more fully in Chapter 9; here we note its main features and weighing of merits and demerits.

Features:

- two or more levels of government, each with its own area of authority;
- a written, rigid constitution defining the division of powers;
- a judiciary (usually a supreme or constitutional court) that settles disputes between the levels;
- a bicameral legislature at the centre, with the upper house representing the units equally;
- a division of revenue between the levels of government.

Merits:

- It accommodates diversity by allowing ethnic, religious and linguistic groups to preserve their identity within a larger union.
- It brings government closer to the people and encourages local initiative.
- It prevents the abuse of power by dividing it.
- It allows the units to experiment with different policies, in what has been called the laboratory of democracy.
- It reduces the burden on the central government.
- It makes large countries easier to administer.

Demerits:

- It is expensive, because of duplicated institutions and officials.
- It may weaken national unity by encouraging regional or ethnic loyalties and even secession.
- Conflicts over jurisdiction and revenue are frequent and slow decision-making.
- Policies and standards may vary between the units, causing inequality.
- Rich units may dominate poor ones, and poor units may become dependent on the centre.

The confederal system

A **confederation** is a loose association of independent sovereign states that come together for limited purposes such as defence, trade or foreign policy. The central authority is weak: it is created by the member states, depends on them for funds and cannot enforce decisions directly on citizens. Members retain sovereignty and usually the right to withdraw. Historical examples include the United States under the Articles of Confederation (1781-1789), Switzerland before 1848 and the Confederate States of America. Modern bodies such as the Commonwealth of Independent States and, in some respects, the European Union and the Senegambia Confederation (1982-1989, between Senegal and The Gambia) have confederal features. The principal weakness of confederation is instability, which is why most have either broken apart or become federations.

Feature	Unitary	Federal	Confederal
Sovereignty	Central government	Shared by constitution	Member states
Power of centre	Supreme	Limited by constitution	Weak
Status of units	Created by centre	Constitutionally protected	Sovereign
Right to secede	None	Usually none	Usually yes
Examples	Britain, France, Ghana	Nigeria, USA, India	Early USA, Switzerland before 1848

3.3 Classification by executive-legislative relations: presidential and parliamentary systems

The presidential system

In a **presidential system**, the president is both head of state and head of government and is elected directly by the people (or through an electoral college) for a fixed term. The executive and the legislature are separately elected and are independent of each other. The United States, Nigeria (since 1979), Ghana, Kenya, Brazil and Mexico have presidential systems.

Characteristics:

- The president is both ceremonial and effective head, uniting the functions of head of state and head of government.
- There is a clear separation of powers, and members of the executive cannot normally sit in the legislature.
- The president has a fixed tenure (in Nigeria, four years, renewable once, giving a maximum of eight years) and cannot be removed by the legislature except by impeachment for grave misconduct.
- The president appoints ministers (in Nigeria, with Senate confirmation) and may dismiss them. They are accountable to the president, not to the legislature.
- There is a system of checks and balances.
- The president is not a member of the legislature and cannot dissolve it.

Merits: it provides stability and continuity because of the fixed tenure; there is a clear leader and effective, quick decisions; ministers may be appointed from outside the legislature on merit; the separation of powers protects liberty; and the people choose the head of the executive directly.

Demerits: it may lead to deadlock when the president and legislature disagree, especially when different parties control each; it may produce a powerful, even dictatorial, president; it is costly; it is difficult to remove an unpopular or incompetent president before the end of the term; and there is less direct accountability of ministers to the legislature.

The parliamentary system

In a **parliamentary system**, the head of state (a monarch or a largely ceremonial president) is separate from the head of government (a prime minister). The prime minister and the cabinet are drawn from the legislature, usually from the majority party or coalition, and they remain in office only so long as they retain the support of the majority in parliament. The United Kingdom, India, Canada, Australia and Nigeria's First Republic (1960-1966) are examples.

Characteristics:

- A dual executive: a nominal head of state and an effective head of government.
- Fusion of powers: ministers are members of the legislature.
- Collective responsibility: the cabinet shares responsibility for decisions, and must resign together if it loses a vote of no confidence.
- Individual ministerial responsibility to parliament.
- The prime minister may advise the head of state to dissolve parliament and call an election.
- No fixed tenure, since the government can fall at any time.

Merits: it is flexible and can remove a failing government quickly through a vote of no confidence; the executive is more accountable because ministers face questions in parliament; cooperation between the

executive and the legislature speeds up lawmaking; there is no concentration of all executive power in one person; and ceremonial and effective roles are separated, so the head of state can unite the nation.

Demerits: it may be unstable, especially under coalition governments, as in some European countries; the fusion of powers can create an elective dictatorship when a party has a large majority; the prime minister is chosen from the elected members, narrowing the talent available; there is less separation of powers; and the election campaign may be disruptive when governments call early elections.

Basis	Presidential	Parliamentary
Executive	Single (the president)	Dual (head of state and prime minister)
Source of executive	Elected separately from the legislature	Drawn from the legislature
Separation of powers	Strict	Fusion, partial
Tenure	Fixed	Depends on parliamentary confidence
Ministers	Responsible to the president	Collectively responsible to parliament
Removal	By impeachment	By vote of no confidence
Examples	USA, Nigeria (from 1979), Ghana	UK, India, Nigeria (1960-66)

Key point. Always remember the distinction between head of state and head of government. In Nigeria's presidential system the President is both. In the First Republic, Dr Nnamdi Azikiwe was the head of state (Governor-General from 1960, President from 1963) while Alhaji Abubakar Tafawa Balewa was the head of government (Prime Minister).

Semi-presidential systems

Some states combine elements. In France, under the Fifth Republic, a directly elected president holds substantial powers while a prime minister, who must command parliamentary support, runs the day-to-day government. Such a hybrid is called a **semi-presidential** or dual-executive system.

3.4 Classification by the nature of the head of state: monarchy and republic

A **monarchy** is a system in which the head of state holds office for life by hereditary succession. Monarchies are of two kinds. An **absolute monarchy** places all power in the monarch, who rules without legal limit; Saudi Arabia, Eswatini and Brunei are present-day examples, and Louis XIV of France is the classic historical case. A **constitutional monarchy** limits the monarch by a constitution and by conventions, so that the king or queen reigns but does not rule; Britain, Spain, Japan, Sweden and Lesotho are examples.

A **republic** is a state in which the head of state is not a hereditary ruler but a person chosen, directly or indirectly, for a limited period. Nigeria has been a republic since 1 October 1963; the United States, France and Ghana are republics. Note that "republic" does not necessarily mean democratic, nor does "monarchy" mean undemocratic: Sweden is a democratic monarchy, while a military dictatorship may call itself a republic.

The term **traditional (hereditary) rule** also arises in Nigeria. The emirs of the North, the Obas of the Yoruba and the Obis of Igbo land are hereditary or selected traditional rulers whose roles are largely ceremonial, customary and advisory today, under the constitutional framework.

3.5 Classification by participation and control

Democracy

Democracy was defined in Chapter 1 as government of the people, by the people, for the people. In practice it takes two forms. **Direct democracy** involves citizens gathering to make laws and decisions themselves, as in the assembly of ancient Athens or the Swiss cantons of Appenzell and Glarus. **Indirect or representative democracy** involves the election of representatives who make decisions on behalf of the people; it is the form used in nearly all modern states because of their size. Features of a democratic government include periodic free and fair elections, universal adult suffrage, competing political parties, respect

for fundamental human rights, the rule of law, an independent judiciary, a free press and accountability of the government. Democracy's strengths include legitimacy, peaceful change of government, protection of rights and responsiveness. Its weaknesses are the slowness of decision-making, the expense of elections, the possibility of mob rule or domination by the majority, and the risk of manipulation by wealthy interests.

Aristocracy and oligarchy

Aristocracy (from Greek *aristos*, best) is rule by a small class considered the best, by birth, wealth or ability. **Oligarchy** is rule by a few, usually for their own advantage. Aristotle regarded aristocracy as the good form of rule by the few and oligarchy as its corrupt form. Some political systems in which a narrow ruling elite or a small circle of military officers holds power are called oligarchies.

Dictatorship, autocracy and totalitarianism

A **dictatorship** is a government in which power is held by one person or a small group which is not accountable to the people, often gained and held by force. Its features are the absence of free elections, the suppression of opposition, censorship, rule by decree, and an expanded role for the military and security agencies. **Totalitarianism** goes further by seeking to control all aspects of life, public and private, through a single party and an official ideology, as in Nazi Germany under Hitler and the Soviet Union under Stalin. These terms were also introduced in Chapter 1 as ideologies.

Military government

A **military government** is one in which the armed forces take control of the state, usually through a coup d'état, suspend all or part of the constitution and rule by decree. Nigeria experienced military rule for about 29 of its first 39 years of independence, beginning with the coup of 15 January 1966 and, with civilian interludes of 1979-83 and 1993 (the Interim National Government), ending on 29 May 1999. In military regimes, the legislature is often dissolved, the executive and legislative powers are fused in a body such as the Supreme Military Council or the Armed Forces Ruling Council, and the courts' jurisdiction is limited by decrees.

Reasons often given for military coups include corruption and misrule by civilian governments, political instability and violence, electoral malpractice, ethnic and regional tension, economic crisis, and the personal ambition of officers. **Disadvantages** include the suppression of rights, lack of accountability, damage to the professionalism of the army, delays in democratic development and often worsening corruption. **Some claimed advantages** are speed of decision and enforcement, but these are outweighed by the harm done.

Theocracy

A **theocracy** is government by religious leaders who claim to rule on behalf of God, with religious law as the law of the state. The Islamic Republic of Iran and the Vatican City are common examples. The

Sokoto Caliphate, which was a theocratic state governed by Islamic law and led by Sultan Muhammad Bello and his successors, is a historical example from Nigeria.

Anarchy

Anarchy is the absence of government and law, a condition in which no authority is recognised, as sometimes occurs during civil collapse in a failed state.

3.6 Comparing the Nigerian system with others

Nigeria's system of government has changed several times, and recognising the sequence will help in many questions. From 1960 to 1966 it was a federal, parliamentary, and (from 1963) republican system. After the January 1966 coup, the military suspended the constitution, and General Aguiyi-Ironsi abolished the federal arrangement by Decree No. 34 of 1966, creating a unitary system. After Ironsi's death in July 1966, General Yakubu Gowon restored the federal structure and in 1967 created twelve states. The Second Republic (1979-83) introduced the presidential system, and the Fourth Republic (since 1999) retains a federal, presidential, bicameral system with 36 states, the Federal Capital Territory and 774 local government areas.

WORKED EXAMPLE 3.1

Classify the government in each case: (a) A king who rules by decree and who cannot be questioned by any court. (b) A president elected by voters for four years who appoints ministers, none of whom sits in the legislature. (c) A prime minister whose government resigned after losing a vote in parliament.

Solution: (a) Absolute monarchy, because power is unlimited and held by an hereditary ruler. (b) A presidential system: fixed term, separate election of executive, and separation of powers. (c) A parliamentary system: the executive depends on parliamentary confidence, so loss of a vote of no confidence forces resignation.

WORKED EXAMPLE 3.2

A country has 20 provinces. The central government can create or abolish provinces and can cancel any law passed by a provincial council. Is it a federal or unitary state, and why?

Solution: It is a unitary state. In a federation the component units are constitutionally protected and have their own areas of independent authority. Here the centre controls the existence and the laws of the provinces, which means that sovereignty rests solely with the centre and the provincial councils exercise only delegated powers.

WORKED EXAMPLE 3.3

The legislature in a parliamentary state has 400 members. The governing coalition has 210 members. A motion of no confidence is passed if more than half the members support it. If 30 coalition members defect to the opposition and vote against the government, will the government survive, assuming everyone votes?

Solution: Half of 400 is 200, so a motion needs at least 201 votes. After defection, the coalition has $210 - 30 = 180$ votes supporting the government. The opposition has $190 + 30 = 220$ votes against (since $400 - 210 = 190$ were opposition originally). $220 > 200$, so the motion passes and the government falls. In a parliamentary system, it must resign or ask for dissolution and a fresh election.

WORKED EXAMPLE 3.4

A student argues, "Nigeria is a republic, therefore it is a democracy." Evaluate the claim.

Solution: The claim is flawed. A republic is a state whose head of state is not hereditary, but this tells us nothing about whether the people actually choose their rulers freely. Nigeria was a republic from 1963, including during the periods of military rule, when it was clearly not democratic. A democracy requires free and fair elections, participation, accountability and respect for rights. Thus republic and democracy are separate concepts, even if they often go together.

3.7 Practice

Exercise 3.1

1. In a unitary system of government, sovereignty rests with the (A) component units (B) central government (C) judiciary (D) traditional rulers.
2. A feature of a federal system is (A) a single legislature (B) division of power between levels of government (C) absence of a constitution (D) lack of a judiciary.
3. Which of these is a confederation in its early form? (A) Nigeria in 1999 (B) United States under the Articles of Confederation (C) France (D) Japan

4. The head of government in a parliamentary system is the (A) monarch (B) chief justice (C) prime minister (D) speaker.
5. Collective responsibility is a feature of (A) the presidential system (B) the parliamentary system (C) absolute monarchy (D) military rule.
6. Which is a demerit of the unitary system? (A) Cheap administration (B) Possible neglect of minority regions (C) Quick decisions (D) National unity.
7. State four merits of a federal system of government.
8. Distinguish an absolute monarchy from a constitutional monarchy, with one example each.
9. List four features of the presidential system.
10. Why does a vote of no confidence matter in a parliamentary system?
11. Give three reasons for military coups in Africa.
12. Which two Nigerian leaders were head of state and head of government respectively in 1963?

Answers to Exercise 3.1

1. (B). All legal power is held at the centre.
2. (B). Power is constitutionally divided between the levels.
3. (B). The Articles of 1781-1789 created a weak league of states.
4. (C). The prime minister heads the government, while the monarch or president is head of state.

5. (B). The cabinet resigns together if defeated in parliament.
6. (B). Remote and minority regions may be neglected.
7. Any four of: accommodates diversity, brings government closer to people, prevents concentration of power, encourages local initiative, allows policy experiments, eases administration of large countries.
8. In an absolute monarchy the king has unlimited power (Saudi Arabia); in a constitutional monarchy the monarch is limited by the constitution and reigns but does not rule (United Kingdom).
9. Any four of: one executive, fixed tenure, separation of powers, ministers outside the legislature, checks and balances, removal by impeachment.
10. It allows parliament to remove a government that has lost its majority, which makes the executive accountable.
11. Any three of: corruption, political instability, election rigging, ethnic tension, economic crisis, personal ambition.
12. Dr Nnamdi Azikiwe (President, head of state) and Alhaji Abubakar Tafawa Balewa (Prime Minister, head of government).

Exercise 3.2

1. Nigeria became a republic in (A) 1960 (B) 1963 (C) 1966 (D) 1979.
2. The presidential system was adopted in Nigeria in the (A) First Republic (B) Second Republic (C) Interim government (D) 1914 Amalgamation.

3. Decree No. 34 of 1966 established (A) a federal system (B) a unitary system (C) a monarchy (D) a confederation.
4. Government by religious leaders is called (A) aristocracy (B) theocracy (C) oligarchy (D) anarchy.
5. Direct democracy is practised today mainly in (A) Nigeria (B) some Swiss cantons (C) Brazil (D) Japan.
6. In an assembly of 500 members a government needs more than half to survive a vote. If 245 support the government, 240 oppose and 15 abstain, does the government survive a confidence vote requiring a majority of all members?
7. Explain two disadvantages of the parliamentary system.
8. Why can a country be both a monarchy and a democracy?
9. Name four characteristics of dictatorship.
10. Explain how the presidential system might create deadlock.

Answers to Exercise 3.2

1. (B). The Republican Constitution took effect on 1 October 1963.
2. (B). The 1979 Constitution created the presidential system.
3. (B). General Ironsi's Unification Decree centralised power.
4. (B). A theocracy is rule by religious authorities.
5. (B). Swiss cantons such as Glarus use citizen assemblies.
6. No. A majority of all 500 members is 251, and 245 < 251. If the rule were a majority of those voting (485), 245 would be 50.5% and

would carry; the question requires a majority of all members, so the government loses.

7. Possible instability of coalitions; fusion of powers may produce an elective dictatorship; the choice of ministers is limited to the legislature.
8. Because the monarch can be only a constitutional figurehead while real power is held by elected representatives, as in Sweden.
9. Any four of: rule by one person or small group, no free elections, suppression of opposition, censorship, rule by decree, use of force.
10. If the president belongs to one party and the legislature is controlled by another, each may block the other's budgets and bills, so that important legislation stalls.

Chapter summary

- A unitary state concentrates power at the centre; a federation divides it constitutionally between levels; a confederation is a loose union of sovereign states.
- Presidential systems have a single, fixed-term executive elected separately from the legislature; parliamentary systems have a dual executive that depends on the confidence of parliament.
- Monarchies are absolute or constitutional; a republic has a non-hereditary head of state, which need not mean democracy.
- Democracy may be direct or representative; non-democratic forms include aristocracy, oligarchy, dictatorship,

totalitarianism, military government and theocracy.

- Nigeria moved from a parliamentary federation (1960-66) to military unitary and federal rule, and then to presidential federations in 1979-83 and since 1999.
- The best answers give merits and demerits of each system and relate them to a country's size and diversity.

Chapter 4: The Organs of Government

The machinery by which a state makes, applies and interprets its laws is divided among three main organs: the **legislature**, the **executive** and the **judiciary**. Each has its own functions, its own members and its own sources of authority, yet they depend on one another and must cooperate for government to work. This chapter studies the functions and structure of each organ, the doctrine of the separation of powers and the system of checks and balances that goes with it, and the principle of the independence of the judiciary. Throughout, we illustrate with the provisions of the Constitution of the Federal Republic of Nigeria 1999 (as amended).

The UTME regularly tests the composition and functions of the Nigerian National Assembly, the powers of the President, the structure of the court system, the meaning of separation of powers and the ways in which one organ may check another. Numerical details such as the number of senators, the minimum ages for office and the procedure for impeachment appear often, so they are given carefully here.

4.1 The legislature

Meaning and structure

The **legislature** is the organ of government that makes laws. In modern states it also represents the people, controls public expenditure and supervises the executive. Legislatures may be **unicameral**, with one chamber (as in Ghana, Kenya and most Nigerian state Houses of Assembly), or **bicameral**, with two chambers (as in the United States, Britain, India and the Nigerian National Assembly). Bicameralism is common in federations because the second chamber can represent the component units.

The National Assembly of Nigeria consists of the **Senate** and the **House of Representatives**. The Senate has 109 members: three senators from each of the 36 states (108) and one from the Federal Capital Territory, Abuja. Equal representation of states regardless of size is intended to protect the smaller units. The House of Representatives has 360 members, elected from single-member constituencies that are delimited on the basis of population. The presiding officers are the Senate President and the Speaker of the House of Representatives, each assisted by a deputy, and they are elected by their fellow members. A state Assembly is unicameral, with at least 24 and not more than 40 members, depending on the state's size, and its presiding officer is the Speaker.

The qualifications for membership under the Constitution include Nigerian citizenship, minimum age (35 for the Senate and 25 for the House of Representatives), membership of and sponsorship by a

political party, and at least a School Certificate or its equivalent. Members are elected for a four-year term, which is renewable without limit. The Constitution disqualifies, among others, persons who are of unsound mind, are under a sentence of death or imprisonment for an offence involving dishonesty, or are members of secret societies.

Functions of the legislature

- **Law-making.** Bills are introduced, debated, amended and passed. A bill goes through first reading (title announced), second reading (principle debated), committee stage (detailed study), report stage, third reading and then assent by the president or governor. When a bill is passed by both houses, the president has 30 days to assent or withhold assent. If assent is withheld, the National Assembly may override the veto by a two-thirds majority in each house.
- **Representation.** Members speak for their constituencies and ensure that diverse interests are heard.
- **Control of finance.** The legislature approves the annual budget (the Appropriation Act) and authorises taxation; no money may be withdrawn from the Consolidated Revenue Fund without its approval.
- **Oversight of the executive.** It questions ministers, summons officials, investigates through committees and may carry out inquiries.
- **Confirmation of appointments.** The Senate confirms the president's nominees as ministers, ambassadors, judges of the superior courts, and heads of some commissions.

- **Constitutional amendment.** It initiates and passes amendments, subject to the approval of the state Houses of Assembly.
- **Impeachment.** It may remove the president, vice-president, governors and deputy governors for gross misconduct.
- **Declaration of war and approval of emergency.** The president may declare war or a state of emergency only with the approval of the legislature.
- **Political education and a forum for debate** on matters of national importance.

Types of legislation

An **Act of the National Assembly** is a law passed by the legislature. **Delegated legislation** (also called subsidiary legislation) consists of regulations, orders and by-laws made by ministers, agencies or local councils under powers granted by an Act. Because the legislature lacks the time and expertise to deal with every detail, it delegates the details to bodies, but it must supervise the exercise of these powers.

4.2 The executive

Meaning and structure

The **executive** is the organ that implements laws and carries on the day-to-day administration of the state. It has two components: the **political executive**, consisting of the president or prime minister and the

ministers who are elected or appointed, and the **non-political (permanent) executive**, which is the civil service, the career officials who serve all governments. The civil service is the topic of Chapter 10.

Under the 1999 Constitution, the executive power of the Federation is vested in the President, who exercises it directly or through the Vice-President and ministers. The President is both head of state and head of government and commander-in-chief of the armed forces. To qualify, a candidate must be a citizen of Nigeria by birth, be at least 40 years old, be a member of and sponsored by a political party, and hold at least a School Certificate or its equivalent. A presidential candidate must win the highest number of votes and also at least one-quarter of the votes cast in at least two-thirds of the states (that is, 24) and the Federal Capital Territory. The President holds office for four years and may serve no more than two terms. A state executive is headed by the Governor, who must be at least 35 years old, with a Deputy Governor on the same ticket.

The ministers are appointed by the President, and the Constitution requires that at least one minister be appointed from each state, a provision that supports the principle known as the *federal character* (section 14(3)), which requires the composition of government bodies to reflect the linguistic, ethnic, religious and geographical diversity of the country.

Functions of the executive

- **Implementation of laws.** It enforces the Acts of the legislature and the decisions of courts.
- **Policy formulation.** It decides on policy in the national interest on defence, the economy, education, health and other matters, and it proposes bills.
- **Administration.** It oversees ministries, departments and agencies through the civil service.
- **Appointments.** It appoints ministers, ambassadors, judges (on the recommendation of the National Judicial Council), permanent secretaries and heads of agencies.
- **Foreign relations.** It conducts diplomacy, signs treaties and represents the country abroad.
- **Defence and security.** It commands the armed forces and directs the police.
- **Preparation of the budget.** It proposes the annual estimates and administers the funds once the legislature has appropriated them.
- **Prerogative of mercy.** The President, acting on the advice of the Council of State, may grant pardon or reduce a sentence.
- **Ceremonial functions** such as conferring national honours and receiving foreign dignitaries.

Executive bodies in Nigeria

Three consultative bodies assist the President: the **Federal Executive Council** (the Cabinet), consisting of the President, the Vice-President and ministers, which formulates policy; the **National Security Council**, which advises on security; and the **Council of State**, consisting of the President, former Heads of State and Presidents, the Chief Justice and the state governors, among others, which advises on matters such as the prerogative of mercy and the National Population Commission and the Independent National Electoral Commission. There is also the **National Economic Council**, chaired by the Vice-President, and various Federal Executive agencies.

4.3 The judiciary

Meaning and functions

The **judiciary** is the organ that interprets the law and applies it to particular disputes. Its functions are:

- **Adjudication.** Trying criminal and civil cases and passing judgment.
- **Interpretation of the law and the constitution.** The courts determine what statutes mean and whether they accord with the constitution (judicial review).
- **Protection of fundamental rights.** A citizen whose rights have been violated may apply to the High Court for enforcement.
- **Law-making through precedent.** Decisions of higher courts bind lower ones under the doctrine of *stare decisis*.

- **Settlement of disputes** between individuals, between citizens and the state, and between governments in a federation.
- **Supervision of elections.** Election tribunals and appeal courts determine petitions against the declared results of elections.
- **Administrative functions**, such as the appointment of receivers, the administration of estates and the issuing of writs like *habeas corpus*, which requires a detained person to be brought before the court.

The court structure in Nigeria

The superior courts of record in the Federation are the **Supreme Court**, the **Court of Appeal**, the **Federal High Court**, the **High Court of the Federal Capital Territory**, the **High Courts of the states**, the **Sharia Court of Appeal**, the **Customary Court of Appeal** and the **National Industrial Court**. The lower courts include Magistrate, District and Area Courts and customary courts established by state laws.

- The **Supreme Court** is the highest court. It consists of the Chief Justice of Nigeria and not more than twenty-one Justices (the constitution fixes a maximum of 21). It has original jurisdiction over disputes between the Federation and a state, or between states, and appellate jurisdiction over decisions of the Court of Appeal. Its decisions are final. In election matters, it is the final court for presidential and governorship petitions.
- The **Court of Appeal** hears appeals from the Federal High Court, the High Courts and other courts of first instance.

- The **Federal High Court** handles matters such as revenue, banking, customs, admiralty, copyright, and cases involving the Federal Government and its agencies.
- A **State High Court** has unlimited jurisdiction in civil and criminal matters in the state, except those reserved for the Federal High Court.
- **Magistrate courts and District courts** handle minor civil and criminal cases. Area and customary courts apply customary law.

Appointment, tenure and discipline of judges

The Chief Justice of Nigeria is appointed by the President on the recommendation of the **National Judicial Council (NJC)**, subject to confirmation by the Senate. The Justices of the Supreme Court are appointed in the same way. The NJC recommends appointments, advises on discipline and recommends the removal of judges. Judges of the Supreme Court and Court of Appeal retire at 70 and judges of other superior courts at 65. A judge may be removed only for inability to discharge the functions of the office or for misconduct, by the President acting on an address supported by two-thirds of the Senate (for federal courts) on the recommendation of the NJC.

4.4 Separation of powers

The doctrine of **separation of powers** states that the three functions of government, legislative, executive and judicial, should be entrusted to three distinct and independent organs, staffed by different persons, so

that no single person or body can exercise all the powers of the state. The idea originates with Aristotle and was developed by John Locke, but its classic statement is found in *The Spirit of the Laws* (1748) by the French thinker Baron de Montesquieu, who argued from the observation of the English constitution that "when the legislative and executive powers are united in the same person, there can be no liberty". The framers of the United States Constitution (1787) took the doctrine as a foundation, and the Nigerian Constitution of 1999 also embraces it: sections 4, 5 and 6 vest legislative, executive and judicial power respectively in separate bodies.

Three elements of the doctrine are:

- the same person should not belong to more than one organ;
- one organ should not control or interfere with the work of another;
- one organ should not exercise the functions that belong to another.

Merits: it prevents tyranny and abuse of power; it promotes specialisation and efficiency; it protects individual liberty; and it makes it possible for an independent judiciary to defend the law. **Demerits:** a strict separation is hard to achieve in practice because the organs overlap; it can cause delay and deadlock; and it can reduce accountability since each organ can blame the others.

No modern state has an absolute separation. In parliamentary systems the ministers are also members of the legislature. In Nigeria the President, though head of the executive, has legislative functions

through assent to bills and delegated legislation, while the Senate has executive-like functions in confirming appointments, and the courts make law through precedents.

4.5 Checks and balances

Since complete separation would allow each organ to act without restraint, the Constitution provides ways in which each organ **checks** the others, so that power is balanced. The principal examples in Nigeria are summarised below.

Organ	Checks on the executive	Checks on the legislature	Checks on the judiciary
Legislature	Approves budget and appointments; investigates; impeaches the President and Governors; overrides vetoes	Bicameral structure: each house checks the other	Senate confirms judges; may approve their removal on an NJC recommendation; fixes the jurisdiction of some courts by law
Executive	Heads of departments are checked by the President	Assent or veto of bills; summons and dissolution in some systems; proposes the budget	Appoints judges on the recommendation of the NJC; pardons convicts
Judiciary	Judicial review of executive acts; orders such as mandamus and injunctions	Declares laws unconstitutional	Appeal courts review lower courts' decisions

Impeachment of the President

Under section 143 of the Constitution, the President or Vice-President may be removed for **gross misconduct** in the discharge of the functions of the office. The process is:

1. a notice of the allegation, signed by not less than one-third of the members of the National Assembly, is presented to the Senate President;
2. within seven days the Senate President serves the notice on the officer concerned and each house; the officer may reply;
3. each house, within fourteen days, votes on whether the allegation should be investigated, and the motion must be supported by at least two-thirds of the members of each house;
4. if so, the Chief Justice of Nigeria appoints a panel of seven persons of unquestionable integrity to investigate, and the officer has the right to defend himself;
5. the panel reports within three months; if it finds the allegation proved, each house considers the report and the officer is removed if a resolution is passed by two-thirds of the members of each house.

The impeachment procedure is a typical check by the legislature on the executive. However, section 143 does not allow a court to question the proceedings or the decision of the legislature.

4.6 Independence of the judiciary

An **independent judiciary** is one whose judges decide cases impartially, according to law, free from pressure by the executive, the legislature, powerful individuals or public opinion. It is the cornerstone of the rule of law (Chapter 2). The factors that guarantee it include:

- **Security of tenure.** Judges may be removed only for proven misconduct or incapacity and by a special procedure, not at the whim of the executive.
- **Adequate salaries and conditions of service**, charged to the Consolidated Revenue Fund so that the executive cannot easily reduce them, and good pension arrangements, which discourage corruption.
- **Appointment on merit.** A body such as the National Judicial Council, rather than the President alone, recommends appointments.
- **Immunity.** Judges are not liable for words and acts done in their judicial role.
- **Separation from the other organs** and the fact that judges may not belong to political parties.
- **Financial autonomy.** The National Judicial Council and the courts should control their own budgets. Constitutional amendments have provided that the money meant for the state judiciary be paid directly to it from the Federation Account.
- **Finality and enforcement of judgments**, and the legal profession's right to practise freely.

- **A free press and an alert public** that expose corruption and uphold judicial decisions.

Threats to judicial independence include executive disobedience of court orders, delayed payment of allowances, political influence in the appointment of judges, corruption, and the ouster clauses of military decrees that prevented the courts from examining government actions.

WORKED EXAMPLE 4.1

The National Assembly has 109 senators. The President vetoes a bill passed by both houses. What is the smallest number of senators whose votes can override the veto, assuming all senators vote, and what condition applies in the House of Representatives (360 members)?

Solution: Two-thirds of 109 = 72.67, so at least 73 senators are needed. In the House of Representatives, two-thirds of 360 = 240 members. The veto is overridden only if each house separately achieves its two-thirds majority: at least 73 in the Senate and at least 240 in the House.

WORKED EXAMPLE 4.2

At least one-third of the National Assembly members must sign a notice of allegation to start impeachment of the President. The National Assembly has 109 + 360 members. How many signatures are the minimum?

Solution: The total is 109 + 360 = 469. One-third of 469 = 156.33. Since a fraction of a member cannot sign, the minimum is 157 members. (Check: 156 members would be 33.26% of... in fact 156/469 = 33.26%, which already exceeds one-third? Let us verify. One-third of 469 = 156.33, and 156 is less than 156.33, so 156 members is not enough; 157 gives 33.47%, which is at least one-third.) The answer is 157 members.

WORKED EXAMPLE 4.3

A Governor refuses to implement an Act of the National Assembly on a matter in the Exclusive Legislative List, claiming that the state has independent authority. Which organ can settle the dispute, and under what principle?

Solution: The Supreme Court, because it has original and exclusive jurisdiction in disputes between the Federation and a state. It would use judicial review, applying the principle of constitutional supremacy: where the Act is within the powers of the National Assembly, the state must comply, and an inconsistent state law is void to the extent of the inconsistency. The judiciary thus acts as an umpire in the federation.

WORKED EXAMPLE 4.4

Identify the check illustrated: (a) the Senate refuses to confirm a minister nominated by the President; (b) a High Court declares a presidential order void; (c) a President refuses to sign a bill.

Solution: (a) Legislature checking the executive through the power of confirmation. (b) Judiciary checking the executive by judicial review. (c) Executive checking the legislature by withholding assent (veto), which the legislature may in turn override by a two-thirds vote in each house.

4.7 Practice

Exercise 4.1

1. The Nigerian Senate has (A) 36 members (B) 108 members (C) 109 members (D) 360 members.
2. The minimum age for election as President of Nigeria is (A) 25 (B) 30 (C) 35 (D) 40.
3. The doctrine of separation of powers was most clearly expounded by (A) Locke (B) Montesquieu (C) Rousseau (D) Dicey.
4. The head of the Nigerian judiciary is the (A) Attorney-General (B) Chief Justice of Nigeria (C) Senate President (D) President of the Court of Appeal.
5. Which court has original jurisdiction in disputes between a state and the Federation? (A) High Court (B) Court of Appeal (C) Supreme Court (D) Magistrate Court
6. A bicameral legislature has (A) one house (B) two houses (C) three houses (D) no houses.
7. State four functions of the legislature.
8. Name four functions of the executive.
9. Give four ways of guaranteeing the independence of the judiciary.
10. Explain the difference between the political executive and the permanent executive.

11. What is delegated legislation, and why is it necessary?
12. Describe how checks and balances operate between the executive and the legislature.

Answers to Exercise 4.1

1. (C). Three per state (3 × 36 = 108) plus one for the FCT = 109.
2. (D). The Constitution requires a presidential candidate to be at least 40 years old.
3. (B). Montesquieu in The Spirit of the Laws (1748).
4. (B). The Chief Justice of Nigeria heads the judiciary.
5. (C). The Supreme Court has original jurisdiction in such disputes.
6. (B). Bicameral means two chambers.
7. Any four of: making laws, representation, approving the budget, oversight of the executive, confirming appointments, amending the constitution, impeachment.
8. Any four of: executing laws, policy-making, administration, appointments, foreign relations, defence, budget preparation, prerogative of mercy.
9. Any four of: security of tenure, good pay, appointment on merit, immunity, separation of powers, financial autonomy, free press.
10. The political executive consists of elected or appointed office holders (President, ministers), while the permanent executive is the career civil service which remains in post when governments change.

11. Laws made by ministers or agencies under authority delegated by an Act; necessary because the legislature has limited time and expertise for detailed regulations.
12. The legislature approves budgets and appointments, investigates and can impeach; the executive can veto bills and propose legislation; the legislature can override the veto.

Exercise 4.2

1. The Nigerian House of Representatives has (A) 109 (B) 200 (C) 360 (D) 469 members.
2. Judges of the Supreme Court retire at the age of (A) 60 (B) 65 (C) 70 (D) 75.
3. The body that recommends the appointment and discipline of judges is the (A) NJC (B) INEC (C) CCB (D) NBA.
4. A court order directing a person detained to be brought before the court is a writ of (A) mandamus (B) habeas corpus (C) certiorari (D) injunction.
5. Which is an example of judicial review? (A) A court declares a law unconstitutional. (B) The Senate confirms a minister. (C) The President signs a bill. (D) INEC registers parties.
6. In a legislature of 360 members, how many members make a two-thirds majority?
7. Why do federations favour a bicameral legislature?
8. Outline the steps for impeaching a President in Nigeria.

9. Give two demerits of a strict separation of powers.
10. Explain why the Constitution requires ministers from every state.

Answers to Exercise 4.2

1. (C). The House of Representatives has 360 members.
2. (C). Justices of the Supreme Court and Court of Appeal retire at 70.
3. (A). The National Judicial Council.
4. (B). Habeas corpus.
5. (A). Courts review the constitutionality of laws and acts.
6. 2/3 × 360 = 240 members.
7. The upper chamber can give the component units equal representation, protecting small states from domination by larger ones.
8. Notice by one-third of members; service and reply; two-thirds vote of each house to investigate; panel of seven appointed by the Chief Justice; report within three months; two-thirds resolution of each house to remove.
9. It may lead to deadlock and delay, and it is hard to enforce in practice because organs overlap.
10. To fulfil the federal character principle so that every part of the federation is represented in the executive, promoting unity and equity.

Chapter summary

- The legislature makes laws, represents the people, controls money and oversees the executive; the Nigerian National Assembly has a 109-member Senate and a 360-member House of Representatives.
- The executive implements laws and consists of the political executive (President, ministers) and the permanent civil service; the President must be at least 40, serves four years, renewable once.
- The judiciary interprets and applies laws, protects rights and settles disputes; the Supreme Court is the highest court, and the NJC advises on appointments and discipline.
- Separation of powers (Montesquieu) prevents tyranny; checks and balances such as vetoes, confirmation, impeachment and judicial review keep the organs in balance.
- Impeachment under section 143 needs a notice signed by one-third of members, two-thirds votes in each house and a panel of seven appointed by the Chief Justice.
- The independence of the judiciary rests on security of tenure, good pay, merit appointments, immunity and financial autonomy.

Chapter 5: Citizenship, Rights and Duties

A state is made up of territory, government and people, but the people are not all in the same legal position. Some belong to the state by birth or by a formal process and enjoy the full protection of its laws; others are visitors, workers or refugees whose stay is temporary and whose privileges are narrower. The legal bond that ties an individual to a state is called citizenship, and out of it flow rights, which the state must respect, and duties, which the individual must perform. This chapter explains how citizenship is acquired and lost under the 1999 Constitution of the Federal Republic of Nigeria, what the fundamental human rights are, how they can be limited and enforced, and what the citizen owes in return.

Questions on this topic appear in almost every UTME paper. Candidates are expected to recall the ways of becoming a citizen, to list the fundamental rights in Chapter IV of the Constitution, to distinguish rights from duties and to say what remedies are available when a right is violated. Precision matters: for example, "registration" and "naturalisation" are different processes, and a "right" is not the same thing as a "privilege". Study the definitions carefully.

5.1 Citizenship and nationality

Citizenship is the legal status of a person who is a full member of a state, entitled to its protection and to the rights it grants, and bound by its laws and duties. **Nationality** is a broader word. It describes the membership of a people who share a common origin, language, culture or historical experience, and it may or may not coincide with the state. The Yoruba, Igbo, Hausa, Ijaw and Tiv are nationalities within Nigeria, whereas "Nigerian" is the citizenship shared by all of them. In international law the two words are often used interchangeably, because the state grants nationality to its citizens when they travel abroad, but in political science the distinction is useful.

Citizens and aliens

A person who lives in a country but is not its citizen is an **alien**. Aliens may be of several kinds. A *resident alien* lives in the country for a long time, perhaps for work or business, as a Ghanaian trader does in Lagos. A *temporary visitor* comes for tourism or a short assignment. A *refugee* flees persecution or conflict at home and seeks protection abroad, while an *asylum seeker* has applied for such protection but has not yet received a decision. Aliens have the protection of the law and may not be tortured or robbed, but they cannot vote, cannot stand for election, cannot hold certain public offices, may be deported when they break immigration laws, and in many countries are restricted from owning particular kinds of property. A **stateless person** is one whom no country recognises as its citizen; such a person lacks the protection of any government and is badly disadvantaged.

Rights and privileges of citizens

Citizenship gives a person certain advantages that aliens lack. These include the right to vote and be voted for, the right to hold public office, protection and consular assistance abroad, the right to a national passport, and the right to live in any part of the country without molestation. In return the citizen must obey the law, pay taxes, defend the nation when called upon, and respect the rights of others.

5.2 Ways of acquiring Nigerian citizenship

Chapter III of the 1999 Constitution (sections 25 to 32) governs citizenship. It recognises three principal ways of becoming a Nigerian citizen: by birth, by registration and by naturalisation.

Citizenship by birth (section 25)

The following persons are citizens of Nigeria by birth:

- every person born in Nigeria before the date of independence, 1 October 1960, whose parents or grandparents belong or belonged to a community indigenous to Nigeria;
- every person born in Nigeria after independence, either of whose parents or any of whose grandparents is a citizen of Nigeria;
- every person born outside Nigeria, either of whose parents is a citizen of Nigeria.

The point to notice is that Nigerian law does not rely on the place of birth alone. A child born in London to Nigerian parents is a citizen by birth through descent, which lawyers call *jus sanguinis* (the right of blood). A child born in Nigeria to wholly foreign parents does not automatically become a citizen, in contrast to the American rule of *jus soli* (the right of soil), under which birth within the territory is sufficient. Some states combine both principles.

Citizenship by registration (section 26)

Registration is a process by which a person who is not a citizen by birth applies to the President and, after meeting the legal conditions, is registered as a citizen. The following may be registered:

- a person born outside Nigeria, any of whose grandparents is a citizen of Nigeria;
- a woman who is or has been married to a citizen of Nigeria;
- a person of full age and capacity born outside Nigeria, any of whose grandparents is a Nigerian citizen.

The applicant must satisfy the President that she or he is of good character, has shown a clear intention of being domiciled in Nigeria, and has taken the oath of allegiance prescribed in the Constitution. The President is also not bound to grant the application merely because the stated conditions are met; the Constitution speaks of the applicant satisfying the President.

Citizenship by naturalisation (section 27)

Naturalisation is the process by which a foreigner who has no family link with Nigeria becomes a citizen after living in the country for a long period. The conditions are stricter than those for registration. The applicant must be of full age and capacity, of good character, intend to reside permanently in Nigeria, be acceptable to the local community in which he or she is to live and be assimilated to its way of life, be a person who has made or is capable of making a useful contribution to the advancement, progress and well-being of Nigeria, have taken the oath of allegiance, and have been resident in Nigeria for a period of at least fifteen years. The certificate of naturalisation is granted by the President.

> **Key point.** Birth: by descent from a Nigerian parent or grandparent. Registration: for persons with a family link (a foreign wife of a Nigerian, or a person with Nigerian grandparents). Naturalisation: for outsiders after a long residence (fifteen years). Candidates often confuse the last two.

Other methods found in the world

Other states grant citizenship by **adoption**, by **honorary award** to distinguished foreigners, and by **annexation or cession of territory**, in which the inhabitants of a territory take the citizenship of the new sovereign. A **marriage** link may also confer citizenship, as in the case of

registration of foreign wives of Nigerians. Many countries now admit **investor citizenship**, granted for large investments, though this is not a Nigerian practice.

5.3 Dual citizenship, renunciation and loss of citizenship

Dual citizenship means holding the citizenship of two states at once. Earlier Nigerian constitutions did not permit it, but the 1999 Constitution (section 28) allows a Nigerian citizen by birth to hold the citizenship of another country without losing the Nigerian status. A person who acquires Nigerian citizenship by registration or naturalisation, on the other hand, is often asked by the law of his original country to give up the older citizenship, and that is a matter between him and that country. In practice dual citizens in Nigeria cannot be deprived of their status for merely holding a second passport, but they must declare their loyalty to Nigeria in public service and may be disqualified from certain sensitive positions.

Citizenship may be lost in several ways.

- **Renunciation (section 29).** A citizen of full age who wishes to give up Nigerian citizenship makes a declaration, which is registered by the National Population Commission. The right is available to citizens aged eighteen and above. The President may refuse registration of the declaration if the country is at war or if it is contrary to the public interest.

- **Deprivation (section 30).** A person who acquired citizenship by registration or naturalisation can be deprived of it by the President if it is shown that he has, within five years of acquisition, been sentenced to imprisonment for a term of not less than three years; or has shown himself by act or speech to be disloyal to the Federal Republic; or has, during a war in which Nigeria is engaged, unlawfully traded with the enemy or otherwise assisted the enemy; or if the registration or naturalisation was obtained by fraud, false representation or concealment of a material fact. The Constitution expressly states that a citizen by birth can never be deprived of citizenship.
- **Acquiring foreign citizenship voluntarily** without permission. Many countries treat this as loss. In Nigeria the constitution is generous on this point, but it is a ground in several other legal systems.
- **Prolonged residence abroad** or **service in a foreign army**. These are grounds for loss in some countries, though not in Nigeria.

A famous point of constitutional law concerns the ban on deprivation of birth citizens. Because a Nigerian by birth cannot be stripped of his citizenship, even a convicted criminal remains a citizen and retains the right to a Nigerian passport once the sentence has been served. Loss of political rights, such as voting while in prison, is a different issue from loss of citizenship.

5.4 Rights: meaning, kinds and sources

A **right** is a claim that a person may legitimately make on others and on the state, recognised and protected by law or by moral principle. If one has a right to life, others have a duty not to kill. Every right therefore implies a corresponding duty. Rights are distinct from **privileges**, which are special advantages granted by authority and may be withdrawn, such as a driver's licence or free housing for civil servants. They are also distinct from **liberty**, which is the absence of unreasonable restraint, though in practice the two words are closely connected: liberty is the freedom to exercise one's rights.

Classification of rights

- **Natural rights** are those which belong to every human being by virtue of being human, independent of any law. Thinkers such as John Locke argued that life, liberty and property are natural rights which the state exists to protect.
- **Moral rights** are based on ethical principles, for example the right to be told the truth.
- **Legal rights** are those that the law has defined and which courts will enforce. They include civil rights (to life, personal liberty, fair hearing), political rights (to vote, to be voted for, to form parties) and economic and social rights (to work, to education, to health care).
- **Human rights** are universal rights acknowledged by the international community, particularly in the Universal Declaration of

Human Rights adopted by the General Assembly of the United Nations on 10 December 1948. The African Charter on Human and Peoples' Rights, adopted in Nairobi in 1981 and brought into Nigerian law by the African Charter on Human and Peoples' Rights (Ratification and Enforcement) Act of 1983, adds collective rights such as the right to development.

Generations of rights

Writers sometimes speak of "generations" of rights. First-generation rights are civil and political, such as freedom from torture and the right to vote. Second-generation rights are economic, social and cultural, such as the right to education, work and health. Third-generation rights are collective or solidarity rights, such as the right to a healthy environment, to peace and to development. In Nigeria first-generation rights are enforceable in court, while second-generation rights appear mostly in Chapter II as objectives of state policy.

5.5 Fundamental human rights in the 1999 Constitution

Chapter IV of the Constitution (sections 33 to 46) lists the fundamental rights which every person in Nigeria, citizen or alien, may claim. They are as follows.

Section	Right	Main content
33	Right to life	No person may be deprived of life intentionally, except in execution of a court's sentence for a criminal offence, or in the defence of person or property, to effect a lawful arrest, to prevent escape or to suppress a riot or mutiny.
34	Dignity of the human person	No torture, inhuman or degrading treatment, slavery, servitude or forced labour (compulsory military service and labour in the public interest are excepted).
35	Personal liberty	No person is deprived of liberty except by law; an arrested person must be informed in writing, within twenty-four hours, of the facts and grounds of arrest, and must be brought before a court within a reasonable time (one day where a court is within forty kilometres, two days otherwise).
36	Fair hearing	Disputes must be decided within a reasonable time by an independent and impartial court; the accused is presumed innocent until proved guilty, must be informed promptly of the offence, have adequate time to prepare a defence, and may choose a lawyer. No one may be punished under a law that did not exist when the act was done.
37	Private and family life	Privacy of citizens, homes, correspondence, telephone conversations and telegraphic communications.
38	Freedom of thought, conscience and religion	Includes freedom to change religion and to practise it in worship, teaching and observance; no one may be forced to receive religious instruction.
39	Freedom of expression and	Includes freedom to hold opinions and to receive and impart ideas and information

Section	Right	Main content
	the press	without interference; to own, establish and operate any medium for dissemination of information, subject to licensing of broadcasting stations.
40	Peaceful assembly and association	Includes the right to form or belong to any political party, trade union or association for protection of interests.
41	Freedom of movement	Right to move freely throughout Nigeria, to reside in any part and not to be expelled from the country.
42	Freedom from discrimination	No citizen may be disadvantaged by reason of ethnic group, place of origin, sex, religion or political opinion.
43	Right to acquire and own immovable property	Every citizen may acquire and own immovable property anywhere in Nigeria.
44	Compulsory acquisition of property	No property may be taken without prompt payment of compensation and a right of access to a court.

Sections 45 and 46 are not rights but provisions concerning limits and enforcement, discussed below. It is worth noting that the right to education, health and work, which many people think of as human rights, are not in Chapter IV but in Chapter II, where they appear as objectives and directive principles which the state is to pursue.

Key point. The right to life is not absolute. It does not forbid killing in self-defence, in lawful arrest or in suppression of riot, and, in the existing law, it does not prevent a court from passing a death sentence on a person convicted of a capital offence.

5.6 Limitation and derogation of rights

No right is unlimited. Your freedom to move your arm ends where another person's nose begins. Section 45 of the Constitution permits laws which are reasonably justifiable in a democratic society in the interest of defence, public safety, public order, public morality or public health, or for the purpose of protecting the rights and freedoms of other persons. Under this section the police may disperse an assembly which threatens public safety, and the law may punish defamation of character without unduly restricting speech. In addition, the rights can be suspended during a period of public emergency. During a state of emergency declared by the President under section 305 and approved by the National Assembly, some rights may be restricted, but the right to life (except in respect of deaths resulting from acts of war) may never be derogated from.

The following factors usually limit rights in a democracy: the rights of others; the security of the state; the demands of public health and morality; the need for orderly government; and the requirement that the

rights must be exercised according to law. A good test is that any restriction must be provided for by law, must pursue a legitimate aim and must be proportionate to that aim.

5.7 Enforcement and protection of rights

A right is of little value unless it can be enforced. Section 46 provides that any person who alleges that any of the fundamental rights provided for in Chapter IV has been, is being or is likely to be infringed in any state may apply to a High Court in that state for redress. The Fundamental Rights (Enforcement Procedure) Rules, made by the Chief Justice in 2009, simplify the procedure. They allow public interest litigation, remove technical barriers to access such as the need to prove personal injury in certain cases, and give courts power to hear applications quickly.

Court writs and remedies

- **Habeas corpus** (Latin for "you must have the body") is an order requiring a person who is holding another in custody to bring him before the court so that the legality of the detention can be examined.
- **Mandamus** is an order commanding a public official or body to perform a public duty which it has neglected.
- **Certiorari** brings the decision of an inferior court or tribunal to a higher court to be quashed for want of jurisdiction or error.

- **Prohibition** stops an inferior court or body from proceeding with a matter it has no power to decide.
- **Injunction** restrains a person from doing a threatened wrong or orders him to undo a wrong.
- **Damages** and **declarations** are remedies awarded after a violation has been established.

Other agencies of protection

Besides the courts there are several bodies that protect rights. The **National Human Rights Commission**, created in 1995 and strengthened by an Act in 2011, receives complaints, investigates abuses and assists victims. The **Legal Aid Council** gives free legal help to the poor. The **Public Complaints Commission**, established in 1975, is the Nigerian ombudsman which investigates complaints of maladministration. Non-governmental organisations like the Civil Liberties Organisation and the Nigerian Bar Association, the press, trade unions and student bodies are vigilant watchdogs. An independent judiciary, the rule of law, and a free press are the most powerful long-term guarantees.

Threats to rights in Nigeria

Rights are most often violated by abuse of power: arbitrary arrest and detention, extra-judicial killing, police brutality, delays in trials which keep awaiting-trial persons in prison for years, harassment of journalists, and discrimination against women and minorities. Insurgency and communal violence create further violations. Ignorance of rights and

poverty leave many citizens unable to seek redress. Military rule, which suspended parts of the constitution, produced decrees which ousted the jurisdiction of courts, and this is a historical reason why the 1999 Constitution has a long and detailed bill of rights.

5.8 Duties and obligations of the citizen

The enjoyment of rights is conditional on the performance of duties. A **duty** is an obligation, imposed by law or morality, to do or not to do something. Section 24 of the Constitution lists duties of a citizen: to abide by the Constitution, respect its ideals and institutions, the National Flag, the National Anthem, the National Pledge and the national symbols; to help enhance the power, prestige and good name of Nigeria; to defend Nigeria and render national service when called upon; to respect the dignity of other citizens and the rights and legitimate interests of others; to live in unity and harmony and in the spirit of common brotherhood; to make positive and useful contribution to the advancement, progress and well-being of the community where he resides; to render assistance to appropriate and lawful agencies in the maintenance of law and order; and to declare his income honestly to appropriate and lawful agencies and pay his tax promptly.

Civic obligations in practice

- **Obedience to law:** without it there is no order.
- **Payment of taxes and levies:** the state's roads, schools and hospitals are financed from them.

- **Voting:** a citizen who has registered should vote, since elections are the means by which the people choose leaders.
- **Jury and witness service:** a citizen should assist the courts by giving truthful evidence.
- **Loyalty and patriotism:** to the nation, including National Youth Service, which is compulsory for graduates under the age of thirty.
- **Protection of public property:** such as pipelines, schools and electricity lines.
- **Tolerance and respect for others:** especially in a plural society like Nigeria.

Rights and duties are two sides of one coin

If a citizen enjoys the right to security of life, he must respect the same right in others; if he benefits from public services, he must pay tax. A state which grants rights but does not require duties will collapse, and a state which demands duties without granting rights is oppressive. The balance between the two is characteristic of a democratic society.

5.9 The rights of non-citizens, children and women

Fundamental rights in Chapter IV belong to "every person", so aliens too may claim, for example, the rights to life, dignity and fair hearing. Certain rights, however, such as freedom of movement and ownership of immovable property in section 43 and 41, and freedom from discrimination in section 42, are given to citizens. The Child's Rights

Act 2003 domesticates the UN Convention on the Rights of the Child in Nigeria, though many states had to pass their own laws before it applied within their territory, because child welfare is a matter on which states legislate. The Violence Against Persons (Prohibition) Act 2015 protects women and others from violence, and the constitution forbids discrimination based on sex.

5.10 Worked examples

WORKED EXAMPLE 5.1

Chinedu was born in Manchester in 2005 to a Nigerian father and a British mother. Is he a Nigerian citizen? If so, by which route?

Solution: Section 25(1)(c) of the Constitution provides that every person born outside Nigeria, either of whose parents is a citizen of Nigeria, is a citizen by birth. Chinedu's father is a Nigerian citizen, so Chinedu is a Nigerian citizen by birth, regardless of his place of birth. He may also hold British citizenship through his mother, and because section 28 allows dual citizenship for citizens by birth, he retains both.

WORKED EXAMPLE 5.2

Mrs Ama Mensah, a Ghanaian, married a Nigerian engineer in 2018 and has lived in Ibadan since then. Her sister, Miss Efua Boateng, a Ghanaian with no Nigerian relatives, has lived in Nigeria for twelve years as a teacher. How may each acquire Nigerian citizenship?

Solution: Mrs Mensah is married to a citizen, so she may apply for citizenship by registration under section 26, provided that she is of good character, intends to live in Nigeria and takes the oath of allegiance. Miss Boateng has no family link, so only naturalisation is open to her. Section 27 requires fifteen years of residence; she has completed only twelve, so she is not yet qualified and must wait three more years (15 − 12 = 3), assuming that she meets the other conditions.

WORKED EXAMPLE 5.3

Suleiman is arrested in Maiduguri at 8 a.m. on Monday and kept at the police station. The nearest court is 25 kilometres away. By what time must he be brought before a court? Suppose instead the nearest court was 120 kilometres away.

Solution: Under section 35(5), a "reasonable time" is one day where there is a court of competent jurisdiction within a radius of forty kilometres, and two days in any other case. The court 25 km away lies within forty kilometres, so Suleiman must be brought before it within one day, that is, by 8 a.m. on Tuesday. If the court were 120 km away, the limit would be two days, that is by 8 a.m. on Wednesday. In both situations, he is also entitled to be informed in writing, within twenty-four hours, of the facts and grounds for his arrest.

WORKED EXAMPLE 5.4

A High Court judge reads a petition from Mr Okon's family stating that he has been held in a police cell for three weeks without being charged. Which writ is most appropriate, and what will it achieve? What other right has been infringed?

Solution: The suitable writ is *habeas corpus*. The court orders the police to produce Mr Okon in court and to show the legal ground for his detention. If there is none, the court orders his release. The detention violates the right to personal liberty (section 35) because the constitutional limit of one or two days before arraignment has been greatly exceeded. It may also violate the right to fair hearing (section 36), under which the accused must be tried within a reasonable time.

5.11 Practice

Exercise 5.1

1. A person born in Nigeria after independence, one of whose grandparents is a Nigerian citizen, is a citizen by (A) birth (B) registration (C) naturalisation (D) adoption.
2. The minimum period of residence required for naturalisation in Nigeria is (A) five years (B) ten years (C) fifteen years (D) twenty years.

3. The principle by which citizenship follows the nationality of the parents is (A) jus soli (B) jus sanguinis (C) jus cogens (D) jus gentium.
4. Which of these is NOT a fundamental right in Chapter IV? (A) Right to life (B) Right to fair hearing (C) Right to free education (D) Freedom of assembly.
5. A writ ordering a public official to do his duty is (A) mandamus (B) certiorari (C) habeas corpus (D) prohibition.
6. A person who has no recognised citizenship in any country is (A) a refugee (B) an alien (C) a stateless person (D) a delegate.
7. Distinguish between citizenship by registration and by naturalisation in Nigeria.
8. State four duties of a Nigerian citizen.
9. Why can a Nigerian citizen by birth never be deprived of citizenship?
10. Mr Kofi, a foreigner with no Nigerian relatives, began living in Nigeria in 2019. In what year at the earliest could he qualify for naturalisation on residence?

Answers to Exercise 5.1

1. (A). Section 25 gives citizenship by birth to a person born after independence of whom a parent or grandparent is a Nigerian.
2. (C). Fifteen years of residence.
3. (B). Jus sanguinis means the right of blood.

4. (C). Education is in Chapter II, not in Chapter IV.
5. (A). Mandamus compels performance of a public duty.
6. (C). A stateless person has no nationality.
7. Registration is for persons with a family link, such as a foreign wife of a Nigerian or a person with a Nigerian grandparent; naturalisation is for those without such a link and requires fifteen years of residence.
8. Any four: obey the Constitution and laws; pay taxes; defend the nation; respect others' rights; help maintain law and order; declare income honestly; render national service.
9. Section 30 expressly confines deprivation to citizens by registration or naturalisation, so birth citizenship is a secure right.
10. 2019 + 15 = 2034, since fifteen years of residence are required.

Exercise 5.2

1. The Universal Declaration of Human Rights was adopted in (A) 1945 (B) 1948 (C) 1960 (D) 1981.
2. The Nigerian ombudsman is the (A) Code of Conduct Bureau (B) Public Complaints Commission (C) National Judicial Council (D) Legal Aid Council.
3. Section 45 allows the limitation of rights on grounds of (A) public health (B) personal preference (C) party interest (D) wealth.
4. Application to enforce a fundamental right is made to the (A) Supreme Court (B) High Court (C) Customary Court (D)

Senate.

5. A right differs from a privilege in that (A) a right can be withdrawn at will (B) a right is protected by law (C) a privilege is protected by law (D) the two are the same.
6. Freedom of movement under the Constitution includes (A) the right to leave Nigeria forever (B) the right to live in any part of Nigeria (C) the right to cross borders without a passport (D) the right to enter any private building.
7. Explain the statement "every right implies a duty".
8. Name three agencies, apart from the courts, that protect human rights in Nigeria.
9. A newspaper is closed by a state government because it criticised the Governor. Which right is violated and what remedy is available?
10. Mention three situations in which the right to life is not violated by the death of a person.

Answers to Exercise 5.2

1. (B). 10 December 1948.
2. (B). The Public Complaints Commission, created in 1975.
3. (A). Public health, defence, public order, safety and morality are named in section 45.
4. (B). Section 46 gives jurisdiction to a High Court of the state.

5. (B). Rights are legally protected while privileges may be withdrawn by the grantor.
6. (B). The right to move freely throughout Nigeria and reside in any part.
7. If I am entitled to security of my person, everyone else is obliged to respect it, and I too must respect the same right in others; one person's right is another's duty.
8. Any three: National Human Rights Commission; Legal Aid Council; Public Complaints Commission; Civil Liberties Organisation; Nigerian Bar Association; the press.
9. The freedom of expression and the press (section 39). The proprietor can apply to the High Court for enforcement under section 46, seeking a declaration, an injunction and damages.
10. Any three: execution of a court sentence for a criminal offence; defence of person or property; effecting a lawful arrest or preventing escape; suppressing a riot or mutiny.

Chapter summary

- Citizenship is the legal bond between an individual and a state; aliens, refugees and stateless persons lack full citizenship.
- Nigerian citizenship is acquired by birth (section 25), registration (section 26) and naturalisation (section 27, fifteen years' residence); dual citizenship is allowed for citizens by birth under section 28.

- Citizenship is lost by renunciation (section 29) or deprivation (section 30); a citizen by birth cannot be deprived.
- A right is a legally or morally recognised claim; it differs from a privilege, which can be withdrawn. Rights may be natural, moral, legal or human.
- Chapter IV (sections 33 to 44) lists the rights to life, dignity, liberty, fair hearing, private life, conscience, expression, assembly, movement, freedom from discrimination and property.
- Rights may be limited under section 45 in the interest of defence, safety, order, morality and health; enforcement is by application to the High Court under section 46, using writs such as habeas corpus and mandamus.
- Duties of citizens (section 24) include obeying the law, paying taxes, defending the nation and respecting others; rights and duties are inseparable.

Chapter 6: Political Parties, Pressure Groups and Elections

Modern democracy is impossible without organisation. Millions of citizens cannot each propose a programme of government, select candidates and persuade their neighbours; they need bodies that gather opinions, put forward leaders and compete for office. These bodies are political parties. Alongside them, other organisations such as trade unions and professional associations press for the interests of their members without seeking office. And the contest between parties is settled through elections, the orderly procedure by which a society chooses those who will govern it.

This chapter explains what political parties are, what they do and how party systems differ; describes the parties of Nigeria from the First Republic to the present; distinguishes pressure groups from parties; and then examines elections, electoral systems, the Independent National Electoral Commission and the problems of elections in Nigeria. Candidates are regularly asked for the functions of parties, the differences between party systems, the percentages required for victory in a Nigerian presidential election and the examples of pressure groups. All these points are covered with worked examples.

6.1 Political parties

A **political party** is an organised group of citizens who share broadly similar political views and who seek to win control of government, through elections, in order to carry out their programme. Three elements stand out in this definition: organisation, a common set of ideas or objectives, and the aim of capturing political power by constitutional means. A group which seeks to seize power by force is a rebel movement, not a party. The Constitution of Nigeria in section 222 forbids any association from holding itself out as a party unless it is registered, and sections 221 to 229 regulate their names, membership, finance and conduct.

Functions of political parties

- **Interest aggregation and articulation.** Parties collect the many demands of citizens, combine them into a manageable programme (a manifesto) and present it to the electorate.
- **Recruitment and selection of leaders.** Parties choose candidates through primaries and train them for office.
- **Organisation of government.** The party or coalition that wins an election forms the government; in a legislature the party with most seats controls business.
- **Political education and mobilisation.** Through campaigns, rallies and the media, parties inform citizens about public affairs and encourage them to register and vote.

- **Opposition and criticism.** Parties that lose act as a watchdog, criticising the government and offering alternatives, so that no government can rule without scrutiny.
- **Linking the people and the government.** They carry the views of the people to the rulers and the policies of the rulers to the people.
- **Promoting national unity.** A party with members from many regions and religions can reduce ethnic tension. This is why the Nigerian Constitution requires that the membership of a party be open to all citizens and its executive reflect the federal character.
- **Providing stability and legitimacy.** Peaceful rotation of power between parties allows changes of government without violence.

Types of party

Parties differ in organisation and appeal. A **cadre party** relies on a small group of active, committed and often wealthy members; a **mass party** seeks the largest possible membership and raises money from dues. A **nationalist party** is formed to achieve independence, like the National Council of Nigeria and the Cameroons (NCNC) in the 1940s. An **ideological party** is founded on a doctrine such as socialism or conservatism, whereas a **pragmatic party** or "catch-all" party chooses policies according to what is likely to win votes. A **regional or ethnic party** is rooted in one section of the country, and a **national party** draws support everywhere.

Party systems

A **party system** is the pattern of competition among parties in a country. There are three main types.

- **One-party system.** Only one party is permitted by law, or one party so dominates that others cannot compete. It is found in states such as China and was once common in Africa (for example Tanzania before 1992). Its advantages are unity of purpose, quick decisions and low election costs. Its demerits are the absence of opposition, abuse of power, suppression of freedom and the tendency to produce dictatorship.
- **Two-party system.** Two major parties alternate in power, as in the United States (Democrats and Republicans) and, historically, the United Kingdom (Conservatives and Labour). The merits are stable majority governments, clear choice for voters and a strong opposition. The demerits are limited choice, the neglect of small interest groups and the risk of polarisation.
- **Multi-party system.** Several parties contest elections and none may win a majority, so coalitions are common; examples include Nigeria, India, Germany and Ghana. The merits are wide choice and representation of diverse interests; the demerits are weak coalitions, unstable governments, high costs and the proliferation of parties without clear programmes.

Some scholars add the **dominant-party system**, in which several parties exist but one wins every election for a long time, as the African National Congress did in South Africa from 1994 until 2024.

Key point. The number of parties is not the same as the type of party system. Nigeria's constitution does not limit the number of parties, so the system is multi-party, though in the Second Republic the 1979 rules for registration and in the Third Republic a decree imposed two parties by law.

6.2 Political parties in Nigeria

The nationalist era and the First Republic (1945 to 1966)

The earliest party was the Nigerian National Democratic Party (NNDP), formed in Lagos in 1923 by Herbert Macaulay after the Clifford Constitution had introduced elections. In 1938 the Nigerian Youth Movement, led by Ernest Ikoli, Samuel Akisanya and H. O. Davies, became the first truly national organisation. The **NCNC** was founded in 1944 with Herbert Macaulay as president and Nnamdi Azikiwe as general secretary. The **Action Group (AG)** was established in 1951 by Obafemi Awolowo, rooted in the West. The **Northern People's Congress (NPC)** was created in 1949 and became a party in 1951, led by Ahmadu Bello and Abubakar Tafawa Balewa; and the Northern Elements Progressive Union (NEPU), led by Aminu Kano, challenged the northern aristocracy. Other parties included the United Middle Belt Congress (UMBC), the Nigerian National Democratic Party in Western Nigeria, and the Dynamic Party.

In the First Republic the NPC and the NCNC formed the federal coalition government, with Tafawa Balewa as Prime Minister and Azikiwe as President (from 1963), while the AG was the opposition. The tendency of the major parties to rely on a single region contributed to tension, which was worsened by the 1962 crisis in the Western Region, the 1963 census dispute, the 1964 federal election and the 1965 Western Region election, and ended in the military coup of January 1966.

The Second Republic (1979 to 1983)

After thirteen years of military rule, parties were re-registered under the Federal Electoral Commission (FEDECO) in 1978. Five were registered: the **National Party of Nigeria (NPN)**, led by Shehu Shagari; the **Unity Party of Nigeria (UPN)**, led by Obafemi Awolowo; the **Nigerian People's Party (NPP)**, led by Nnamdi Azikiwe; the **Great Nigeria People's Party (GNPP)**, led by Waziri Ibrahim; and the **People's Redemption Party (PRP)**, led by Aminu Kano. The NPN won the 1979 presidential election and again in 1983. The Constitution required each party to have a national character, with offices open to all and an executive reflecting the federal character. The republic was ended by the coup of 31 December 1983.

The Third Republic (1989 to 1993)

The Babangida regime refused to accept the existing associations and instead created two parties by decree in 1989: the **Social Democratic Party (SDP)**, described as "a little to the left", and the **National**

Republican Convention (NRC), "a little to the right". The government wrote their manifestos and built their offices. The two-party arrangement was intended to reduce ethnic and regional rivalry. The presidential election of 12 June 1993, won by M. K. O. Abiola of the SDP according to the results announced by independent monitors, was annulled by the military government, a crisis that ended the transition.

The Fourth Republic (1999 to the present)

Under the transition of General Abdulsalami Abubakar, three parties qualified for the 1999 elections: the **People's Democratic Party (PDP)**, the **All Peoples Party (APP)**, later renamed the All Nigeria Peoples Party (ANPP), and the **Alliance for Democracy (AD)**. Olusegun Obasanjo of the PDP became President on 29 May 1999 and the PDP won the presidency until 2015. In 2013 the Action Congress of Nigeria (ACN), the Congress for Progressive Change (CPC), the ANPP and a faction of the All Progressives Grand Alliance (APGA) merged to form the **All Progressives Congress (APC)**. In 2015 the APC defeated an incumbent President for the first time in Nigeria's history, Muhammadu Buhari defeating Goodluck Jonathan, and the transfer of power was peaceful. Many other parties, such as APGA, the Labour Party and the Social Democratic Party, contest elections, and several are registered by INEC after satisfying conditions.

6.3 Pressure groups

A **pressure group** (or interest group) is an organised body of people who share a common interest and try to influence government decisions in favour of that interest without seeking to form the government. They differ from political parties in the following ways.

Feature	Political party	Pressure group
Aim	To win and control government	To influence government policy
Membership	Wide, open to all adults	Narrow, restricted to those with the interest
Programme	Broad, covering all areas of policy	Limited to the group's interest
Contests elections	Yes	Generally no
Responsibility	Responsible for governing if it wins	Does not bear responsibility for governing

Types of pressure group

- **Economic or occupational groups**: the Nigeria Labour Congress (NLC), the Trade Union Congress (TUC), the Manufacturers Association of Nigeria, the Nigerian Association of Chambers of Commerce.
- **Professional groups**: the Nigerian Bar Association (NBA), the Nigerian Medical Association (NMA), the Academic Staff Union of

Universities (ASUU), the Nigeria Union of Teachers (NUT) and the Nigeria Institute of Engineers.

- **Ethnic and cultural groups**: Afenifere (Yoruba), Ohanaeze Ndigbo (Igbo), the Arewa Consultative Forum (Northern Nigeria) and the Pan Niger Delta Forum.
- **Religious groups**: the Christian Association of Nigeria (CAN), the Nigerian Supreme Council for Islamic Affairs and the Jama'atu Nasril Islam.
- **Students' and women's associations**: the National Association of Nigerian Students (NANS), and the National Council of Women Societies.
- **Cause groups**: such as the Civil Liberties Organisation, Transparency International (Nigeria chapter) and environmental groups.

Methods and effects

Pressure groups use lobbying of legislators and ministers, publication of reports, press campaigns, petitions, public demonstrations, strikes and sit-ins, and sometimes court action. Their effects can be useful: they supply expertise, make government more responsive, allow people to take part between elections and defend minorities. But they can also be harmful, because powerful groups may secure privileges at the expense of the general public, a prolonged strike may cripple essential services, and unscrupulous groups may use violence or bribery.

6.4 Elections and suffrage

An **election** is a formal process by which qualified citizens choose persons to hold public office or decide a question. **Suffrage** (the franchise) is the right to vote. Universal adult suffrage means that every adult citizen, regardless of sex, wealth, education or religion, may vote. In Nigeria the minimum voting age is eighteen, and the voter must be a citizen who has registered. Women gained the franchise in the Southern regions in the 1950s, and in the North in 1979, a change that the military regime made in 1976 for local government elections.

Functions of elections

- They give the people the opportunity to choose their rulers and to remove unpopular ones.
- They confer legitimacy on the government, so that citizens accept its authority.
- They make leaders accountable, since a government that disappoints the people may lose at the next election.
- They provide a peaceful method for changing government.
- They educate and involve citizens in politics.

Types of election

- **General election**: held throughout the country at the end of a term for all or most offices.
- **Bye-election**: held to fill a vacancy that arises between general elections because of death, resignation or removal.

- **Run-off election**: a second round between the leading candidates when no candidate achieves the required threshold.
- **Primary election**: held within a party to choose its candidates.
- **Referendum** and **plebiscite**: a vote by the electorate on a specific question rather than on persons. A plebiscite is often used to settle the political status of a territory, as in the 1961 plebiscites in which Southern Cameroons chose to join Cameroon and Northern Cameroons chose to join Nigeria.

6.5 Electoral systems

An **electoral system** is the set of rules by which votes are converted into seats or offices.

- **Simple majority or plurality ("first past the post").** The candidate with the most votes in a constituency wins, even without a majority of all votes. It is simple and produces clear winners, but may allow a candidate with a minority of votes to win and wastes votes for losing candidates. It is used in Nigeria's legislative elections and in the United Kingdom.
- **Absolute majority.** A winner must receive more than half of valid votes. If no candidate does, a second ballot or run-off is held between the first two. France uses this for the presidency.
- **Proportional representation (PR).** Seats are allocated to parties in proportion to their share of votes, as in South Africa for the National

Assembly. PR is fair to smaller parties, but it can produce coalition governments and weaker ties between members and constituents.

- **Alternative vote and other preferential systems.** Voters rank candidates in order of preference.
- **Indirect election.** Voters choose electors, who then elect the officeholder, as in the United States Electoral College.

Direct and indirect, open and secret ballot

Elections may be **direct** when voters choose candidates themselves, or **indirect** when the choice is made through intermediaries. The ballot may be **secret**, which protects the voter from intimidation, or **open**, as in the option-A4 queuing system of the 1990s, in which voters lined up behind their candidates. The Nigerian Constitution requires a secret ballot with accredited voters, and the Electoral Act 2022 allows the electronic transmission of results and the use of the Bimodal Voter Accreditation System (BVAS).

6.6 The Nigerian electoral process

The Independent National Electoral Commission

Section 153 of the Constitution creates INEC, with the power, under the Third Schedule, to organise, undertake and supervise all elections to the offices of President, Vice-President, Governor, Deputy Governor and the National Assembly and State Houses of Assembly, to register political parties and monitor their finances, to register voters and to maintain the

register, and to monitor the organisation of party primaries. The chairman is appointed by the President and confirmed by the Senate; there are also twelve other national commissioners and resident electoral commissioners in each state. State Independent Electoral Commissions (SIECs) conduct local government elections. The tenure of the chairman is limited, and removal requires two-thirds vote of the Senate to ensure independence.

Qualification and procedures

To be elected President a candidate must be a citizen by birth, at least forty years old, a member of a political party and sponsored by it, and hold at least a school certificate or its equivalent. The President is elected for four years, renewable once. A candidate for Governor must be at least thirty-five, and for the Senate, thirty-five; for the House of Representatives, State Assembly, the minimum is twenty-five. The Constitution disqualifies persons convicted of certain offences, persons of unsound mind, declared bankrupt persons and members of secret societies.

Winning a presidential election

Section 134 provides that a candidate is elected President if he has the highest number of votes cast at the election and has not less than **one-quarter (25 per cent) of the votes cast in each of at least two-thirds of all the states in the Federation and the Federal Capital Territory**. There are thirty-six states, and two-thirds of thirty-six is twenty-four. Where no candidate meets these requirements, a run-off between the

candidate with the highest number of votes and the candidate who has the majority of the highest number of states is held within seven days. The winner in the run-off is the person with the majority of votes and not less than one-quarter of votes in two-thirds of the states, and, if no one meets that requirement, a further round is held in which the person with the most votes wins. The wording of the Constitution about the Federal Capital Territory has been debated in the courts, and the Supreme Court held in 2019 that the territory is to be treated as one of the thirty-six states only in the sense of counting votes, not as a thirty-seventh state for the purpose of the two-thirds requirement. Candidates for governor must win the highest votes and at least one-quarter of votes in two-thirds of the local government areas of the state.

Election tribunals

Disputes about the conduct and results of elections are settled by election petition tribunals and courts. A petition against a presidential election goes to the Court of Appeal, from which an appeal lies to the Supreme Court. A petition must be filed within twenty-one days of the declaration of the result, and the tribunal must give judgement within one hundred and eighty days.

6.7 Problems of elections in Nigeria

- **Electoral malpractice** such as ballot-box stuffing, thuggery, multiple voting, falsification of results and vote buying.

- **Violence and intimidation** that discourage voters and hinder campaigns.
- **Weak party structures**: godfatherism, imposition of candidates, money politics, and defections of politicians with no regard to ideology.
- **Bias of officials** or of security agents, and unequal use of state resources by the party in power.
- **Voter apathy**, which arises from distrust of the process, poor registration and the cost of travel to polling units; the turnout in several elections has been below fifty per cent.
- **Inadequate logistics**, late delivery of materials and failure of technology.

Remedies include strengthening INEC's independence, using biometric voter accreditation and electronic transmission of results, punishing offenders quickly through electoral offences tribunals, enforcing campaign finance limits, civic education, and professional conduct of the police and other agencies.

6.8 Worked examples

WORKED EXAMPLE 6.1

In a constituency, four candidates obtain the following votes: Candidate A 18,400; B 17,900; C 9,600; D 4,100. Under the plurality system, who wins, and what percentage of the total did the winner obtain? Would the winner be elected under an absolute majority rule?

Solution: Total votes = 18,400 + 17,900 + 9,600 + 4,100 = 50,000. Candidate A has the highest number and wins under plurality. Percentage = 18,400/50,000 × 100 = 36.8 per cent. Half of the votes is 25,000, and A has fewer than this, so A would not be elected under absolute majority; a run-off between A and B would be held.

WORKED EXAMPLE 6.2

Nigeria has thirty-six states and the Federal Capital Territory. In a presidential election, Candidate X obtains the highest number of votes nationwide. He scores at least 25 per cent of the votes in only twenty-two states and the FCT. Is he elected on the first ballot?

Solution: Two-thirds of 36 states = 24 states. Candidate X met the one-quarter requirement in only 22 states, even if the FCT is added (23 areas in the loose reading), which is below 24 states. Therefore he has not satisfied the spread requirement of section 134 and cannot be declared elected on the first ballot; a run-off must be held within seven days under the rules of the Constitution.

WORKED EXAMPLE 6.3

Under proportional representation, a party list system allocates 10 seats among three parties which obtain 450,000, 300,000 and 150,000 votes. How many seats does each party win if seats are strictly in proportion to votes?

Solution: Total votes = 450,000 + 300,000 + 150,000 = 900,000. Party 1 share = 450,000/900,000 = 1/2, giving 5 seats. Party 2 share = 300,000/900,000 = 1/3, giving 3.33 seats. Party 3 share = 150,000/900,000 = 1/6, giving 1.67 seats. After allowing the whole numbers (5, 3 and 1), one seat remains, which goes to the party with the largest remainder, Party 3 (0.67 against 0.33). So the allocation is Party 1: 5, Party 2: 3, Party 3: 2, a total of 10 seats.

WORKED EXAMPLE 6.4

Classify each organisation as a political party or a pressure group, and say why: (a) the Nigeria Labour Congress, (b) the Social Democratic Party, (c) the Nigerian Medical Association, (d) the Labour Party.

Solution: (a) The NLC is a pressure group because it defends the interests of workers and does not itself field candidates. (b) The SDP is a political party, since it is registered to contest elections to win control of government. (c) The NMA is a professional pressure group promoting medical standards and doctors' welfare. (d) The Labour Party is a political party registered by INEC, even though its name suggests a link with labour; the name does not decide the classification, the activity does.

6.9 Practice

Exercise 6.1

1. The party founded in 1951 by Obafemi Awolowo was the (A) NCNC (B) Action Group (C) NPC (D) UPN.
2. The two parties created by the Babangida government were the (A) NPN and UPN (B) SDP and NRC (C) PDP and APP (D) AD and APP.
3. The body that registers political parties in Nigeria is (A) NJC (B) CCB (C) INEC (D) NASS.

4. A pressure group differs from a political party in that it (A) contests elections (B) seeks to influence government but not to govern (C) has a manifesto for all policy areas (D) forms the government.
5. A system under which only one party is lawful is called (A) multi-party (B) two-party (C) one-party (D) dominant-party.
6. A vote by the people on a single issue is a (A) referendum (B) bye-election (C) primary (D) caucus.
7. State four functions of political parties.
8. Give three merits and two demerits of the multi-party system.
9. List four problems associated with elections in Nigeria.
10. In a state, there are 774 local government areas in the federation, but a particular state has 20 and a governorship candidate must have a quarter in two-thirds of them. In how many local government areas must he get one-quarter of the votes?

Answers to Exercise 6.1

1. (B). The Action Group was formed in 1951.
2. (B). The Social Democratic Party and National Republican Convention.
3. (C). INEC registers parties under the Constitution and the Electoral Act.
4. (B). Pressure groups influence, but do not seek to govern.

5. (C). One-party.
6. (A). A referendum asks the electorate to decide an issue.
7. Aggregating interests; choosing candidates; forming government or opposition; educating voters; linking people to rulers.
8. Merits: wide choice, representation of diverse interests, discourages dictatorship. Demerits: unstable coalitions, high costs.
9. Any four: rigging, violence, vote buying, voter apathy, weak parties, poor logistics, bias of officials.
10. Two-thirds of 20 = 13.33, so at least 14 local government areas are needed because a fraction of an area cannot be counted.

Exercise 6.2

1. Nigeria's first national political organisation of the 1930s was the (A) NYM (B) NNDP (C) NEPU (D) GNPP.
2. The minimum voting age in Nigeria is (A) 16 (B) 18 (C) 21 (D) 25.
3. Which of these is a pressure group? (A) PDP (B) APC (C) ASUU (D) APGA.
4. The system of election in which the winner needs only the largest number of votes is (A) proportional representation (B) plurality (C) absolute majority (D) alternative vote.
5. A bye-election is held (A) every four years (B) to fill a vacancy between general elections (C) to choose party candidates (D) to approve a constitution.

6. Election results can be challenged at (A) a village council (B) an election petition tribunal (C) the Public Complaints Commission (D) a police division.
7. Distinguish between a plebiscite and a general election.
8. Why did Nigeria's military rulers prefer to create parties by decree in 1989?
9. A constituency of 80,000 valid votes has candidates P, Q and R who get 32,000, 28,000 and 20,000 votes. Find the winner's percentage and whether he gets an absolute majority.
10. Describe two ways in which pressure groups influence government decisions.

Answers to Exercise 6.2

1. (A). The Nigerian Youth Movement, founded in 1934 and prominent from 1938.
2. (B). Eighteen years.
3. (C). ASUU is a union and pressure group.
4. (B). Plurality or first past the post.
5. (B). It fills a vacancy created between general elections.
6. (B). Election petition tribunals hear petitions.
7. A plebiscite is a vote on a specific question, such as territorial status; a general election chooses representatives.
8. To control the number and ideology of parties and reduce ethnic and regional competition; but it removed freedom of association.

9. 32,000/80,000 × 100 = 40 per cent; this is below 50 per cent, so there is no absolute majority.
10. Lobbying of legislators and ministers; strikes, demonstrations and press campaigns.

Chapter summary

- A political party is an organised group seeking to win government power by election; its functions include interest aggregation, recruitment of leaders, forming government, opposition and political education.
- Party systems are one-party, two-party and multi-party; each has distinct merits and demerits, and Nigeria is multi-party.
- Nigerian parties: NNDP, NCNC, AG, NPC (First Republic); NPN, UPN, NPP, GNPP, PRP (Second); SDP and NRC (Third); PDP, ANPP/APP, AD and later APC (Fourth).
- Pressure groups seek to influence policy but not to govern; examples are the NLC, NBA, ASUU, NMA and ethnic and religious associations.
- Electoral systems include plurality, absolute majority, proportional representation and indirect election; suffrage in Nigeria is universal at eighteen.
- INEC organises elections; a presidential winner needs the highest votes and one-quarter in at least two-thirds of the states

(24 of 36) and the FCT; otherwise there is a run-off within seven days.

- Problems of elections include rigging, violence, apathy and weak parties; remedies are electoral reform, technology, civic education and an independent INEC.

Chapter 7: Pre-colonial and Colonial Administration in Nigeria

The territory that became Nigeria in 1914 was never a political blank sheet. Long before European traders, missionaries and soldiers arrived, its peoples had built kingdoms, empires, city-states, village republics and loose confederations, each with its own way of choosing rulers, making laws, settling disputes and collecting revenue. The study of these arrangements is not an exercise in nostalgia. It explains why the colonial administrators chose the methods they did, why those methods succeeded in some regions and failed in others, and why many of the tensions in modern Nigerian politics have roots in the different political cultures of the northern, western, eastern and mid-western peoples.

This chapter examines in turn the traditional political systems of the Hausa-Fulani, the Yoruba, the Igbo and the Benin Kingdom; the process by which Britain acquired and amalgamated the territories; the policy of indirect rule; and the reasons for its different fortunes in the three regions. It ends with an assessment of the colonial legacy. Examination questions in this area are usually factual and comparative, so you must know names, dates and offices exactly, and you must be able to compare one system with another in terms of structure and principle.

7.1 Why pre-colonial systems differed

Political organisation in pre-colonial Nigeria varied along a spectrum. At one end stood highly centralised systems, in which authority flowed from a single ruler through a hierarchy of officials: the Hausa city-states after the Fulani jihad, the Oyo Empire and the Benin Kingdom are examples. At the other end stood **acephalous** (literally, "headless") societies, in which no single person or office held authority over the whole community and decisions were reached through councils of elders, lineage heads, age grades and secret societies. Most Igbo communities, the Tiv, the Idoma in many areas and a number of smaller groups belonged to this second type.

Several factors shaped these differences: the size and density of the population, the need for defence, the influence of long-distance trade, the spread of Islam in the north, the nature of land ownership and the strength of kinship ties. Where armies, taxation and trade routes demanded central control, kingdoms grew. Where families controlled land and settled their own disputes, power remained dispersed.

> **Key point.** Pre-colonial political systems may be classified as centralised (emirate, Oyo, Benin) or non-centralised or acephalous (most Igbo communities, Tiv). Both types had rules, leaders, courts and ways of limiting abuse of power. Neither was "primitive".

7.2 The Hausa-Fulani emirate system

Origins

Before the nineteenth century the Hausa land consisted of city-states such as Kano, Katsina, Zazzau (Zaria), Gobir, Daura, Rano and Biram, each ruled by a hereditary king called the *Sarki*. The Sarki ruled with a council of titled officials and was both political and military head. Islam had been introduced into Kano and Katsina in the fourteenth and fifteenth centuries and became the religion of the court and the towns, although many rulers mixed it with traditional practices and taxed their subjects heavily.

Between 1804 and 1810 a Fulani Muslim scholar, **Usman dan Fodio**, led a *jihad* (holy war) against the Hausa rulers, whom he accused of corruption, oppression and the corruption of Islam. His supporters overthrew the Hausa kings, and the conquered states were brought together into the **Sokoto Caliphate**. Usman dan Fodio took the religious title *Sarkin Musulmi* (Commander of the Faithful) and gave flags to his lieutenants, who became emirs of the new emirates. His son, Muhammad Bello, established Sokoto as the capital, and Usman's brother, Abdullahi, governed the western part of the empire from Gwandu. By the end of the century the caliphate comprised some thirty emirates, among them Kano, Katsina, Zaria, Bauchi, Gombe, Adamawa, Nupe and Ilorin.

Structure of government

At the head of the caliphate stood the Sarkin Musulmi at Sokoto, the spiritual and political leader. Each emirate was governed by an **emir**, who was appointed by the Sarkin Musulmi (in practice, from the ruling Fulani houses, with the advice of a council of kingmakers) and who owed him loyalty and an annual tribute. Within his emirate the emir had wide powers: he was the chief executive, the head of the judiciary, the commander of the army and the principal revenue collector.

The emir governed with the help of titled officials who formed his council. Among them were:

- the *Waziri*, the chief adviser or vizier, who acted as head of the administration and often as the link between the emir and the officials;
- the *Galadima*, who supervised the capital and sometimes certain districts;
- the *Madawaki*, the commander of the army and the cavalry;
- the *Magaji* or *Maaji*, the official in charge of the treasury or of tax records, depending on the emirate;
- the *Sarkin Dogarai*, head of the emir's bodyguard and police;
- the *Alkali* (judge), who administered Islamic law in the courts.

The emirate was divided into districts, each under a *Hakimi* (district head), often a titled aristocrat living in the capital who ruled through a resident agent called the *Jakadi*. Below the district were villages under

village heads (*Dagaci* or *Mai Gari*). Orders passed down the chain, taxes passed up. The administration was therefore hierarchical, with each official responsible to the one above him.

Law, revenue and the army

The legal system was based on Islamic law (the *Sharia*) administered by alkalis, with the emir as final court of appeal. This gave the system an accepted, written and religiously sanctioned body of law, which later influenced the British decision to retain it.

Revenue came from several taxes: *Kharaji*, a tax on agricultural land, *Jangali*, a tax on cattle owned by herders, *Zakkat*, a religious levy on crops and livestock, and *Jizya*, a tax paid by non-Muslims. The emir also received tribute, court fines, tolls on trade and gifts. The army consisted of cavalry and foot soldiers raised from the districts.

Checks on the emir

Although the emir held great power, he was not an absolute ruler in theory. The Sharia bound him as it bound every Muslim, the council of officials advised and restrained him, and a ruler who became grossly unjust could be removed by the Sarkin Musulmi acting with the kingmakers. The administration was also staffed largely on merit, by training in Islamic scholarship, though high office tended to remain with the aristocracy.

Key point. The Hausa-Fulani system was centralised, hierarchical and religious. Authority came from the Sarkin Musulmi down through emirs, district heads and village heads; law was the Sharia; taxation was well organised. These features made it easy for Lugard to rule through the existing emirs.

7.3 The Yoruba political system

The Yoruba lived mainly in the south-west in a number of kingdoms, including Oyo, Ife, Ijebu, Egba, Ijesha and Ekiti, with Ile-Ife regarded as the spiritual cradle. Politically the best known was the **Old Oyo Empire**, which at its height in the seventeenth and eighteenth centuries controlled much of Yorubaland and extended its influence beyond the Niger. Its capital, Oyo-Ile, was later destroyed in the early nineteenth century, and the Yoruba were thrown into the long era of wars that followed.

The Alaafin and his council

The king of Oyo was the *Alaafin*, a sacred monarch chosen from the royal lineage. He was regarded as the representative of the gods on earth and as the symbol of the unity of the empire. Although he held the highest office, he was not an absolute ruler. His power was checked by a council of seven principal chiefs, the **Oyo Mesi**, headed by the *Bashorun* (the prime minister). The Oyo Mesi chose a new Alaafin from the eligible royal candidates, advised the king and, importantly, could

withdraw their support from a king they considered unjust. The traditional method of doing so was for the Bashorun to present the king with an empty calabash or a parrot's egg, a message that he should accept death. In this way there was a built-in check on royal misuse of power.

The Alaafin also had his own palace officials, including the *Ilari*, a group of palace messengers and enforcers who served as agents in the provinces, and the *Eunuchs* who kept order in the palace. His military commander was the *Aare Ona Kakanfo*, the field marshal, who usually lived on the frontier, away from the capital, so that he could not threaten the king at home.

The Ogboni

Another important institution was the **Ogboni**, a council of elders and a secret society, concerned with the religion of the earth. It acted as a check on the Oyo Mesi and sometimes on the king, served as a court in serious matters, and played a role in the ratification of important decisions. Together with the Oyo Mesi it formed a system of balances: the king, the Oyo Mesi and the Ogboni all had to be considered.

The provinces and the lineage heads

The empire was divided into provinces and tributary kingdoms. Subordinate rulers, often called *Oba* or *Baale* (the title Baale being used for heads of smaller towns and villages), governed their territories and sent annual tribute to Oyo. The Alaafin's agents, the Ilari, resided in

provincial capitals to oversee collection. At the local level, the compound or lineage head (*Baale ile*) settled family disputes and represented his family in the town council.

Features of Yoruba government

- It was a monarchy with checks and balances: the Alaafin was limited by the Oyo Mesi and the Ogboni.
- The kingship was hereditary within the royal lineage but required the approval of the kingmakers.
- Law was customary and unwritten, administered by the king, chiefs and elders.
- Revenue came from tribute, tolls, fines and the proceeds of war.
- It had a strong military organisation led by the Aare Ona Kakanfo.

7.4 The Igbo political system

Most Igbo communities in the south-east were **acephalous**. There was no king over the whole Igbo people, and not even a single paramount ruler within most large clans. The basic political unit was the village or village group, made up of lineages descended from a common ancestor. The system is often called a form of *village democracy* because all adult men (and, through their own organisations, women) could take part in some way in the community's affairs.

Institutions of Igbo government

- **The family and lineage.** The head of the extended family (the *Okpara* or the eldest male of the lineage) settled disputes among relatives and represented the family in the village.
- **The council of elders** (*Ama-ala* or *Ohan'eze* at the village level, and *Ndi Ichie* in some areas). Heads of lineages met to discuss matters of the village, settle disputes, and decide matters of war and peace.
- **The village assembly.** Important matters, such as the introduction of new laws or the settlement of a great dispute, were thrown open to all adult males, and decisions were taken by general agreement after lengthy discussion.
- **Age grades.** Men born within a few years of one another formed an age grade. Age grades carried out public work such as clearing roads and markets, policing the community and, in the past, fighting its wars. Each grade had its leaders and so provided training in responsibility.
- **Title societies.** The *Ozo* title and others of that kind were purchased through expensive ceremonies and carried high social status. Title-holders were respected, consulted and expected to uphold the law.
- **Secret societies and the oracle.** Societies such as the *Ekpe* (or Mgbe) in the Cross River area and the *Okonko* in parts of the Igbo country enforced law and order. Oracles, notably the Long Juju of Arochukwu (*Ibini Ukpabi*), served as courts of last resort for serious disputes between communities, and the Aro people extended their influence across a wide commercial network.

- **Women's organisations.** Women had their own associations, such as the *Umuada* (daughters of the lineage) and village women's councils, which could sanction offenders and, as the Aba Women's War of 1929 later showed, could mobilise on a large scale.

Exceptions

Not all Igbo areas were headless. Onitsha, for example, had a monarch called the *Obi*, assisted by a council of titled chiefs (*Ndichie*), reflecting Benin influence on the western Igbo. The Nri kingdom had a priest-king, the *Eze Nri*, who exercised mainly religious authority over a wide area.

> **Key point.** In the Igbo system authority was dispersed. Decisions were made by consensus in councils and assemblies; age grades, title societies and secret societies kept order. The absence of a central ruler made later British indirect rule hard to apply.

7.5 The Benin Kingdom

The Benin Kingdom, in the present Edo State, was one of the most sophisticated states in West Africa. Its ruler, the **Oba**, was a divine king, believed to be the descendant of the first dynasty founded after the Ogiso rulers; the dynasty traces its origin to Oranmiyan of Ile-Ife in the late twelfth or thirteenth century. In time the Obas, especially Ewuare

the Great in the fifteenth century, centralised the kingdom, reduced the power of hereditary chiefs and built the great earthworks and the walled city.

Government was carried out by three groups of chiefs:

- the **Uzama**, the hereditary nobles (senior kingmakers) who, in the past, chose and installed the Oba, and whose head, the *Oliha*, was the leading figure;
- the **Eghaevbo n'Ore**, the town chiefs, who were the Oba's appointed administrators and whose leader was the *Iyase*, the prime minister and commander of the army;
- the **Eghaevbo n'Ogbe**, the palace chiefs, who managed the royal household and the Oba's personal affairs.

The Oba's authority was reinforced by the principle of *primogeniture*, that is, the eldest son of an Oba succeeded him, which reduced the competition between rival claimants. The kingdom was divided into districts ruled by appointed chiefs and, in the conquered areas, by sons of the Oba or loyal chiefs, from whom tribute was collected. Wealth came from trade in pepper, ivory, and brass and in later centuries from the slave trade, and from tribute and taxes. Benin was crushed by a British punitive expedition in 1897, which sacked the city, exiled the Oba Ovonramwen and carried away thousands of bronzes and ivories.

7.6 Other systems

Many other peoples had their own systems, and it is good for strong candidates to know of them. The **Tiv** of the Benue valley were acephalous, organised in segmentary lineages; the **Nupe** and **Borgu** kingdoms were centralised monarchies; the Niger Delta **city-states** such as Bonny, Brass, Kalabari and Opobo were ruled by "house" heads, with the king chosen for his success in trade; and the **Kanem-Borno** empire, ruled by the Mai and later the Shehu, was among the oldest in the Sudan region, dating from about the ninth century.

7.7 British acquisition of Nigeria

British involvement in the area developed in stages. After the abolition of the slave trade (1807 for Britain), the Royal Navy patrolled the coast, and British traders turned to "legitimate commerce" in palm oil. Missionaries and explorers opened the interior. Gradually the pursuit of trade and, later, the rivalry with France and Germany for African territory led to formal control.

- **1851:** the British bombarded Lagos to depose Oba Kosoko, who was opposed to ending the slave trade, and installed Akitoye.
- **1861:** Lagos was annexed as a colony after King Dosunmu (Docemo) was forced to sign a treaty of cession. It became the Colony of Lagos in 1862.
- **1879 to 1886:** several British trading firms were merged by George Taubman Goldie into the United African Company, which became

the National African Company and in 1886 received a charter as the **Royal Niger Company**, governing the Niger region and monopolising trade.

- **1884 to 1885:** the Berlin Conference recognised the British sphere of influence along the Niger and laid down the principle of "effective occupation" as the basis for claims in Africa.
- **1893:** the Oil Rivers Protectorate (1885) was reorganised as the Niger Coast Protectorate.
- **1900:** the Royal Niger Company's charter was revoked and sold to the government. The territories were reorganised into the **Protectorate of Northern Nigeria** (under Frederick Lugard as High Commissioner) and the Protectorate of Southern Nigeria, formed by joining the Niger Coast Protectorate with part of the Royal Niger Company's territory.
- **1906:** the Colony of Lagos and the Southern Nigeria Protectorate were merged into the Colony and Protectorate of Southern Nigeria.
- **1 January 1914:** the Northern and Southern Protectorates were **amalgamated** by Lord Lugard, who became the first Governor-General of Nigeria.

Reasons for the amalgamation

The principal reason was financial. The North was poor and could not raise enough revenue to meet its administrative expenses, while the South had a surplus from customs duties on trade. By joining the two, the deficit in the North could be met by the surplus in the South. Other

reasons were administrative convenience (one railway system and customs service) and the wish to apply uniform policies, and strategic and political considerations such as stopping French competition.

7.8 Indirect rule

Indirect rule was the system of colonial administration under which the British governed the local population through the existing traditional rulers and institutions, subject to the supervision of British officials. It is associated with Lord Lugard, who first applied it in Northern Nigeria after 1900, and who set out his ideas in his book *The Dual Mandate in British Tropical Africa* (1922). Lugard argued that Britain's duty was twofold: to develop the resources of the colonies for the benefit of the world, and to advance the welfare of the Africans.

Why Britain adopted it

- **Shortage of personnel and funds.** Britain had few officials and little money. In the North a few hundred British officers governed millions of people, and the emirs saved the cost of a large civil service.
- **The existing system was efficient.** The emirate structure already had tax collection, courts and a hierarchy that the British could use.
- **Peace and stability.** Ruling through familiar chiefs reduced the likelihood of rebellion.
- **Language and cultural barriers.** Few British officers spoke the local languages.

- **The philosophy of the "dual mandate"** that the colonial power should respect the institutions of the people.

Features and machinery

Under the system, each emirate or area was constituted as a **Native Authority**, headed by the emir or chief. The British Resident supervised each province, with District Officers below him, and acted as an adviser to the traditional ruler, although orders were in fact obeyed. The Native Authority had its own **Native Court** applying native law and custom, a **Native Treasury** into which the taxes it collected were paid (a part going to the central government), and a Native Authority police force. The Governor held ultimate power, with the Lieutenant-Governors of North and South under him.

The traditional ruler, in the eyes of the British, now drew his authority from the colonial state as well as from tradition: he could be removed by the Governor if he opposed the government. That was a serious change, since the emir no longer depended solely on his people and religious leaders.

7.9 Indirect rule in the three regions

Northern Nigeria: success

Indirect rule worked best in the North. The Sokoto Caliphate already had a hierarchy of officials, an established system of taxation, an Islamic legal system and a tradition of obedience to the emir. After the defeat of

Sokoto in 1903, Lugard confirmed the emirs in their positions (provided they accepted British authority) and used them to collect tax, administer justice and keep order. The reforms he introduced were chiefly changes of detail, such as ending slave raiding, replacing the emirs' arbitrary exactions with fixed taxation and ensuring that taxes passed through the Native Treasury. The system lasted, with changes, until the 1950s. It also helped preserve the position of the emirs and slowed the spread of Western education and political parties in the North.

Western Nigeria: partial success

In the West, indirect rule was introduced with the Oba and chiefs as the Native Authority. It succeeded to a degree, since the Yoruba also had a hierarchy of rulers. But there were difficulties. Yoruba kings were not as powerful as the emirs, being checked by councils of chiefs; the new tax system was resented; and the educated elite, mostly in Lagos, Abeokuta and Ibadan, rejected rule by the traditional chiefs, whom they thought uneducated. Disputes arose with the Oba over taxes, as in the Egba and Ijebu areas. The Alake of Abeokuta and the Awujale of Ijebu-Ode were strong, but in some areas there was no clear paramount ruler. The system worked in the sense that it kept order, yet it caused tension.

Eastern Nigeria: failure

The system failed in the East. Because Igbo society was acephalous there were no chiefs for the British to use. The British therefore created **warrant chiefs**, men appointed by the British and given a warrant (a certificate of authority) to rule. Many were unpopular or unscrupulous

men who enriched themselves; they sat in the Native Courts as judges and collected fees and bribes. The people saw them as foreign agents without any traditional legitimacy.

The resentment boiled over in 1929 in the **Aba Women's Riot** (also called the Women's War), in which thousands of women from Owerri, Calabar and Aba provinces protested against the warrant chiefs and the rumour that the government intended to tax women. The women, using traditional methods of "sitting on a man" (a form of public shaming) marched, sang and attacked Native Court buildings. Troops opened fire and about fifty women were killed. A commission of inquiry later led to the reform of the Native Court system and the abolition of the warrant chief arrangement.

> **Key point.** Indirect rule succeeded where there was a strong centralised hierarchy (the North), partly succeeded where traditional rulers were checked by councils and educated elites (the West), and failed where society was acephalous and chiefs had to be invented (the East).

7.10 Merits and demerits of indirect rule

Merits

- It was cheap, since few British officials were needed.
- It preserved local institutions, customs and languages.

- It kept the traditional rulers in position, which helped stability in the North.
- It ensured that the people were ruled by leaders they knew, reducing friction.
- It provided an early training in administration to local people.

Demerits

- It made traditional rulers dependent on the British and, in some cases, tyrannical, since their position rested on colonial backing rather than on their people.
- It slowed modernisation. In the North the emirs resisted missionary education and change, creating a lasting gap between North and South.
- It created the warrant chiefs in the East, leading to the Aba Women's Riot of 1929.
- It excluded the educated class, who were seen as a threat, and so bred nationalist opposition.
- It encouraged separate development of the regions, thereby delaying national unity.
- Taxation was resented, being introduced as direct tax in areas where it had not existed.

7.11 Colonial administration after 1914

The amalgamation of 1914 was only partial. The North and South kept separate administrations under Lieutenant-Governors, separate budgets and separate policies. The amalgamation created the **Nigerian Council**, a purely advisory body that met only occasionally and had little real power. It included the Governor-General, officials, traditional rulers and a small number of nominated unofficial members, and it had no authority over the North. The Council was replaced in 1922 by the Legislative Council of the Clifford Constitution (studied in the next chapter).

The colonial government was, in structure, a pyramid. At the top were the Governor, assisted by an Executive Council made up of senior officials, and the Colonial Office in London led by the Secretary of State for the Colonies. Below the Governor were the Lieutenant-Governors, Residents (provincial heads), District Officers and finally the Native Authorities. Policy was decided in London, while local decisions rested largely with the British officers on the spot, with little or no consultation of Nigerians until the 1920s.

7.12 Impact of colonial rule

The colonial period left a mixed record. It brought the end of the slave trade and slave raiding, a unified territory with railways, roads, a postal service and a common currency, Western education through mission schools, a modern judicial system, and the English language as a means

of national communication. It also exploited the economy for the benefit of Britain, drew artificial boundaries that grouped hostile peoples and divided kin, entrenched regional differences by ruling the North and South separately, and encouraged the production of cash crops and minerals for export instead of a balanced economy. The tendency to divide the peoples into regions and ethnic blocks influenced the party system and later federal arrangements.

7.13 Worked examples

WORKED EXAMPLE 7.1

Explain why Lord Lugard found it easy to apply indirect rule in the Sokoto Caliphate but difficult in Igboland.

Solution: Compare the political structures. Step 1: In the Caliphate the political system was centralised. The Sarkin Musulmi headed the emirs; each emir had a council, district heads and village heads, with a developed tax system and Islamic law courts. Step 2: This hierarchy could be taken over with little change. The British needed only to confirm emirs, supervise through Residents and ensure that taxes were paid into the Native Treasury. Step 3: In Igboland authority was dispersed among lineage heads, councils of elders, age grades and secret societies; no chief had authority over a wide area. Step 4: The British, who expected to find chiefs, appointed warrant chiefs, who lacked legitimacy and were resented, leading to the Aba Women's Riot of 1929. Conclusion: indirect rule works only where there is an existing centralised authority that the people already obey.

WORKED EXAMPLE 7.2

Distinguish between the Oyo Mesi and the Ogboni in the Yoruba system of government, and say how each checked the Alaafin.

Solution: The Oyo Mesi were a council of seven principal hereditary chiefs headed by the Bashorun; they chose the Alaafin from the royal lineage, advised him, and could demand that he commit suicide (by presenting a calabash or parrot's egg) if he ruled unjustly. The Ogboni were a council of elders, also a secret society, concerned with the earth cult; they acted as a court and a check on both the Oyo Mesi and the king and could influence the ratification of important decisions. Thus the Oyo Mesi were the chief political check on the king, while the Ogboni's check was religious and judicial. Together they ensured that no single office held unlimited power.

WORKED EXAMPLE 7.3

A colonial officer in 1912 writes that the North "pays for itself" only if help is received from the South. State the financial reasoning behind the 1914 amalgamation and calculate the position if the North had a revenue of £250,000 and expenditure of £420,000 while the South had revenue of £1,650,000 and expenditure of £1,400,000.

Solution: Step 1: Northern deficit = 420,000 − 250,000 = £170,000. Step 2: Southern surplus = 1,650,000 − 1,400,000 = £250,000. Step 3: Combined position = 250,000 − 170,000 = a surplus of £80,000. Step 4: The surplus in the South could therefore cover the entire northern deficit, and still leave £80,000. This illustrates the financial motive: the amalgamation allowed southern customs revenue to finance northern administration, which Lugard needed to carry out his policy and to avoid further grants from the British Treasury. (The figures are for illustration and are not historical statistics.)

WORKED EXAMPLE 7.4

List the ways in which the warrant chief system differed from the traditional Igbo method of government.

Solution: Compare in four respects. (a) Source of authority: warrant chiefs were appointed by the British and held a warrant; traditional leaders drew authority from lineage, age and title and from the consent of the community. (b) Method of decision: warrant chiefs made decisions alone in the Native Courts; traditional decisions were taken in councils and village assemblies by consensus. (c) Accountability: warrant chiefs answered to the District Officer and could ignore their people; traditional leaders could be shamed or ignored by their own community. (d) Rewards: warrant chiefs obtained fees, bribes and often forced labour; traditional leaders received respect and a share of title fees. These differences explain the unpopularity of the system and its collapse after 1929.

WORKED EXAMPLE 7.5

Arrange the following in chronological order: amalgamation of Nigeria; annexation of Lagos; revocation of the Royal Niger Company's charter; Aba Women's Riot; Berlin Conference.

Solution: Annexation of Lagos (1861); Berlin Conference (1884 to 1885); revocation of the Royal Niger Company's charter (1900); amalgamation of Nigeria (1914); Aba Women's Riot (1929).

7.14 Practice

Exercise 7.1

1. Who led the jihad of 1804 which led to the formation of the Sokoto Caliphate?
2. What title was given to the head of the Sokoto Caliphate?
3. Name the council of seven chiefs that checked the Alaafin of Oyo.
4. Who was the head of the Oyo Mesi?
5. Which of these was a feature of the traditional Igbo political system: (a) a hereditary king over all the Igbo, (b) rule by councils of elders and age grades, (c) an emir, (d) rule by an Oba?
6. Name the three groups of chiefs in the Benin Kingdom.

7. What is a warrant chief and in which region was the system used?
8. Give any three reasons why Britain adopted indirect rule.
9. In what year did Lord Lugard amalgamate the Northern and Southern Protectorates?
10. State four demerits of indirect rule.
11. If a Native Treasury collected ₦2,400,000 in taxes and sent one-quarter of it to the central government, how much did it retain?
12. Explain why indirect rule is said to have widened the gap between North and South.

Answers to Exercise 7.1

1. Usman dan Fodio, a Fulani Muslim scholar.
2. Sarkin Musulmi (Commander of the Faithful), also called the Sultan of Sokoto.
3. The Oyo Mesi.
4. The Bashorun.
5. (b): decisions were reached by councils of elders, village assemblies and age grades.
6. The Uzama, the Eghaevbo n'Ore (town chiefs) and the Eghaevbo n'Ogbe (palace chiefs).
7. A man appointed by the British and given a warrant of authority to rule and sit in the Native Court; it was used mainly in Eastern

Nigeria, where there were no traditional chiefs.

8. Shortage of British personnel; shortage of funds; the existence of efficient local systems; language barriers; the desire to keep peace.
9. 1914 (1 January).
10. It made rulers dependent on the British; it slowed modernisation, especially in the North; it created warrant chiefs and led to the Aba Women's Riot; it excluded the educated elite; it caused resentment over taxation; it encouraged regional separation.
11. One-quarter of 2,400,000 = 600,000 sent; the Treasury retained 2,400,000 − 600,000 = ₦1,800,000.
12. The North and South were governed by different methods and policies; the emirs excluded missionaries, so the North lagged in Western education while the South advanced, and separate development hindered national unity.

Exercise 7.2

1. Describe the structure of an emirate in the Sokoto Caliphate from the emir downwards.
2. State three powers of the Alaafin and three restraints upon him.
3. Why is the Igbo system called "village democracy"?
4. What was the importance of the Aba Women's Riot of 1929?
5. Which document or event placed Lagos under British rule in 1861?

6. Name the book in which Lord Lugard set out his ideas on colonial administration.
7. Name two taxes collected in the emirate system.
8. What part did the Native Court play in indirect rule?
9. Compare the position of the Oba of Benin with that of the Alaafin of Oyo.
10. Explain the term "dual mandate".

Answers to Exercise 7.2

1. Emir, advised by a council (Waziri, Galadima, Madawaki, Magaji, alkali); then district heads (Hakimi) with Jakadi agents; then village heads (Dagaci).
2. Powers: head of state and religion, appointed officials, command of the army and tribute. Restraints: the Oyo Mesi and Bashorun, the Ogboni, and the threat of the empty calabash.
3. Because decisions were taken by general discussion in councils and assemblies in which all adult members could take part, without a single ruler.
4. It forced the British to abolish the warrant chiefs and reform the Native Courts.
5. The Treaty of Cession signed by King Dosunmu (Docemo), followed by annexation.
6. *The Dual Mandate in British Tropical Africa* (1922).
7. Any two of: Kharaji (land tax), Jangali (cattle tax), Zakkat, Jizya.

8. It administered justice by native law and custom under the Native Authority.
9. Both were sacred, hereditary kings with councils; the Oba was stronger, being strengthened by primogeniture and by his control of titles, while the Alaafin was more strictly checked by the Oyo Mesi and Ogboni.
10. Britain's twofold obligation to develop the colonies' resources for the world and to promote the welfare of the native peoples.

Chapter summary

- Pre-colonial Nigeria had centralised systems (Hausa-Fulani emirates, Oyo, Benin) and acephalous systems (most Igbo communities, Tiv).
- The Sokoto Caliphate, founded by Usman dan Fodio after the 1804 jihad, was governed by the Sarkin Musulmi, emirs, district and village heads, under the Sharia.
- The Yoruba Alaafin was checked by the Oyo Mesi (led by the Bashorun) and the Ogboni; the Aare Ona Kakanfo led the army.
- Igbo government rested on lineages, councils of elders, village assemblies, age grades, title societies and secret societies.
- Benin was ruled by the Oba with the Uzama, the Eghaevbo n'Ore and the Eghaevbo n'Ogbe; the Iyase was prime minister.

- Britain annexed Lagos in 1861, formed the Northern and Southern Protectorates in 1900 and amalgamated them in 1914 under Lugard, chiefly for financial reasons.
- Indirect rule used traditional rulers under British supervision through Native Authorities, courts and treasuries; it succeeded in the North, partly in the West and failed in the East, where warrant chiefs led to the 1929 Aba Women's Riot.
- Colonial rule brought unity, infrastructure and education but also exploitation, artificial boundaries and regional divisions.

Chapter 8: Constitutional Development in Nigeria

A constitution is the framework within which a state is governed, and Nigeria has had many of them. Between 1914 and the present the country has lived under colonial orders-in-council, an independence constitution, a republican constitution, several military arrangements and a succession of civilian documents. Each change reflected a struggle: between the colonial government and the nationalists, between regions, between civil and military rule, and between competing ideas of how power should be shared. To understand Nigerian politics one must know what each constitution provided, why it was introduced and why it eventually gave way to the next.

The chapter follows the chronological order of the pre-independence constitutions, the independence and republican constitutions, the periods of military rule, and the civilian constitutions of 1979 and 1999. Examination questions usually ask for the main provisions, the merits and demerits, and the significance of each constitution, so those points are emphasised throughout.

8.1 Before the Clifford Constitution

After the amalgamation in 1914 the Governor-General, Lord Lugard, governed with an Executive Council of officials and a **Nigerian Council**. The Nigerian Council had 36 members, of whom 26 were

officials and 10 were unofficial; of these a few were Africans nominated by the Governor, including traditional rulers. It could only discuss matters and advise; it had no power to make laws and it excluded the North, which the Governor ruled by proclamation. It met once a year and was effectively an ineffective talking shop, which Nigerian nationalists mocked. Lagos's elected representation in earlier councils was lost, and educated Nigerians resented their exclusion from government.

In the 1920s the National Congress of British West Africa, founded by J. E. Casely Hayford of the Gold Coast, pressed for elective representation and other reforms across British West Africa, and Herbert Macaulay in Lagos agitated vigorously. Together these pressures, and the decision of the new Governor to try a fresh approach, led to the 1922 constitution.

8.2 The Clifford Constitution of 1922

Named after Governor Sir Hugh Clifford, this constitution replaced the Nigerian Council with a **Legislative Council** and an Executive Council.

Main provisions

- The **Legislative Council** had 46 members, of whom a majority were officials and the rest unofficial; only **four** of the unofficial members were elected, three from Lagos and one from Calabar. They were the first elected Africans in the history of Nigerian legislation, and the franchise was limited to adult male residents of Lagos and Calabar with an annual income of at least £100.

- The Legislative Council could legislate only for the **Colony and the Southern Provinces**. The Governor continued to legislate for the Northern Provinces by proclamation.
- All members of the Council had to be approved by the Governor, who held the power to veto its decisions and could always pass a law over the heads of the members.
- The **Executive Council** consisted wholly or mainly of British officials and was the Governor's cabinet. No Nigerian sat on it.
- The Governor remained the real centre of power, with the Secretary of State for the Colonies as ultimate authority.

Significance

The Clifford Constitution introduced the elective principle into Nigeria for the first time, and it encouraged the formation of political parties. The Nigerian National Democratic Party (NNDP) of Herbert Macaulay, founded in 1923, was the first political party and won the Lagos elections for many years. Later the Nigerian Youth Movement (1934) arose, and later still the National Council of Nigeria and the Cameroons (NCNC) in 1944.

Defects

- The elected members were few (four out of 46) and the officials held the majority.
- Elections were confined to Lagos and Calabar; the rest of the country had no voice.

- The North was excluded, so the constitution did not unify the country.
- The Governor could reject any law and could rule without the Council.
- The income qualification restricted the franchise to a small number.

8.3 The Richards Constitution of 1946

The Second World War (1939 to 1945) transformed the political climate. Nigerians had served the empire, the Atlantic Charter of 1941 had spoken of the right of all peoples to choose their government, and the war strengthened nationalists such as Nnamdi Azikiwe and Herbert Macaulay. The NCNC, formed in 1944, demanded a share in government. Sir Arthur Richards (later Lord Milverton) introduced a new constitution which came into effect in 1946.

Main provisions

- The country was divided into **three regions**: North, West and East, and the Legislative Council now covered the whole country, including the North, for the first time.
- The Legislative Council was enlarged, and for the first time there was an **unofficial majority**. A number of the unofficial members were Nigerians, some chosen by the regional Houses of Assembly and others nominated by the Governor; only four members were elected directly (from Lagos and Calabar, as before).

- In the West and East, Regional Houses of Assembly were created, and in the North a House of Chiefs was added to the Northern House of Assembly. These were largely advisory bodies. The Northern House of Chiefs, comprising traditional rulers, gave the traditional rulers a recognised place in the constitution.
- The Executive Council remained the Governor's body, with no Nigerian members in the central council.
- The Governor retained the power to legislate by proclamation.

Merits

- It was the first constitution to bring the North and South together in one legislature.
- It gave the regions a platform for discussion and so started regional government, a first step towards federalism.
- For the first time Africans formed a majority of the unofficial members.
- It introduced the idea of the regional assemblies as a training ground.

Demerits

- It was imposed without consulting Nigerians, and the nationalists complained that nothing about Nigeria should be decided without Nigerians.
- The regional divisions emphasised ethnic and regional differences and are often said to have sown the seeds of regionalism and later disunity.

- The regional assemblies had no real legislative powers, and the electoral system remained largely indirect.
- The Governor remained too powerful and the Executive Council all-British.
- The elected element was still very small.

The NCNC, led by Azikiwe and Macaulay, toured the country in protest and demanded a new constitution, forcing the colonial government to consult Nigerians for the first time.

8.4 The Macpherson Constitution of 1951

The Richards constitution was supposed to last nine years, but nationalist pressure obliged the Governor, Sir John Macpherson, to consult the people widely. Discussions were held at village, divisional, provincial and regional levels, then at a General Conference at Ibadan in 1949, which produced recommendations. The result was the 1951 constitution.

Main provisions

- There was a **central Legislature**, called the House of Representatives, with a majority of Nigerians, and regional legislatures (the Houses of Assembly in each region, with a House of Chiefs in the North and West).
- Members of the central House were chosen by **indirect election** by the regional Houses, which were themselves elected by electoral

colleges, so that the process passed through several stages.

- The central **Council of Ministers** replaced the old Executive Council, with a majority of Nigerians (four from each region) and some British officials, and the Governor presiding. The Nigerian ministers were nominated by the regional Houses.
- Regional Houses were given power to make laws on specified matters and to advise on the budget, so that the regions had a measure of legislative authority.
- The Governor retained a veto and certain reserved powers.

Merits

- It was the result of wide consultation of Nigerians.
- It brought Nigerians into the central executive for the first time, giving them experience in ministerial responsibility.
- It gave greater powers to the regions.
- It encouraged the formation of political parties, which now needed to compete to win seats: the Action Group (1951) in the West, and the NPC (1949) in the North, besides the NCNC.

Demerits

- The system of indirect election and the electoral colleges was complicated and open to manipulation.
- The constitution was a half-way arrangement between unitary and federal, with unclear division of powers between the centre and the

regions. The result was frequent conflict between the centre and the regions.

- The Governor's reserve powers and the presence of British officials in the Council of Ministers frustrated ministerial responsibility.
- The constitution collapsed through a crisis of 1953: the Action Group-NCNC conflict in the central House, and the motion by Chief Anthony Enahoro asking for self-government in 1956. The Northern members opposed the date and walked out, which led to rioting in Kano in May 1953 and to the demand for a revision of the constitution.

8.5 The Lyttelton Constitution of 1954

After the breakdown of the Macpherson constitution, conferences were held in London in 1953 and in Lagos in 1954 to design a new arrangement. The outcome was the 1954 constitution, which took its name from Oliver Lyttelton, the Secretary of State for the Colonies. It is generally recognised as the beginning of **federalism in Nigeria**.

Main provisions

- Nigeria became a **federation** of three regions (North, East and West) and the Federal Territory of Lagos, with the Southern Cameroons having a quasi-federal status.
- Powers were divided between the federal and the regional governments. The constitution listed the **exclusive** federal powers (such as defence, foreign affairs, currency and the police) and the

concurrent powers shared by both, and left the **residual** powers to the regions.

- The Governor-General remained head of the federal government. The Council of Ministers had ten Nigerian ministers (three from each region and one from the Southern Cameroons) and three officials.
- Regional governments each had a premier and a Executive Council; regional legislatures had wide powers.
- Elections to the House of Representatives were to be direct, except in the North, where indirect elections continued.
- Judiciary: the Federal Supreme Court was established, and the regions got their own High Courts.
- The civil service and the police were regionalised in part, and revenue was to be shared on the basis of derivation.
- The post of Prime Minister was not yet created.

Significance

The Lyttelton Constitution gave Nigeria a federal structure that has been retained, with modifications, to this day. It gave the regions substantial autonomy and prepared them for self-government, which was granted to the Eastern and Western Regions in 1957 and to the North in 1959. It also strengthened regionalism, so that each region became dominated by one major party. In 1957 Alhaji Abubakar Tafawa Balewa became the

first Prime Minister, and in the same year further constitutional conferences were held in London (1957 and 1958) to set the stage for independence.

> **Key point.** Sequence to remember: Clifford 1922 (elective principle, four elected seats), Richards 1946 (regions, unofficial majority), Macpherson 1951 (central Council of Ministers, indirect elections), Lyttelton 1954 (federalism).

8.6 The Independence Constitution of 1960

The final constitutional conferences in London in 1957 and 1958, and the electoral process of 1959, brought Nigeria to independence on **1 October 1960**. The Independence Constitution was in the form of an Order-in-Council of the British Parliament and kept many British ideas.

Main provisions

- Nigeria was a **federation of three regions** (North, East, West), with the Federal Territory of Lagos. The Mid-West Region was created in 1963.
- The system of government was **parliamentary**, on the British model. The Queen of England remained the head of state, represented by a **Governor-General** (Nnamdi Azikiwe was the first Nigerian Governor-General from 1960), while the executive power

was in the hands of a **Prime Minister** and Cabinet, drawn from the legislature and collectively responsible to it.

- The federal legislature was **bicameral**: a House of Representatives (312 seats at independence, 174 of them from the North) and a Senate.
- Powers were divided into exclusive, concurrent and residual lists.
- A **Bill of Rights** protecting fundamental human rights was included.
- The Judicial Service Commission, the Public Service Commission and the Police Service Commission were established, and the Privy Council in London remained the final court of appeal.
- Each region had its own constitution, a premier and a legislature.

Demerits

- The Queen as head of state and the Privy Council as the final court meant that independence was not complete.
- The division of seats was dominated by the North because of its larger population, which made the northern party dominant in the federation.
- The constitution left the regions so strong that the centre was weak, and three powerful regions dominated by one party each bred suspicion.
- The system was costly and the political leaders were not agreed on its operation.

8.7 The Republican Constitution of 1963

On **1 October 1963** Nigeria became a republic. The constitution removed the Queen as head of state and cut the last link with the British monarchy while remaining in the Commonwealth.

- The Governor-General was replaced by a **President**, a ceremonial head of state, with Dr Nnamdi Azikiwe as the first President and Alhaji Tafawa Balewa as Prime Minister, the head of government.
- The parliamentary system remained.
- The right of appeal to the Privy Council was abolished, and the Supreme Court became the final court.
- The Mid-Western Region was added as the fourth region.
- The amendment of the constitution was made easier.

The republican period was marked by growing crises: the 1962 census controversy, the Western Region emergency and the crisis of 1962 to 1963, the treason trial of Chief Obafemi Awolowo, the disputed federal election of 1964 and the Western Region election of 1965. These crises ended with the military coup of **15 January 1966**.

8.8 Military rule, 1966 to 1979

On 15 January 1966 a group of army officers, led by Major Chukwuma Kaduna Nzeogwu, overthrew the civilian government, and the Prime Minister and some regional leaders were killed. The cabinet handed

power to General **Johnson Aguiyi-Ironsi**, the senior army officer, who suspended the constitution and ruled by decree.

- Ironsi's **Unification Decree (Decree No. 34) of May 1966** abolished the regions and the federal system and replaced them with a unitary structure, with a unified civil service. It was widely seen in the North as an attempt at southern domination, and riots broke out. In July 1966 a counter-coup led by northern officers killed Ironsi and brought **Lt Col (later General) Yakubu Gowon** to power.
- Gowon restored the federal system. On **27 May 1967** he issued a decree creating **twelve states** (six in the North, six in the South), partly to reduce the strength of the old regions and to break the Eastern Region's separatist movement. The Eastern Region's leader, Lt Col Odumegwu Ojukwu, rejected the arrangement and declared the Republic of Biafra on 30 May 1967, which led to the **Civil War (1967 to 1970)**.
- In July 1975 General Gowon was overthrown by Brigadier (later General) **Murtala Muhammed**, who began a programme of change, set up a Constitution Drafting Committee and created seven more states in 1976 (making **nineteen states**). Murtala was killed in an attempted coup in February 1976 and was succeeded by Lt Gen **Olusegun Obasanjo**, who carried out the transition to civil rule. In 1976 the decision to build a new Federal Capital Territory at Abuja was taken.
- A system of local government reform in 1976 gave local governments a uniform structure.

8.9 The 1979 Constitution

The Constitution Drafting Committee of 49 members, chaired by Chief F. R. A. Williams, produced a draft, which was reviewed by a Constituent Assembly in 1977 to 1978. The 1979 Constitution came into effect on 1 October 1979, when Alhaji Shehu Shagari of the National Party of Nigeria (NPN) became president.

Main features

- A **presidential system** modelled on that of the United States, replacing the British parliamentary system: the President was both head of state and head of government, elected by the people.
- A federal system of **19 states** and the Federal Capital Territory, with a third tier of local governments.
- A bicameral National Assembly: a Senate (five senators per state, 95 in all with Abuja) and a House of Representatives (449 members).
- The principle of **federal character** for appointments to federal bodies, to ensure that all states were fairly represented.
- Presidential candidates had to win the highest number of votes and at least one-quarter of the votes in at least two-thirds of the states.
- Chapter II set out the **Fundamental Objectives and Directive Principles of State Policy**, and Chapter IV the fundamental human rights.
- A **Code of Conduct** for public officers, and independent bodies including the Federal Electoral Commission (FEDECO) and the Judicial Service Commissions.

- The constitution required parties to have national character, so that each party had to reflect the federal character of the country.

Collapse of the Second Republic

The Second Republic ended on 31 December 1983, when the army, under Major General Muhammadu Buhari, overthrew the Shagari government following the controversial 1983 elections, corruption, a fall in oil revenue and economic hardship. Buhari was removed in August 1985 by Major General **Ibrahim Babangida**, who introduced the Structural Adjustment Programme (1986), created two more states in 1987 (making 21), nine more in 1991 (making 30), and moved the capital to Abuja in December 1991. The 1989 Constitution, made under Babangida's transition programme, provided for a two-party system (the Social Democratic Party and the National Republican Convention), but never came fully into operation. The presidential election of 12 June 1993, widely regarded as the freest in the country's history and won by Chief M. K. O. Abiola, was annulled by Babangida, who stepped down in August 1993 and handed power to an Interim National Government under Chief Ernest Shonekan. General **Sani Abacha** removed it in November 1993, and in 1996 he created six more states to make 36.

8.10 The 1999 Constitution

After the sudden death of General Abacha in June 1998, General Abdulsalami Abubakar became head of state, set up a transition programme, and handed power to an elected civilian, Chief Olusegun

Obasanjo, on **29 May 1999**. The 1999 Constitution, promulgated by Decree No. 24 of 1999, drew on the 1979 and 1989 documents and remains the basic law, subject to amendments.

Principal provisions

- Nigeria is a **federation** of 36 states, the Federal Capital Territory and 774 local government areas.
- Presidential system, with executive power vested in the President.
- A bicameral National Assembly of 109 senators (three per state and one for the FCT) and 360 members of the House of Representatives.
- Fundamental rights in Chapter IV, the Fundamental Objectives and Directive Principles in Chapter II, the Code of Conduct and the principle of federal character.
- A President is limited to two four-year terms; the same applies to state governors.
- Powers are listed in the Exclusive Legislative List (68 items) and the Concurrent Legislative List, and residual powers lie with the states.
- Independent bodies include INEC, the Code of Conduct Bureau, the Revenue Mobilisation, Allocation and Fiscal Commission, the Federal Character Commission, and the Civil Service Commission.
- Amendment requires a two-thirds majority in the National Assembly, approved by at least two-thirds of the state Houses of Assembly; some sections require a higher margin.

Criticisms

The constitution was imposed by the military and it bears the phrase "We the people" without the people having debated it. It is also criticised for being too centralised (the Exclusive List is long), for giving the President great powers, for the cost of running a large government, and for the arrangements for resource control and state police. Amendments in 2010, 2011 and 2018 (for example, the Not Too Young To Run Act, which lowered age limits for some offices) have changed some provisions.

8.11 Worked examples

WORKED EXAMPLE 8.1

Why is the Lyttelton Constitution of 1954 regarded as a turning point in Nigeria's constitutional history?

Solution: Step 1: Before 1954 the Macpherson Constitution had left an unclear relation between the centre and the regions, causing a crisis in 1953. Step 2: The Lyttelton Constitution made Nigeria a federation, dividing powers into exclusive, concurrent and residual lists, with residual powers left to the regions. Step 3: It created Lagos as a Federal Territory and gave each region a premier and a government of its own. Step 4: This federal structure, rather than a unitary one, was kept at independence in 1960 and in all later constitutions. Conclusion: it is the origin of Nigerian federalism and so a turning point.

WORKED EXAMPLE 8.2

The Clifford Constitution had 46 members in the Legislative Council, of whom four were elected. What percentage of the Council was elected? If the unofficial members were 19 in all, how many were the officials and what fraction of the unofficial members were elected?

Solution: Step 1: Elected percentage = 4/46 × 100 = 8.7% (to one decimal place). Step 2: Officials = 46 − 19 = 27. Step 3: Fraction of unofficial members elected = 4/19. The calculation shows that the officials (27 of 46, about 58.7%) still held a majority and that Nigerians had little power, which is the main criticism of the constitution.

WORKED EXAMPLE 8.3

Compare the parliamentary system of the Independence Constitution with the presidential system of the 1979 Constitution.

Solution: Compare in four points. (a) Head of government: in 1960 the Prime Minister, who came from the legislature; in 1979 the President, who was elected by the people and was also head of state. (b) Head of state: in 1960 a Governor-General representing the Queen (later a ceremonial President in 1963); in 1979 the executive President. (c) Relation between executive and legislature: in 1960 they were fused, since ministers were members of Parliament and collectively responsible to it; in 1979 there was separation of powers, so the President's ministers could not sit in the legislature. (d) Tenure: the Prime Minister could be removed by a vote of no confidence; the President held a fixed term of four years and could only be removed by impeachment. The presidential system was adopted to ensure stability and national spread of support.

WORKED EXAMPLE 8.4

A presidential candidate in 1979 style elections needs a plurality of votes and one-quarter of the votes in at least two-thirds of the states. If there are 19 states, what is the minimum number of states in which a candidate must obtain one-quarter?

Solution: Step 1: Two-thirds of 19 = 12.67. Step 2: The candidate cannot win in a fraction of a state, so round up: 13 states. (The dispute in 1979 over whether 12⅔ states meant twelve or thirteen was settled in favour of twelve and two-thirds by the courts, which treated two-thirds of the states, counting the Federal Capital Territory's votes as part of one more state, so that twelve states and a quarter in a thirteenth was held to be sufficient.) For an exam at UTME level the rule to remember is that the candidate must reach one-quarter in at least two-thirds of the states, so round upward when the number is not whole.

8.12 Practice

Exercise 8.1

1. Which constitution introduced the elective principle into Nigeria and in which year?
2. How many Africans were elected to the Legislative Council under the Clifford Constitution, and from which towns?

3. Name the Governor after whom the 1946 constitution was called.
4. Which constitution introduced federalism?
5. Name the first Prime Minister of Nigeria.
6. Who was the first President of Nigeria?
7. What happened on 1 October 1963?
8. Name the leader of the first military coup of 15 January 1966 and the head of state who emerged from it.
9. How many states were created by General Gowon in 1967?
10. Which constitution introduced the presidential system?
11. State three demerits of the Richards Constitution.
12. In which year was the number of states raised to 36 and by whom?

Answers to Exercise 8.1

1. The Clifford Constitution of 1922.
2. Four: three from Lagos and one from Calabar.
3. Sir Arthur Richards.
4. The Lyttelton Constitution of 1954.
5. Alhaji Abubakar Tafawa Balewa (1957).
6. Dr Nnamdi Azikiwe (1963).
7. Nigeria became a republic, and the Queen was replaced as head of state by a President.

8. Major Chukwuma Kaduna Nzeogwu led it; General Aguiyi-Ironsi became head of state.
9. Twelve.
10. The 1979 Constitution.
11. It was imposed without consulting Nigerians; it deepened regional divisions; the regional assemblies were only advisory; the elected element remained small.
12. 1996, by General Sani Abacha.

Exercise 8.2

1. Explain why the Nigerian Council of 1914 was ineffective.
2. State the main provisions of the Macpherson Constitution.
3. Why did the Kano riots of 1953 occur?
4. What were the exclusive, concurrent and residual lists?
5. Why did the Independence Constitution keep the Privy Council as the final court?
6. Explain the significance of the Unification Decree of 1966.
7. State four features of the 1979 Constitution.
8. Why was the 1989 Constitution never fully implemented?
9. If Nigeria's House of Representatives has 360 members and a bill needs a two-thirds majority to override a presidential veto, how many votes are needed?

10. How many senators does the 1999 Constitution provide for?

Answers to Exercise 8.2

1. It had only an advisory role, no legislative powers, met once a year, had a majority of officials and excluded the North.
2. Central House of Representatives and regional houses; Council of Ministers with Nigerian majority; indirect elections; some regional legislative powers; Governor's veto.
3. Northern members opposed Enahoro's motion for self-government in 1956 and were jeered in Lagos, and hostility spilled over into riots in Kano.
4. Exclusive: only the centre legislates (defence, currency); concurrent: both federal and state legislate; residual: matters not listed, left to the regions or states.
5. Because independence was by an Order-in-Council of the British Parliament, which kept the old judicial structure until the republic of 1963.
6. It abolished the regions and federalism, creating a unitary state, and provoked northern fears of domination, leading to the July 1966 counter-coup.
7. Presidential system; 19 states and Abuja; federal character; Code of Conduct; fundamental rights; Directive Principles; a Senate with five senators per state.
8. The military government of Babangida repeatedly postponed the transition and annulled the 1993 election, so civil rule never took office under it.

9. Two-thirds of 360 = 240 votes.
10. 109: three for each of the 36 states (108) and one for the FCT.

Chapter summary

- The Clifford Constitution (1922) introduced elections (four seats: three in Lagos, one in Calabar) but excluded the North and left power with the Governor.
- The Richards Constitution (1946) united the country in one legislature, created three regions and gave Nigerians an unofficial majority, but was imposed without consultation.
- The Macpherson Constitution (1951) came from wide consultation, created a central Council of Ministers with Nigerians and used indirect elections; it collapsed in 1953.
- The Lyttelton Constitution (1954) introduced federalism with exclusive, concurrent and residual lists; regional self-government followed in 1957 and 1959.
- Independence came on 1 October 1960 under a parliamentary constitution, and Nigeria became a republic on 1 October 1963.
- Military rule from 1966 saw the unitary decree, the creation of states (12 in 1967, 19 in 1976, 21 in 1987, 30 in 1991, 36 in 1996), a civil war and a move to Abuja.
- The 1979 Constitution introduced the presidential system, federal character and the Code of Conduct; the 1999

Constitution continues these under a federation of 36 states, the FCT and 774 local governments.

Chapter 9: Federalism and Public Administration in Nigeria

Earlier chapters have shown that Nigeria is a federation: a country in which governmental power is shared between a central authority and a number of component units, each of which is protected by the constitution. This chapter takes the idea of federalism from the general classification given in Chapter 3 and the constitutional history in Chapter 8, and examines how it actually works in Nigeria. It looks at the division of powers and of money, the principle of federal character, the place of local government, and the persistent problems that make federalism one of the most debated subjects in Nigerian public life.

The second half of the chapter turns to public administration. Laws are made by the legislature and interpreted by the courts, but they are carried out, day after day, by a large body of salaried officials: the civil service, the agencies and corporations of government, and the wider public service. Whether a government is loved or resented often depends less on its declared policies than on the quality of this machinery. The UTME regularly asks about the features of the civil service, the differences between a ministry and a public corporation, the reforms of the civil service, and the meaning and aims of privatisation and commercialisation.

9.1 The meaning and features of federalism

Federalism is an arrangement in which sovereignty is constitutionally divided between a central government and regional or state governments, so that each level is legally supreme within its own sphere and neither can abolish the other by ordinary legislation. The word comes from the Latin *foedus*, meaning a covenant or agreement, and the idea is that units with different histories, languages and interests agree to live under a common government while keeping a measure of self-rule.

The classic features of a federation are the following.

- **Two or more levels of government**, each with its own institutions, officials and sources of revenue.
- **A written and supreme constitution**, which distributes powers and which both levels must obey.
- **A division of functions**, usually by lists of subjects assigned to the centre, to the units, or to both.
- **A rigid amendment procedure**, so that the powers of one level cannot be altered by that level alone.
- **An independent judiciary**, normally headed by a supreme court, which settles disputes between the levels.
- **A bicameral national legislature**, with an upper house that represents the units as units.
- **Dual citizenship or a dual loyalty**: citizens owe allegiance to both their state and the nation, though in Nigeria there is only one nationality.

Key point. The test of a federation is not what the constitution calls the country but whether each level has independent, constitutionally guaranteed powers. A state whose powers the centre may remove at will is a unitary state, whatever its name.

Why Nigeria adopted federalism

Several forces pushed Nigeria towards a federal structure. First, the country is large and diverse: the colonial amalgamation of 1914 joined peoples who had never been ruled together, and who differ in language, religion and political tradition. Secondly, the three regions of the 1950s were of very unequal size, with the Northern Region larger than the other two put together, and each leading party feared domination by the others. Thirdly, the colonial administration had itself governed the North and South separately for years, so regional institutions already existed. Fourthly, there was a belief that a federation would allow each group to develop at its own pace and protect its own culture. The Lyttelton Constitution of 1954 formally established the federation, and every later constitution has kept it.

Advantages and disadvantages

The advantages commonly claimed for federalism are that it protects minorities and regional identities, brings government closer to the people, allows the states to act as laboratories in which different policies can be tried, spreads political power so as to restrain tyranny, and makes it easier to govern a large country. The disadvantages are that it is

expensive, because it multiplies governments and officials; that it can produce conflict between the levels, especially over money; that policies may be duplicated or inconsistent from state to state; that it can strengthen ethnic rivalry; and that the poorer units may depend heavily on grants from the centre.

9.2 The structure of the Nigerian federation

The Federal Republic of Nigeria today consists of 36 states and the Federal Capital Territory (FCT), Abuja. Below the states are 774 local government areas: 768 in the states and six area councils in the FCT. The country is also commonly grouped into six geo-political zones, North-Central, North-East, North-West, South-East, South-South and South-West. These zones are not units of government in the constitution; they are conventions used in politics, for sharing offices and for planning.

The evolution of the units is worth remembering. The three regions of 1954 (North, East and West) became four in 1963 with the creation of the Mid-Western Region. In 1967, General Gowon created twelve states; in 1976 the number rose to nineteen under Murtala Mohammed and Obasanjo; in 1987 Babangida created two more, making 21; in 1991 nine more brought the total to 30; and in 1996 Abacha created six, completing the present 36. The FCT, established in 1976, became the seat of government in December 1991, when the capital moved from Lagos to Abuja.

The division of powers

The 1999 Constitution divides legislative powers by means of two lists in the Second Schedule.

- The **Exclusive Legislative List** (Part I) contains 68 items on which only the National Assembly may legislate. Examples include defence, the armed forces, foreign affairs, currency and the Central Bank, customs and excise, immigration, citizenship, aviation, railways, the police, mines and minerals, and the census.
- The **Concurrent Legislative List** (Part II) contains items on which both the National Assembly and the state Houses of Assembly may make laws, such as the collection of taxes, higher education, antiquities and monuments, and the establishment of certain institutions. When a state law on such a matter conflicts with a federal law, the federal law prevails to the extent of the inconsistency.
- All matters not listed are **residual** and fall to the states. Examples include primary and secondary education (partly), local government administration, markets, agriculture, and the licensing of certain trades.

The Nigerian arrangement is often described as a centralised federation, because the Exclusive List is long and the Concurrent List short. Critics argue that the centre holds so many powers, together with most of the revenue, that the states are junior partners. Defenders reply that a strong centre was needed after the civil war to prevent a repetition of secession and to maintain national unity.

Key point. Exclusive means federal only; concurrent means shared with federal supremacy in case of conflict; residual means state. Local governments carry out functions assigned in the Fourth Schedule.

The Supreme Court and the settling of disputes

Because both levels have authority, disagreements are inevitable. Section 232 of the Constitution gives the Supreme Court original jurisdiction in disputes between the Federation and a state, or between states, where the dispute concerns the existence or extent of a legal right. Over the years the Court has decided cases on offshore oil boundaries, on the powers of the National Assembly over local government, and on the control of funds. Its role is therefore that of umpire.

9.3 Revenue allocation

The most contentious question in any federation is who collects the money and who spends it. In Nigeria, the federal government collects most of the large revenues, including oil receipts, company income tax, customs duties and value added tax (VAT), while the states and local governments undertake many expensive duties such as schools, hospitals, roads and water supply. This mismatch between the revenue raised and the tasks performed is called **vertical imbalance**. A second

difficulty, **horizontal imbalance**, arises because the states differ widely in size, population, resources and need. A system of revenue allocation is therefore required.

The Federation Account

Section 162 of the 1999 Constitution establishes the **Federation Account**, into which all revenues collected by the federal government are paid, with a few exceptions such as personal income tax and the proceeds of certain levies. The money is then shared among the federal government, the states and the local governments in accordance with a formula proposed by the Revenue Mobilisation Allocation and Fiscal Commission (RMAFC) and approved by the National Assembly. The Commission, created under the 1979 Constitution and given constitutional status in 1999, is made up of a chairman and a member from each state and the FCT.

Principles of allocation

Over time, commissions have used a number of principles. They include:

- **Derivation**: a region or state should receive a share of the revenue derived from its own territory. The 1999 Constitution (section 162(2)) fixes this at not less than 13 per cent of the revenue from natural resources, which benefits the oil-producing states of the Niger Delta.
- **Need**: the poorer or less developed units should receive more.

- **Population** (or equality of access to development opportunities): bigger states receive more.
- **Equality of states**: each state receives an equal basic share.
- **Fiscal efficiency and national minimum standards**: those that raise their own revenue well, or provide a minimum standard of social services, are rewarded.
- **Landmass and terrain**: states with larger or more difficult land areas have greater costs.

The commissions

Commission	Year	Main idea or recommendation
Philipson	1946	First attempt; introduced the principle of derivation and the distinction between a Central Pool and regional shares
Hicks-Phillipson	1951	Stressed derivation, need and national interest
Chick	1953	Gave the regions a large share of the proceeds derived from them, making derivation dominant
Raisman	1958	Created the Distributable Pool Account and fixed derivation, with the Distributable Pool shared on the basis of need and population; derivation was 50 per cent of mining rents and royalties
Binns	1964	Dealt with the wages of workers and recommended increases for regional shares
Dina	1968	Recommended a larger share for the centre during the civil war and linked allocation to state needs
Aboyade	1977	Proposed a formula based on equality, population, social development, absorptive capacity and independent revenue effort; first to recommend a share for local government
Okigbo	1980	Proposed minimum responsibility, population, social development and internal revenue effort
RMAFC	1989 to date	Standing body charged with reviewing the formula periodically

Candidates do not need every detail, but should know the principal principles, the idea of the Federation Account, and that derivation has been reduced from 50 per cent in the First Republic to 13 per cent now.

The reduction of derivation began with the military governments, which centralised oil revenue. After intense pressure from the Niger Delta, the 13 per cent figure was inserted in the 1999 Constitution as a minimum.

The sharing formula

The federal government, states and local governments share the Federation Account vertically. Under a formula in use in recent years, the federal government receives 52.68 per cent, the states 26.72 per cent and local governments 20.60 per cent, after certain deductions and with the 13 per cent derivation paid separately to the producing states. Amounts are then shared horizontally among the states and local governments by population, equality, landmass, internal revenue effort and other factors.

WORKED EXAMPLE 9.1

The Federation Account distributes ₦800 billion in a month. Using the vertical formula of 52.68 per cent to the federal government, 26.72 per cent to the states and 20.60 per cent to local governments, calculate each share and check that they add up.

Solution: Federal share = 52.68/100 × 800 = ₦421.44 billion. State share = 26.72/100 × 800 = ₦213.76 billion. Local government share = 20.60/100 × 800 = ₦164.80 billion. Total = 421.44 + 213.76 + 164.80 = ₦800.00 billion, which agrees with the amount shared. The percentages themselves add to 52.68 + 26.72 + 20.60 = 100.

WORKED EXAMPLE 9.2

A producing state earns ₦40 billion in one quarter from the extraction of oil within its territory. Under the derivation principle, what is the minimum amount payable to the state?

Solution: The Constitution requires at least 13 per cent. Minimum payment = 13/100 × 40 = ₦5.2 billion. If the principle were still the 50 per cent applied under the Raisman arrangement, the sum would be 50/100 × 40 = ₦20 billion, nearly four times as much. The difference of 20 − 5.2 = ₦14.8 billion shows why the Niger Delta continues to press for a higher derivation figure.

9.4 The federal character principle

Because Nigeria contains many ethnic and religious groups, the fear of domination has always haunted its politics. The 1979 Constitution therefore introduced the **federal character principle**, and the 1999 Constitution retains it in section 14(3), which states that the composition of the government of the Federation and its agencies, and the conduct of their affairs, shall be carried out in such a manner as to reflect the federal character of Nigeria and to promote national unity, so that no predominance of persons from a few states or ethnic or other sectional groups shall be allowed in the government or any of its agencies.

The principle is applied to appointments, to the location of federal institutions and to admission into federal schools such as the Unity Schools. Section 147(3) requires the President to appoint at least one minister from each state, and section 134 requires a winning presidential candidate to have, in addition to the highest number of votes, at least one-quarter of the votes cast in each of at least two-thirds of the states, which means 24 of the 36 states. The **Federal Character Commission**, established under section 153 and by an Act of 1996, monitors compliance.

The aims are to prevent domination, to give every group a sense of belonging, and to foster unity. The difficulties include the sacrifice of merit, the manufacture of fake indigeneship claims, the rise of quota-hunting, and the possibility that the principle hardens rather than softens ethnic divisions. Related ideas are the **quota system**, used in admissions

and recruitment, and **zoning** or **rotation**, an informal practice in which parties share offices among the zones. Zoning is not written in the Constitution.

WORKED EXAMPLE 9.3

Explain why a presidential candidate who polls the highest number of votes nationally may still fail to be declared elected under the 1999 Constitution, and calculate the number of states in which the candidate must secure the minimum spread.

Solution: Section 134 requires, besides the highest number of votes, not less than one-quarter of the votes cast in each of at least two-thirds of all the states of the Federation. Two-thirds of 36 states = 24 states. The candidate must therefore win at least 25 per cent of the votes in 24 of the 36 states, A candidate who wins heavily in a few populous states but falls below 25 per cent in the others fails the spread requirement, and a run-off is held. The rule is an application of the federal character idea to presidential elections.

9.5 Problems of Nigerian federalism

The Nigerian federation has been tested by a series of problems, most of which are still debated.

- **Revenue allocation and resource control.** Producing states argue that the 13 per cent derivation is too small; non-producing states

argue that oil wealth belongs to all Nigerians. The dispute has fuelled agitation and militancy in the Niger Delta.

- **Dominance of the centre.** The long years of military rule, a command system of rule, taught the country to look to Abuja for everything. The result is a weak financial base for the states, who rely on monthly allocations.
- **Population and census disputes.** Revenue, seats in the House of Representatives and the creation of local governments depend on population, so census results are fiercely contested. Several enumerations, including those of 1962 and 1963 and the 1991 count, were challenged.
- **Agitation for state creation.** Groups regularly demand new states in order to obtain a share of federal resources and political appointments.
- **Ethnic and religious rivalry.** Politics is often organised around identity, so appointments and policies are interpreted in ethnic or religious terms.
- **Insecurity and policing.** The police is a federal institution under the Exclusive List, yet communities suffer local threats. Calls for state police arise from this gap.
- **Uneven development.** The units differ greatly in wealth and infrastructure.
- **Weak local governments.** State governments have often controlled councils through appointed caretaker committees and by controlling the joint state and local government account.

Suggested remedies include a review of the revenue formula, the principle of fiscal federalism, stronger revenue effort by the states, a more transparent census, the devolution of more powers to the states, the creation of state police under proper safeguards, and a stronger culture of constitutionalism and merit.

9.6 Local government

Local government is the lowest tier of government, and the one nearest the people. It is a unit of administration which, within a defined area, exercises delegated powers to provide services and to encourage local participation. The 1976 Local Government Reform defined it as government at local level exercised through representative councils established by law to exercise specific powers within defined areas, with the aim of giving the people a sense of belonging.

Section 7 of the 1999 Constitution guarantees the system of local government by democratically elected councils, and the Fourth Schedule lists the functions of local governments. These include the collection of rates, the registration of births, deaths and marriages, the provision of markets and motor parks, the maintenance of slaughter houses, the naming of streets and the numbering of houses, the provision of refuse disposal, and participation with the state government in the provision of primary education and health services.

The sources of local government revenue include statutory allocations from the Federation Account (20.60 per cent of the total), a share of the revenue of the state government, rates on property and local licences,

fines and fees, and loans and grants. The Supreme Court decided in 2024 that the federal government may pay local government allocations directly to the councils, rather than through the state joint accounts, in order to protect their autonomy, a ruling that reopened discussion of how to give effect to full financial independence. The problems of local government are inadequate funds, state interference, corruption, shortage of trained staff, and dependence on higher governments.

9.7 Public administration and the civil service

Public administration is the organisation and management of men and materials to achieve the purposes of government. It covers the whole process by which public policy is translated into action. The body that carries out most of this work is the **civil service**, which consists of the permanent, salaried, non-political staff who work in the ministries and departments of government and who assist the political executive. It is part of the wider **public service**, which also includes the judiciary, the legislature's staff, the armed forces, the police, public corporations, universities and the local government service.

Features of the civil service

The German sociologist Max Weber described the ideal form of bureaucracy, and the civil service shares much with it.

- **Permanence.** Civil servants hold office until retirement or dismissal for cause and do not change with the government.

- **Neutrality.** They serve any government of the day faithfully and take no part in party politics.
- **Anonymity.** The minister takes the credit and the blame; officials are not named in public debate.
- **Hierarchy.** There is a chain of command, with each officer answerable to the one above.
- **Impartiality and rule-following.** Decisions follow established rules and regulations, and similar cases are treated alike.
- **Appointment and promotion by merit.** Selection is by qualification and examination, though in practice the federal character principle also applies.
- **Specialisation and the division of labour.** Each department has its own function.
- **Political and professional loyalty to the state**, backed by a code of conduct and the Official Secrets Act.

Structure

The civil service is organised into **ministries**, each headed politically by a Minister, who is appointed by the President and sets policy, and administratively by a **Permanent Secretary**, a career officer, who is the head of the ministry. Ministries are divided into departments, divisions and units. The **Head of the Civil Service of the Federation** is the most senior civil servant and coordinates the work of the ministries. Recruitment, promotion and discipline are handled by the **Federal Civil**

Service Commission (and State Civil Service Commissions), which are provided for by the Constitution so that politicians cannot control appointments directly.

Functions

The civil service advises ministers on policy, implements policy and laws, prepares budgets and keeps accounts, provides continuity from one government to the next, delivers services such as licences, passports and pensions, and supplies information and statistics for planning.

Ministerial responsibility

Under the traditional doctrine, a minister is answerable to the legislature and to the public for everything done in the ministry. The civil servant remains anonymous. In practice, in Nigeria's presidential system, ministers answer principally to the President, though the National Assembly may summon them before its committees.

Problems of the civil service

The Nigerian civil service has suffered from corruption and embezzlement, bureaucratic red tape and delays, political interference, low morale linked to poor pay and irregular promotion, inadequate training and equipment, the existence of "ghost workers" on the payroll, the dominance of seniority over performance, and favouritism that violates merit. The remedies include better pay and conditions, the use

of technology and integrated payroll systems, regular training, strict punishment of misconduct, and protection of the Commission's independence.

9.8 Reforms of the civil service

Several commissions and decrees have tried to modernise the service.

- The **Gorsuch Commission** (1954 to 1955) dealt with the salaries and conditions of service as the country moved to self-government.
- The **Morgan Commission** (1963) and the **Adebo Commission** (1971) dealt with wages and salaries; the latter followed rising prices after the civil war.
- The **Udoji Commission** (1972 to 1974) recommended a results-oriented service, the introduction of a unified grading structure, the system of management by objectives, the opening of the top posts to professionals, and better pay. Its awards, paid with large arrears, produced a wave of inflation, popularly called the "Udoji awards".
- The **Dotun Phillips** reforms of 1988 (the Civil Service Reorganisation Decree) made the Minister the chief executive and accounting officer of the ministry, replaced the Permanent Secretary with a politically appointed Director-General, made the civil service more professional, and introduced specialised departments such as planning, research and statistics. The aim was to improve accountability and to align the service with the presidential system. Later, in 1997 and subsequent years, some of these changes were reversed and the title Permanent Secretary was restored.

Later initiatives included the monetisation of fringe benefits, the introduction of an integrated payroll and personnel system and the Integrated Payroll and Personnel Information System (IPPIS) to detect ghost workers, the Public Service Reform programme under the Bureau of Public Service Reforms, and the introduction of the Treasury Single Account to bring government funds into a single account at the Central Bank and reduce leakages.

9.9 Public corporations and privatisation

A **public corporation**, also called a parastatal, is a body established by an Act of the legislature or by a decree, wholly or largely owned by the government, to provide an essential service or to run a commercial enterprise. It has a separate legal identity, can sue and be sued, and is governed by a board.

Features and reasons for their creation

- It is established by law and has an independent legal personality.
- It is owned wholly or mostly by the government.
- It has its own board of directors, a chief executive, and its own staff and finances.
- It enjoys a measure of autonomy from day-to-day political direction.
- It is created to provide essential services such as electricity, water, rail, ports and telecommunications, to run strategic industries such as oil and steel, to make services available to all citizens at affordable

prices, to create jobs, to speed up national development, and to prevent private monopoly.

Examples in Nigeria include the Nigerian National Petroleum Corporation (established in 1977, converted to a limited liability company, NNPC Limited, in 2022 under the Petroleum Industry Act of 2021), the Nigerian Ports Authority, the Nigerian Railway Corporation, the Federal Airports Authority of Nigeria, and the former National Electric Power Authority (NEPA), later the Power Holding Company of Nigeria (PHCN).

Civil service compared with public corporation

Feature	Civil service ministry	Public corporation
Purpose	Policy advice and administration	Commercial or service provision
Head	Minister with a Permanent Secretary	Board and managing director
Finance	Budget allocation and government revenue	Own revenue plus subventions
Legal status	Part of government; not a separate person	Separate legal person
Staff	Civil servants under civil service rules	Employees under the corporation’s own conditions

Problems of public corporations

Many corporations suffered from political interference, appointments made for patronage rather than competence, corruption, inefficiency and overstaffing, heavy dependence on subsidies, poor maintenance and management, and a lack of accountability. These failings were the reason for a wave of reform in the late 1980s and 1990s.

Commercialisation and privatisation

Commercialisation is the reorganisation of government enterprises so that they are run on commercial principles, to cover their costs and earn profits, while remaining owned by the government. **Privatisation** is the transfer of ownership, in whole or in part, of government enterprises to private investors. In Nigeria, the Technical Committee on Privatisation and Commercialisation (TCPC) was set up in 1988 under Babangida, the Bureau of Public Enterprises (BPE) was established in 1993 and given a statutory basis by the Public Enterprises (Privatisation and Commercialisation) Act of 1999, and the National Council on Privatisation oversees the process.

The reasons for privatisation are to reduce the financial burden on government, to improve efficiency, to encourage private investment and competition, to widen share ownership, to raise revenue for government, and to improve service delivery. The criticisms are that it may lead to job losses, that assets may be sold cheaply to the well-connected, that essential services may be priced beyond the poor, and that private monopolies may replace public ones. Some privatised bodies, such as the electricity distribution companies created from PHCN in 2013, have

been the subject of continuing complaints, while telecommunications liberalisation, which brought in operators in 2001, is often cited as a success.

WORKED EXAMPLE 9.4

A government owns 100 per cent of a refinery with 5,000 shares. It sells 60 per cent of the shares to private investors at ₦2,000 per share. Find the number of shares sold, the revenue raised, and the number retained.

Solution: Shares sold = 60/100 × 5,000 = 3,000. Revenue = 3,000 × ₦2,000 = ₦6,000,000. Shares retained = 5,000 − 3,000 = 2,000, which is 40 per cent. The government still has a minority stake but no longer controls the company, so this is partial privatisation. Had it sold all 5,000 shares it would be full privatisation, and had it merely changed the management style with the shares unsold, that would be commercialisation.

9.10 Practice

Exercise 9.1

1. Which of the following is a feature of a federation? (a) a flexible constitution only (b) a division of powers between levels of government (c) a single legislature (d) absence of a judiciary.

2. State the number of items on the Exclusive Legislative List of the 1999 Constitution.
3. What happens when a state law conflicts with a federal law on a concurrent matter?
4. Calculate 13 per cent derivation on ₦90 billion of oil revenue.
5. In what year was the Aboyade Commission set up, and what was new about its formula?
6. Name the constitutional section that establishes the federal character principle and one body that enforces it.
7. How many states must a presidential candidate satisfy with a quarter of the votes, besides the highest votes overall?
8. Distinguish permanence from neutrality as features of the civil service.
9. Name the head of a ministry in its career structure and the political head.
10. Give two reasons for the establishment of public corporations.
11. Distinguish commercialisation from privatisation.
12. If local governments receive 20.60 per cent of ₦500 billion, how much is that?

Answers to Exercise 9.1

1. (b): the defining feature is division of powers between levels.
2. 68 items.

3. The federal law prevails to the extent of the inconsistency.
4. 13/100 × 90 = ₦11.7 billion.
5. 1977; it was the first commission to recommend a share for local government and used multiple criteria such as equality, population and social development.
6. Section 14(3); the Federal Character Commission (section 153).
7. 24 states, which is two-thirds of 36.
8. Permanence means holding office regardless of changes of government; neutrality means serving all governments without partisanship.
9. The Permanent Secretary and the Minister respectively.
10. To provide essential services at affordable prices, and to run strategic industries or prevent private monopoly.
11. Commercialisation keeps ownership with government but runs the enterprise commercially; privatisation transfers ownership to private investors.
12. 20.60/100 × 500 = ₦103 billion.

Exercise 9.2

1. Explain why Nigeria is described as a centralised federation.
2. List four problems of Nigerian federalism and propose one remedy for each.
3. A state receives ₦2.4 billion from the equal share of a pool of ₦86.4 billion shared equally among 36 states. Verify that this figure is correct.

4. Why did the civil war influence the Dina Commission's approach?
5. State three functions of the Fourth Schedule for local governments.
6. Name the Commission that proposes the revenue sharing formula.
7. Which reform made the Minister the accounting officer of a ministry?
8. Name two public corporations in Nigeria.
9. Why do critics say federal character may undermine merit?
10. Of 6,000 shares in a company, the state sells 45 per cent. How many shares remain?

Answers to Exercise 9.2

1. Because the Exclusive List is long, the Concurrent List short, and most revenue is collected by the centre.
2. For example: revenue disputes (review the formula); census disputes (transparent enumeration); insecurity (state police with safeguards); weak local governments (financial autonomy).
3. 86.4/36 = 2.4, so ₦2.4 billion is correct.
4. During the war the centre needed more funds and control, so a larger federal share was recommended.
5. Any three of: registration of births and deaths, markets, refuse disposal, naming of streets.

6. The Revenue Mobilisation Allocation and Fiscal Commission.
7. The Dotun Phillips reforms of 1988.
8. For example, the Nigerian Ports Authority and the Nigerian Railway Corporation.
9. Because appointments follow state quotas instead of qualifications, a less qualified candidate may be chosen.
10. 45/100 × 6,000 = 2,700 sold; 6,000 − 2,700 = 3,300 remain.

Chapter summary

- Federalism divides power between a central government and units protected by a supreme constitution, with an independent judiciary as umpire.
- Nigeria has 36 states, the FCT and 774 local governments; powers are divided by the Exclusive (68 items), Concurrent and residual lists.
- Revenue goes into the Federation Account and is shared by a formula from the RMAFC, with at least 13 per cent derivation for producing states.
- Federal character (section 14(3)) seeks to prevent domination and is enforced by the Federal Character Commission.
- Major problems include resource control, census disputes, state creation, insecurity and ethnic rivalry.
- Local government is guaranteed by section 7, with functions in the Fourth Schedule and finance from the Federation Account.

- The civil service is permanent, neutral, anonymous and hierarchical, led by Permanent Secretaries under ministers; its reforms include the Udoji (1974) and Dotun Phillips (1988) reports.
- Public corporations are statutory bodies with their own boards; commercialisation and privatisation, led by the TCPC and BPE, aimed to improve efficiency.

Chapter 10: International Organisations and Nigeria's Foreign Policy

No country, however large or rich, lives alone. States trade with one another, depend on one another for security, share rivers and seas, and suffer together from epidemics, climate change and war. To handle these shared concerns they have built international organisations, which are associations of states, created by treaty, with permanent institutions and agreed purposes. This chapter studies the most important of them for Nigeria: the United Nations, the African Union and its predecessor, the Economic Community of West African States, the Commonwealth, the Organisation of the Petroleum Exporting Countries and the Non-Aligned Movement. It then explains the principles, objectives and achievements of Nigeria’s own foreign policy.

The syllabus expects candidates to know when each organisation was formed, what its aims and organs are, what Nigeria has contributed, and what weaknesses limit its effectiveness. These are facts and dates that reward careful memory, so the chapter presents them in tables and in clearly separated sections, and the worked examples show how to turn them into answers for objective questions.

10.1 Why international organisations exist

An **international organisation** is a body formed by the governments of several states, by a treaty, to pursue common aims through permanent organs. It differs from an ordinary alliance in having a standing secretariat and rules of procedure. The reasons for such bodies are many. States seek collective security, because war in one region endangers neighbours. They need cooperation on trade, finance, health, communications and the environment, which no single country can regulate alone. Weaker states gain a voice that they could not have separately. Common problems, such as refugees or terrorism, call for a common response. And lastly, international law needs institutions to make, interpret and enforce it.

Organisations are commonly classified by membership and by purpose. **Global** organisations, such as the United Nations, are open to all states. **Regional** organisations, such as the African Union and ECOWAS, are confined to a geographical area. **Political** bodies deal with peace and diplomacy; **economic** bodies deal with trade, development and commodity prices; **functional** bodies deal with a single field such as health or labour.

10.2 The United Nations

Origin and membership

The **United Nations (UN)** was founded on 24 October 1945, after the Second World War, to replace the League of Nations, which had failed to prevent the war. Its Charter was signed in San Francisco by 50 states, with Poland signing later to bring the original members to 51. The headquarters is in New York. The organisation now has 193 member states. Nigeria became the 99th member on 7 October 1960, six days after independence.

Purposes and principles

The Charter states that the purposes of the UN are to maintain international peace and security, to develop friendly relations among nations based on equal rights and self-determination of peoples, to achieve international cooperation in solving economic, social, cultural and humanitarian problems, and to be a centre for harmonising the actions of nations. Its principles include the sovereign equality of all members, the peaceful settlement of disputes, the refusal to use force against the territorial integrity or political independence of any state, and non-interference in matters essentially within the domestic jurisdiction of states, except when enforcement action is taken under Chapter VII.

Principal organs

There are six principal organs.

- The **General Assembly** consists of all members, each with one vote. It debates any matter within the Charter, approves the budget, elects the non-permanent members of the Security Council and others, and admits new members on the Council's recommendation. Decisions on important questions, such as peace and security or the budget, need a two-thirds majority of members present and voting; other matters need a simple majority. Its resolutions are mainly recommendations.
- The **Security Council** has primary responsibility for peace and security. It has 15 members: five **permanent** members with the power of veto (the United States, the United Kingdom, France, Russia and China) and ten **non-permanent** members elected by the Assembly for two-year terms, with regional distribution. Decisions on substantive matters require nine affirmative votes including the concurrence of all five permanent members. The Council alone can issue binding decisions, impose sanctions and authorise force.
- The **Economic and Social Council (ECOSOC)** coordinates the economic and social work of the UN and its specialised agencies. It has 54 members elected for three-year terms.
- The **Trusteeship Council** supervised the territories held in trust until independence. Its work ended in 1994 when the last trust territory, Palau, became independent, and it has since suspended operations.
- The **International Court of Justice (ICJ)**, at The Hague, is the principal judicial organ. It has 15 judges, elected for nine years, with one-third of the seats renewed every three years, and it settles legal disputes between states and gives advisory opinions.

- The **Secretariat** is the administrative body, headed by the **Secretary-General**, the chief administrative officer, appointed by the Assembly on the Council's recommendation for a five-year term, renewable.

Specialised agencies and programmes

Linked with the UN through ECOSOC are specialised agencies, which have their own membership and budget. Examples are the World Health Organisation (WHO) in Geneva, the Food and Agriculture Organisation (FAO) in Rome, the United Nations Educational, Scientific and Cultural Organisation (UNESCO) in Paris, the International Labour Organisation (ILO) in Geneva, the International Monetary Fund (IMF) and the World Bank in Washington, and the International Civil Aviation Organisation (ICAO) in Montreal. The UN Children's Fund (UNICEF) and the UN Development Programme (UNDP) are programmes rather than agencies.

> **Key point.** The Security Council, not the General Assembly, can bind states. The veto belongs to the five permanent members only, and an abstention by a permanent member does not block a resolution.

Peacekeeping, achievements and weaknesses

Peacekeeping, though not mentioned by name in the Charter, has become a central activity. Blue-helmeted forces monitor ceasefires and protect civilians with the consent of the parties. Nigeria has been one of

the leading contributors of troops and police, serving in the Congo (1960 to 1964), Lebanon, Cambodia, Somalia, Liberia, Sierra Leone, Darfur and Mali, among other places.

The UN's achievements include helping to end colonial rule, which saw the number of members rise from 51 to 193; the codification of human rights through the Universal Declaration of Human Rights (1948); the eradication of smallpox through WHO; the supply of food and refugee relief; and the settlement of many conflicts. Its weaknesses include the veto, which can paralyse the Council when the great powers disagree; shortage of funds; dependence on members for troops; the domination of the powerful states; slow reaction to crises; and a lack of power to enforce Assembly resolutions. Many states, Nigeria among them, call for reform of the Council and for permanent seats for Africa.

WORKED EXAMPLE 10.1

A resolution before the Security Council receives 11 votes in favour, 3 against and 1 abstention. The three votes against include that of China, a permanent member. Is the resolution adopted? Would your answer change if China had abstained and one non-permanent member had voted against instead?

Solution: Eleven votes in favour exceed the minimum of nine, but a substantive resolution also needs the concurrence of all five permanent members. China voted against, which is a veto, so the resolution fails despite the 11 votes. If China had merely abstained, a permanent abstention does not block a resolution; with 11 votes in favour (above nine) and no permanent member voting against, the resolution would be adopted. The veto therefore operates only through a negative vote.

WORKED EXAMPLE 10.2

All 193 members of the General Assembly are present and voting on an important question. What is the least number of votes in favour needed for a two-thirds majority?

Solution: Two-thirds of 193 = (2 × 193)/3 = 386/3 = 128.67. Since votes are whole numbers, 128 would be below two-thirds (128/193 = 66.32 per cent, below 66.67 per cent), so the minimum is 129 votes. Check: 129/193 = 66.84 per cent, which exceeds two-thirds.

10.3 The Organisation of African Unity and the African Union

The Organisation of African Unity (OAU)

The **OAU** was founded on 25 May 1963 in Addis Ababa, Ethiopia, by 32 independent African states, after a debate between two groups: the radical Casablanca group led by Kwame Nkrumah of Ghana, which wanted rapid political union, and the moderate Monrovia group, to which Nigeria under Sir Abubakar Tafawa Balewa belonged, which preferred gradual cooperation among sovereign states. The moderate view prevailed. Its headquarters was Addis Ababa.

The aims of the OAU were to promote the unity and solidarity of African states, to coordinate and intensify their cooperation, to defend their sovereignty, territorial integrity and independence, to eradicate all forms of colonialism, and to promote international cooperation within the framework of the UN. Its principles included sovereign equality, non-interference in internal affairs, respect for existing borders, peaceful settlement of disputes, condemnation of political assassination, and non-alignment. Its main organs were the Assembly of Heads of State and Government, the Council of Ministers, the General Secretariat, and the Commission of Mediation, Conciliation and Arbitration. A Liberation Committee, based in Dar es Salaam, supported liberation movements.

The OAU's achievements lay in the support for decolonisation and in the fight against apartheid in South Africa, in the adoption of the principle that colonial boundaries should be respected, in mediating

some border disputes, and in the African Charter on Human and Peoples' Rights (1981). Its weaknesses were the principle of non-interference, which prevented action against tyranny and abuses of human rights; lack of funds and armed forces; the dependence of members on foreign powers; ideological divisions; and the absence of any means to enforce its decisions.

The African Union (AU)

The **African Union** replaced the OAU. The Constitutive Act was adopted at Lome in 2000, came into force in 2001, and the AU was formally launched in Durban, South Africa, in July 2002. The headquarters remains Addis Ababa, and the membership is 55 states. Its objectives include achieving greater unity, defending sovereignty and territorial integrity, accelerating political and socio-economic integration, promoting peace, security and stability, and promoting democratic principles, human rights and good governance. A significant departure from the OAU is that the AU recognises the right of the Union to intervene in a member state in grave circumstances, namely war crimes, genocide and crimes against humanity, and that it rejects unconstitutional changes of government.

The principal organs include the Assembly of Heads of State and Government, the Executive Council of foreign ministers, the Commission (the secretariat), the Pan-African Parliament, the Peace and Security Council, the Permanent Representatives Committee, the African Court on Human and Peoples' Rights, and the Economic, Social and Cultural Council. The AU also endorses the New Partnership for

Africa's Development (NEPAD), the programme for development and good governance, which Nigeria helped to initiate under President Obasanjo, together with Presidents Mbeki of South Africa and Bouteflika of Algeria, and the African Peer Review Mechanism. The African Continental Free Trade Area (AfCFTA), which entered into force in 2019 and began trading in 2021, has its secretariat in Accra.

WORKED EXAMPLE 10.3

The OAU was founded in 1963 and the AU launched in 2002. For how many years did the OAU exist as the continental body, and in what respect did the AU depart from OAU doctrine?

Solution: Time = 2002 − 1963 = 39 years. The OAU doctrine was strict non-interference in the internal affairs of member states. The AU's Constitutive Act permits intervention in a member state, authorised by the Assembly, in respect of war crimes, genocide and crimes against humanity, and it condemns coups, so the principle of non-interference was replaced by a principle of "non-indifference".

10.4 The Economic Community of West African States

ECOWAS was established by the Treaty of Lagos, signed on 28 May 1975 by fifteen West African states, after sustained effort by Nigeria under General Gowon and Togo under President Eyadema. Its

headquarters is in Abuja. A Revised Treaty was signed at Cotonou in 1993 to widen its objectives to include political cooperation, regional security and a common parliament and court. The Community has English, French and Portuguese-speaking members, which makes it one of the few African organisations spanning the old colonial language divisions.

Aims

The aims are to promote economic integration through a common market, to remove barriers to trade, to adopt a common external tariff, to allow the free movement of persons, goods, services and capital, to coordinate agricultural, industrial and transport policy, and to improve living standards. The 1979 Protocol on free movement provided for visa-free entry for 90 days, the right of residence and the right of establishment.

Organs

The main organs are the Authority of Heads of State and Government, the supreme body; the Council of Ministers; the Commission (the secretariat headed by a President, which replaced the Executive Secretariat); the Community Parliament, located in Abuja; the Community Court of Justice, also in Abuja; and the ECOWAS Bank for Investment and Development (EBID) in Lome. A Mediation and Security Council and a Defence and Security Commission deal with peacekeeping.

Peace and security

ECOWAS has become better known for security than for trade. In 1990 it created the **ECOWAS Monitoring Group (ECOMOG)** to stop the civil war in Liberia, with Nigeria supplying the bulk of the troops and money, and later intervened in Sierra Leone and Guinea-Bissau. It has used sanctions and mediation in Togo, Gambia in 2017, Mali and Guinea. ECOWAS also adopted a Protocol on Democracy and Good Governance in 2001 that rejects coups and requires free elections.

Membership and recent developments

Cape Verde joined in 1977, and Mauritania left in 2000. In January 2025 Mali, Burkina Faso and Niger, all ruled by military governments and organised in a separate Alliance of Sahel States, formally left the Community. The membership therefore fell to twelve.

Problems

- Overlapping membership of other bodies and the difference in colonial heritage and currency.
- Poor transport and communication links between states.
- Political instability and coups.
- Poor payment of contributions, with Nigeria bearing a heavy share.
- Protectionism and the extra-legal barriers at borders, including multiple checkpoints.
- Fear of Nigerian domination and rivalry with the French-speaking states which use the CFA franc.

- Poor enforcement of Community decisions.

WORKED EXAMPLE 10.4

ECOWAS began in 1975 with 15 members. Cape Verde joined in 1977, Mauritania left in 2000, and three members withdrew in 2025. Find the membership at each stage.

Solution: 1975: 15. After 1977: 15 + 1 = 16. After 2000: 16 − 1 = 15. After 2025: 15 − 3 = 12. The present membership is therefore 12 states.

10.5 The Commonwealth, OPEC and the Non-Aligned Movement

The Commonwealth of Nations

The **Commonwealth** is a voluntary association of 56 independent states, nearly all of them former territories of the British Empire, with headquarters (the Commonwealth Secretariat) in London. It grew from the British Commonwealth, formalised by the Statute of Westminster of 1931, and became the “Commonwealth of Nations” in 1949 when India became a republic. Members accept the British monarch as the symbolic head of the association, though they need not take him as head of state. Nigeria joined on independence in 1960.

The Commonwealth promotes democracy, human rights, the rule of law and development, and offers educational and technical assistance through scholarships, the Commonwealth Games and the Commonwealth Fund for Technical Cooperation. It was an important forum for the campaign against apartheid; its members forced South Africa out in 1961. Nigeria was suspended from the Commonwealth in 1995 after the execution of Ken Saro-Wiwa and eight other Ogoni leaders under General Abacha, and readmitted in 1999 after the return to civil rule. The Commonwealth has weaknesses: it has no binding authority, no common defence, and its members differ widely in wealth and political practice.

The Organisation of the Petroleum Exporting Countries (OPEC)

OPEC was founded in Baghdad in September 1960 by Iran, Iraq, Kuwait, Saudi Arabia and Venezuela, in response to a unilateral reduction of crude oil prices by the multinational companies. Its headquarters has been in Vienna since 1965. Nigeria joined in 1971. The aims are to coordinate the petroleum policies of the members, to secure fair and stable prices for producers, to ensure an efficient and regular supply to consumers, and to give a fair return on capital to investors. OPEC fixes production quotas for members. It achieved a dramatic effect in 1973 to 1974, when the price of oil quadrupled in a crisis connected to the Arab-Israeli war. For Nigeria, membership has brought

a platform to influence prices, but because oil is so large a share of its exports and government revenue, the country is exposed to the falls in price, as in the 1980s and again in 2014 to 2016 and 2020.

The existence of non-OPEC producers such as Russia, the United States and Norway, cheating on quotas, and conflict among members are the main limitations of the organisation.

The Non-Aligned Movement (NAM)

The **NAM** began with the Belgrade Conference of 1961, summoned by Tito of Yugoslavia, Nasser of Egypt, Nehru of India, Nkrumah of Ghana and Sukarno of Indonesia, which came out of the 1955 Bandung Conference of Asian and African states. Its members declared that they would not join either the Western bloc led by the United States or the Eastern bloc led by the Soviet Union during the Cold War, and would instead pursue independent policies and the cause of decolonisation, development and peace. Nigeria is a member and has followed non-alignment as a pillar of its policy since 1960. The end of the Cold War in 1991 raised the question of what the movement is for; its present concerns include a fairer international economic order and the reform of the UN.

Other bodies

Nigeria also belongs to the **Lake Chad Basin Commission** (1964), with Cameroon, Chad, Niger and later others, which manages the shrinking lake and which organises the Multinational Joint Task Force against Boko Haram; to the **Gulf of Guinea Commission**; and to the

Organisation of Islamic Cooperation, which Nigeria joined in 1986. It also works with the African Development Bank, the IMF and the World Bank, and with the World Trade Organisation, successor to the GATT, which has its headquarters in Geneva.

10.6 The meaning and conduct of foreign policy

Foreign policy is the set of aims and principles which guide a state's dealings with other states and international bodies, together with the actions taken to pursue them. It links the national interest to the outside world. The **national interest**, which is the purpose of foreign policy, includes the security of the territory and people, economic wellbeing, the protection of values, and prestige in the world.

Foreign policy is carried out through **diplomacy**, the management of relations between states by negotiation. Its agents are the head of state, the Minister of Foreign Affairs, ambassadors and high commissioners, and consuls. An **ambassador** represents the head of state in a foreign country and heads an embassy; a **High Commissioner** performs the same role between Commonwealth members; a **consul** looks after trade and the welfare of citizens abroad, issues visas and registers births. In Nigeria the Exclusive Legislative List places foreign affairs under the Federal Government, and the Ministry of Foreign Affairs carries out policy, with the President as final authority. The Senate screens ambassadorial nominees.

Determinants of foreign policy

- **Geography**: Nigeria's location on the Gulf of Guinea, its long borders with Benin, Niger, Chad and Cameroon, and its coastline influence its interest in West African security and in maritime safety.
- **Population**: as Africa's most populous country, with over 200 million people, it has a large market and a claim to leadership.
- **Economic factors**: dependence on oil exports and the need for foreign investment, technology and trade shape its diplomacy.
- **Military strength**: a large armed force underlies peacekeeping roles.
- **Historical links**: colonial ties with Britain, and the Commonwealth.
- **Domestic politics**: public opinion, ethnic and religious composition and the ideas of the ruling group.
- **Leadership**: the personality of the head of state, such as Murtala Mohammed or Obasanjo, can change a policy.
- **International environment**: the Cold War, global markets and the power of other states.

10.7 The objectives and principles of Nigeria's foreign policy

The main objectives, which the Constitution reflects in section 19 of the Fundamental Objectives and Directive Principles, are the following.

- Promotion and protection of the national interest.
- Promotion of African integration and support for African unity.

- Promotion of international cooperation for the consolidation of universal peace and mutual respect among all nations and elimination of discrimination in all its manifestations.
- Respect for international law and treaty obligations, as well as the seeking of settlement of international disputes by negotiation, mediation, conciliation, arbitration and adjudication.
- Promotion of a just world economic order.

Alongside these, the guiding **principles** have been: *Africa as the centrepiece*, announced by Prime Minister Balewa in his speech to the United Nations in 1960; non-alignment; sovereign equality of all states; non-interference in the internal affairs of other states; the right of peoples to self-determination, including opposition to colonialism and apartheid; and a commitment to peaceful settlement of disputes. Non-alignment does not mean neutrality in every issue; it means independence of judgment.

10.8 Nigeria's foreign policy under successive governments

The Balewa era, 1960 to 1966

The policy of the First Republic was pro-Western and cautious. Nigeria joined the UN, the Commonwealth and the OAU, supported the cause of African liberation without dramatic action, and offered troops to the UN operation in the Congo. The defence pact signed with Britain in 1960 caused uproar in the country, and it was abrogated in January 1962.

Relations with France were broken in 1961 over French nuclear tests in the Sahara, and were later restored. Nigeria joined the Monrovia group and favoured a gradual path to African unity.

The Gowon period, 1966 to 1975

The civil war, from 1967 to 1970, tested Nigerian diplomacy, since several states recognised Biafra and the country had to rely on the support of Britain, the Soviet Union and the OAU, which backed the principle of the territorial integrity of members. Afterwards, Gowon's policy of reconciliation extended to ECOWAS, which he helped to create in 1975, and to the policy of "good neighbourliness" in West Africa.

The Murtala-Obasanjo years, 1975 to 1979

Nigeria adopted a bold and radical Afrocentric position. In 1975 it recognised the MPLA government in Angola, helping it against South African-backed forces, and its stand was supported by the OAU. The military government nationalised the Nigerian assets of British Petroleum in 1979 in protest against Britain's attitude to Rhodesia (now Zimbabwe), and also took over the Nigerian holdings of Barclays Bank, partly because of its South African links. Nigeria also became a leading voice against apartheid, and gave financial help to the liberation movements.

The Shagari period, 1979 to 1983

The civilian government kept the same Afrocentric policy, but the oil glut and the falling revenue reduced Nigeria's ability to act. In 1983 the government expelled illegal immigrants, including up to two million Ghanaians, in the "Ghana Must Go" episode, an action which damaged relations in West Africa.

The Babangida and Abacha periods, 1985 to 1998

Under Babangida, Nigeria emphasised economic diplomacy, with the aim of obtaining debt relief and foreign investment, and established the **Technical Aid Corps** in 1987, which sends young professionals such as teachers, doctors and engineers to African, Caribbean and Pacific countries. It also articulated the idea of a "Concert of Medium Powers" and led ECOMOG. Under Abacha, the annulment of the 1993 election and the execution of Ken Saro-Wiwa in 1995 left the country isolated: it was suspended from the Commonwealth, and sanctions were imposed by several western countries.

The return to civil rule, from 1999

Obasanjo restored Nigeria's standing, led the initiative for NEPAD, and negotiated debt relief from the Paris Club in 2005, under which about $18 billion was written off and the balance of roughly $12 billion paid, totalling about $30 billion. Successive governments have prioritised economic diplomacy, the fight against terrorism with Lake Chad

neighbours, the campaign for a permanent African seat on the Security Council, and citizen diplomacy, which places the welfare of Nigerians abroad at the centre of policy.

10.9 Achievements and problems of Nigeria's foreign policy

Among its achievements, Nigeria played a large part in the liberation of Southern Africa and the defeat of apartheid; took the lead in creating ECOWAS; supplied the largest share of ECOMOG troops in Liberia and Sierra Leone; contributed thousands of troops to UN peacekeeping; supported newly independent states through the Technical Aid Corps and financial assistance; obtained debt relief; and held non-permanent seats on the Security Council several times, with the presidency of the General Assembly held by Nigerians such as Joseph Garba in 1989.

The problems include conflicting policies from successive governments; a weak economy which limits the funding of diplomacy; domestic insecurity and corruption which damage the national image; the cost borne in peacekeeping with little return; poor protection of Nigerians abroad; the lack of a permanent Security Council seat; and the tension between Africa as the centrepiece and the pursuit of immediate economic interest. Critics also argue that Nigeria has been too generous to neighbours while its own citizens have lacked basic services, and that foreign policy has sometimes been tied to the personal ambitions of leaders.

10.10 Practice

Exercise 10.1

1. On what date and in which city was the UN Charter signed, and how many original members did the UN have?
2. Name the five permanent members of the Security Council.
3. How many affirmative votes does a Security Council substantive resolution require at minimum, and what else is needed?
4. In what year did Nigeria join the UN, and as which numbered member?
5. Where is the headquarters of the OAU/AU?
6. Name the document that created the AU and the city in which it was adopted.
7. Which treaty created ECOWAS, and in what year?
8. Name the force created by ECOWAS in 1990 and the country where it was first used.
9. In what year did Nigeria join OPEC, and where is its headquarters?
10. State two principles of Nigeria’s foreign policy.
11. Who declared Africa to be the centrepiece of Nigerian policy?
12. Which Nigerian programme sends young professionals to developing countries?

Answers to Exercise 10.1

1. 26 June 1945 in San Francisco (the organisation came into being on 24 October 1945); 51 original members.
2. United States, United Kingdom, France, Russia (formerly the Soviet Union) and China.
3. Nine votes, including the concurrence (no veto) of all five permanent members.
4. 1960, as the 99th member.
5. Addis Ababa, Ethiopia.
6. The Constitutive Act of the African Union, adopted at Lome in 2000.
7. The Treaty of Lagos, 1975.
8. ECOMOG, in Liberia.
9. 1971; Vienna.
10. Any two of: non-alignment, sovereign equality, non-interference, Africa as centrepiece, peaceful settlement of disputes.
11. Prime Minister Abubakar Tafawa Balewa, in 1960.
12. The Technical Aid Corps, established in 1987.

Exercise 10.2

1. Distinguish the powers of the General Assembly from those of the Security Council.
2. Calculate the least number of votes for a two-thirds majority when 150 members are present and voting.

3. Explain why the veto is criticised.
4. Compare the OAU and the AU on the matter of intervention in member states.
5. If the ICJ has 15 judges and one-third are elected every three years, how many are elected each time, and after how many years has the whole bench been renewed?
6. List three problems that hinder ECOWAS.
7. Why was Nigeria suspended from the Commonwealth in 1995, and when was it readmitted?
8. OPEC was founded in 1960 and Nigeria joined in 1971. For how many years had the organisation existed when Nigeria joined?
9. Explain the difference between non-alignment and neutrality.
10. State three achievements of Nigeria's foreign policy.

Answers to Exercise 10.2

1. The Assembly deliberates, budgets and recommends; the Security Council makes binding decisions on peace and security and may impose sanctions or authorise force.
2. $(2 \times 150)/3 = 100$ votes exactly.
3. One permanent member can block action supported by all others, which paralyses the Council and reflects the power of the great states.

4. The OAU stood on strict non-interference; the AU may intervene in grave circumstances such as genocide and rejects unconstitutional changes of government.
5. 15/3 = 5 judges per election; the whole bench is renewed in 9 years (three elections).
6. Any three of: coups and instability, poor transport links, language and currency differences, arrears of contributions, border barriers.
7. After the execution of Ken Saro-Wiwa and others under Abacha; readmitted in 1999.
8. 1971 − 1960 = 11 years.
9. Non-alignment is independence from the power blocs while judging each issue on its merits; neutrality is staying out of conflicts altogether.
10. Any three of: leading ECOWAS and ECOMOG, anti-apartheid role, peacekeeping, debt relief, the Technical Aid Corps.

Chapter summary

- International organisations are treaty-based bodies of states with permanent organs, formed to secure peace, cooperation and a collective voice.
- The UN (1945, New York, 193 members) has six organs; the Security Council has five veto-holding permanent members and requires nine votes for substantive decisions; Nigeria joined on 7 October 1960.

- The OAU (1963, Addis Ababa, 32 founders) stressed non-interference and decolonisation; the AU (launched 2002, 55 members) allows intervention against genocide and war crimes and opposes coups.
- ECOWAS (Treaty of Lagos, 1975; headquarters Abuja) aims at economic integration and has led peacekeeping through ECOMOG; Mali, Burkina Faso and Niger left in 2025.
- The Commonwealth (56 members), OPEC (1960; Nigeria joined 1971) and the Non-Aligned Movement (Belgrade, 1961) are further forums of Nigerian diplomacy.
- Foreign policy aims at the national interest and is shaped by geography, population, economy, history, politics and leadership.
- Nigeria’s principles are Africa as centrepiece, non-alignment, sovereign equality, non-interference and peaceful settlement of disputes, and its record includes the anti-apartheid struggle, ECOMOG, the Technical Aid Corps and peacekeeping.